



Forest Service
U.S. DEPARTMENT OF AGRICULTURE

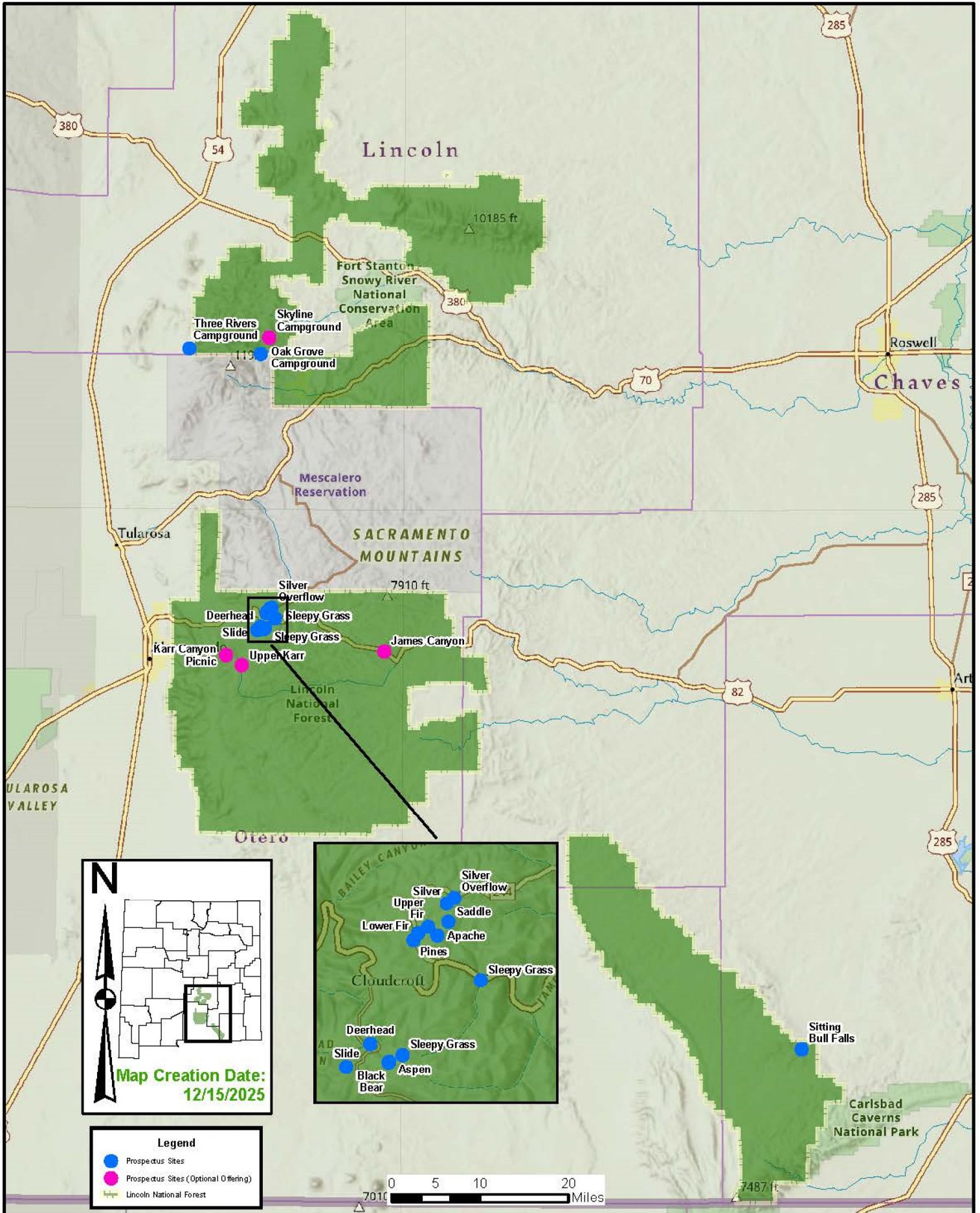
Prospectus for Campground and Related Granger-Thye Concessions
Lincoln National Forest

Appendix 1: Vicinity and Area Maps



Prospectus for Campground and Related Granger-Thye Concessions Overview Map

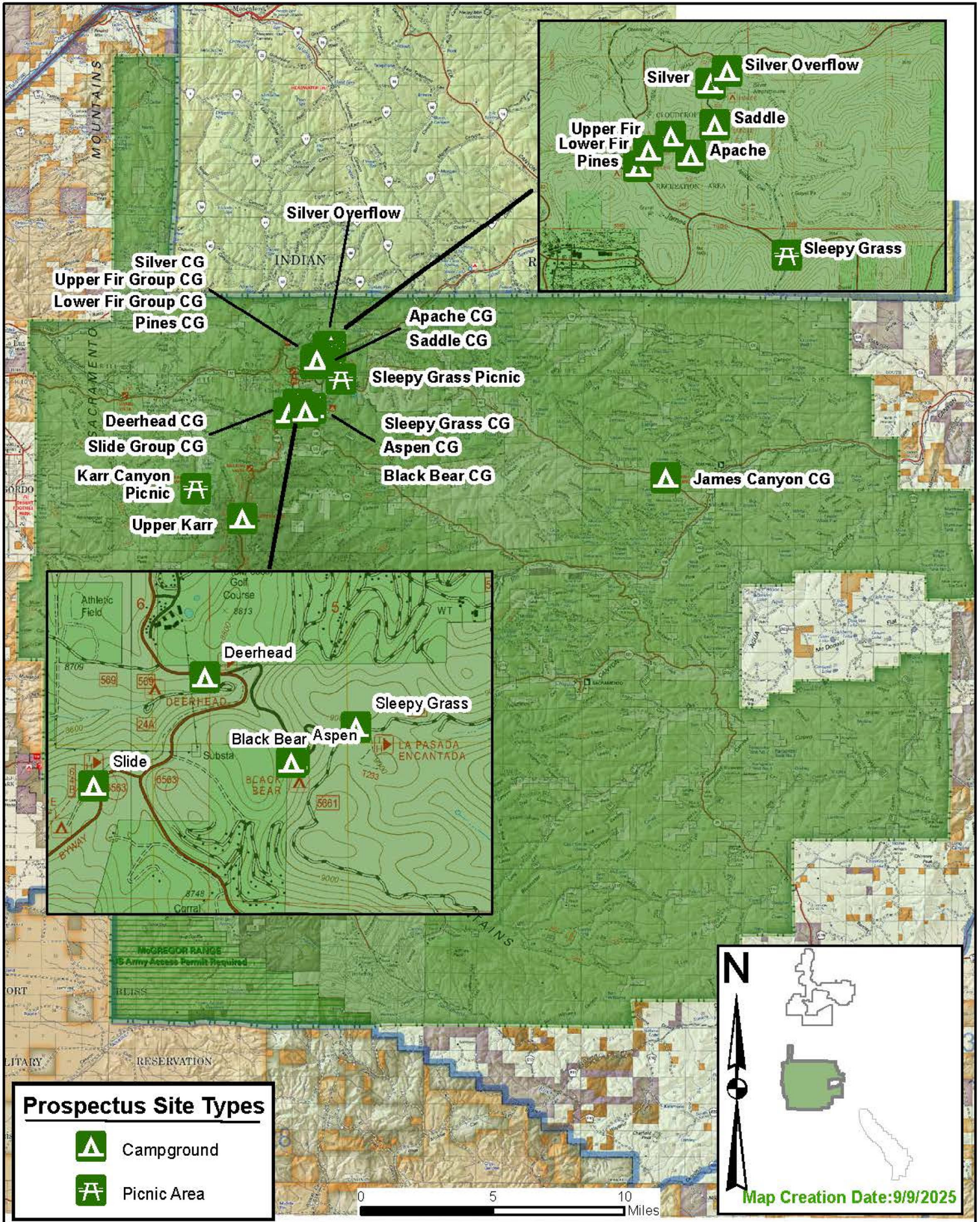
Lincoln National Forest





Prospectus for Campground and Related Granger-Thye Concessions Sacramento Ranger District Overview Map

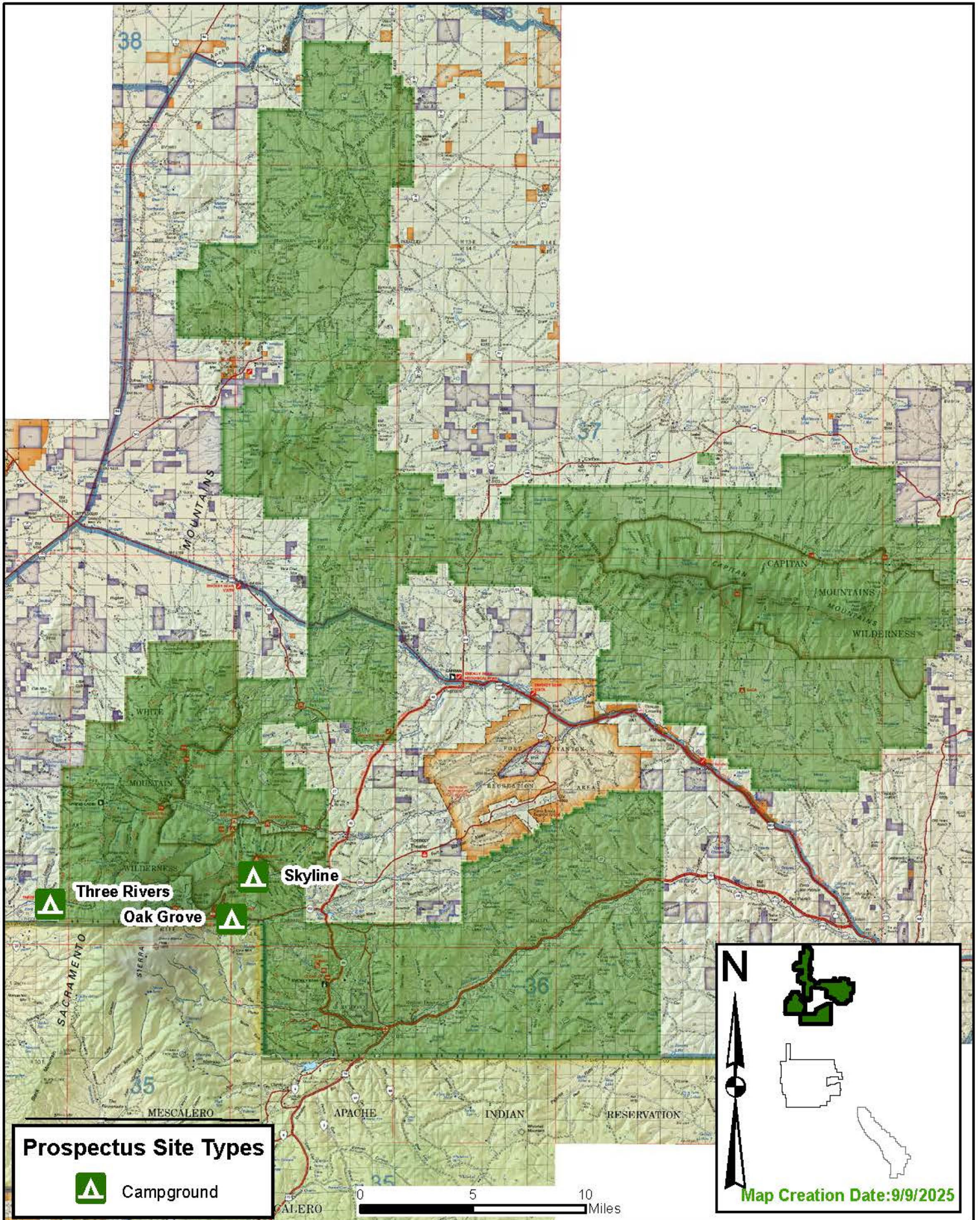
Lincoln National Forest





Prospectus for Campground and Related Granger-Thye Concessions Smokey Bear Ranger District Overview Map

Lincoln National Forest

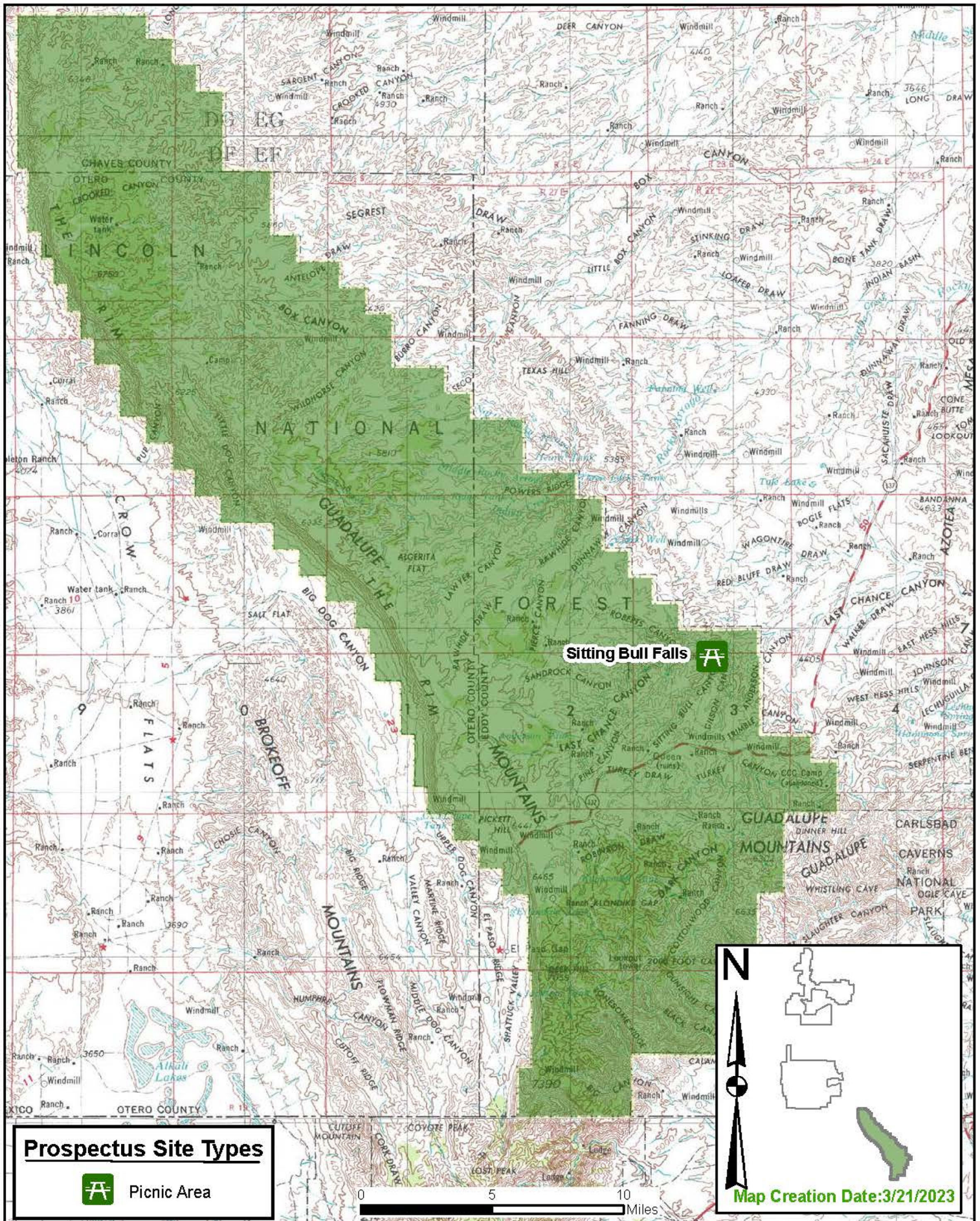




Prospectus for Campground and Related Granger-Thye Concessions

Guadalupe Ranger District Overview Map

Lincoln National Forest

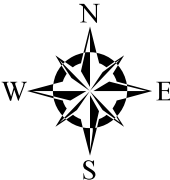
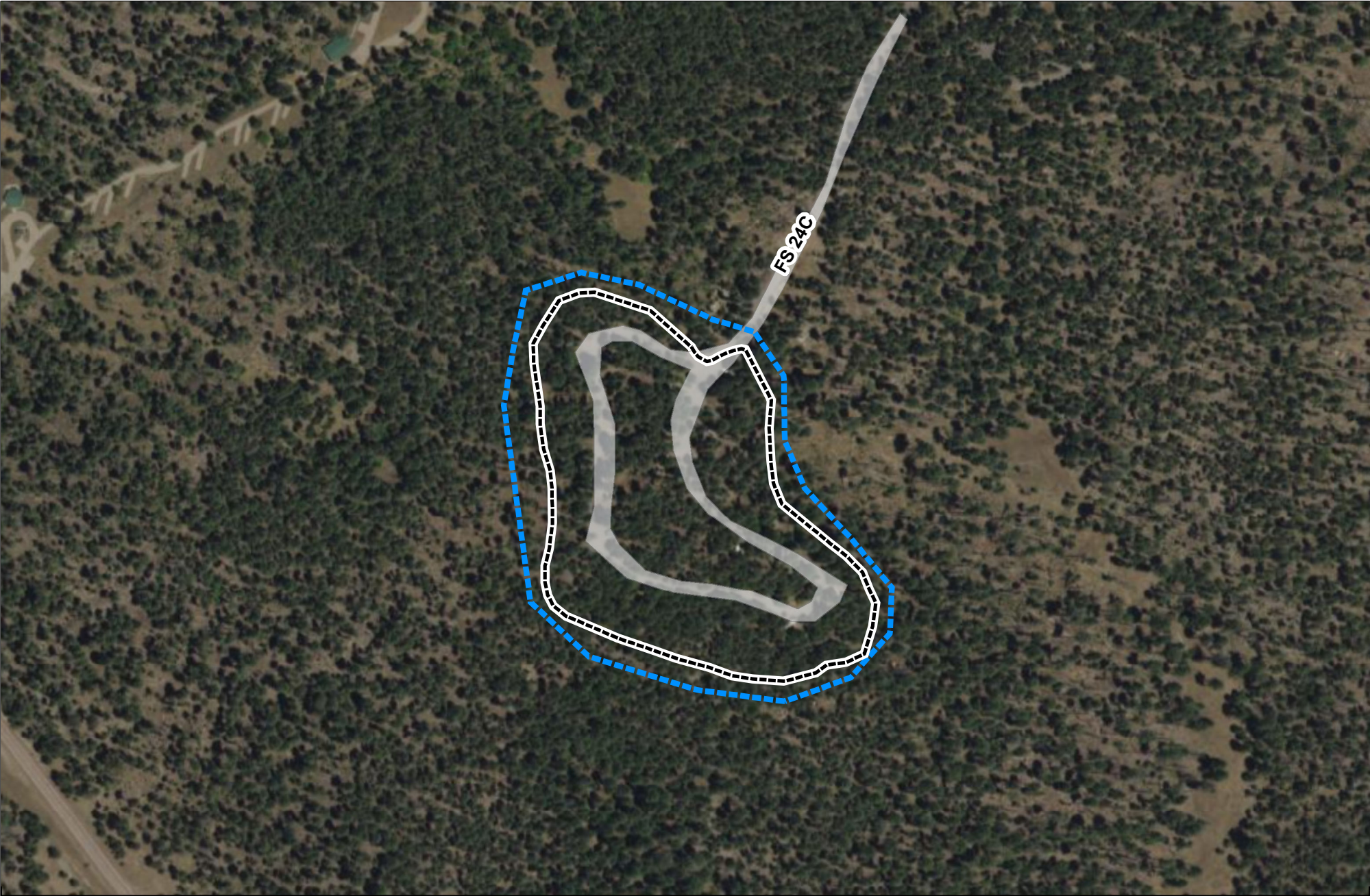




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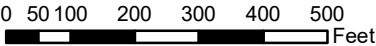
Prospectus for Campground and Related Granger-Thye Concessions
Lincoln National Forest

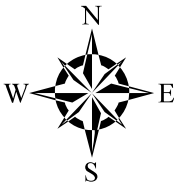
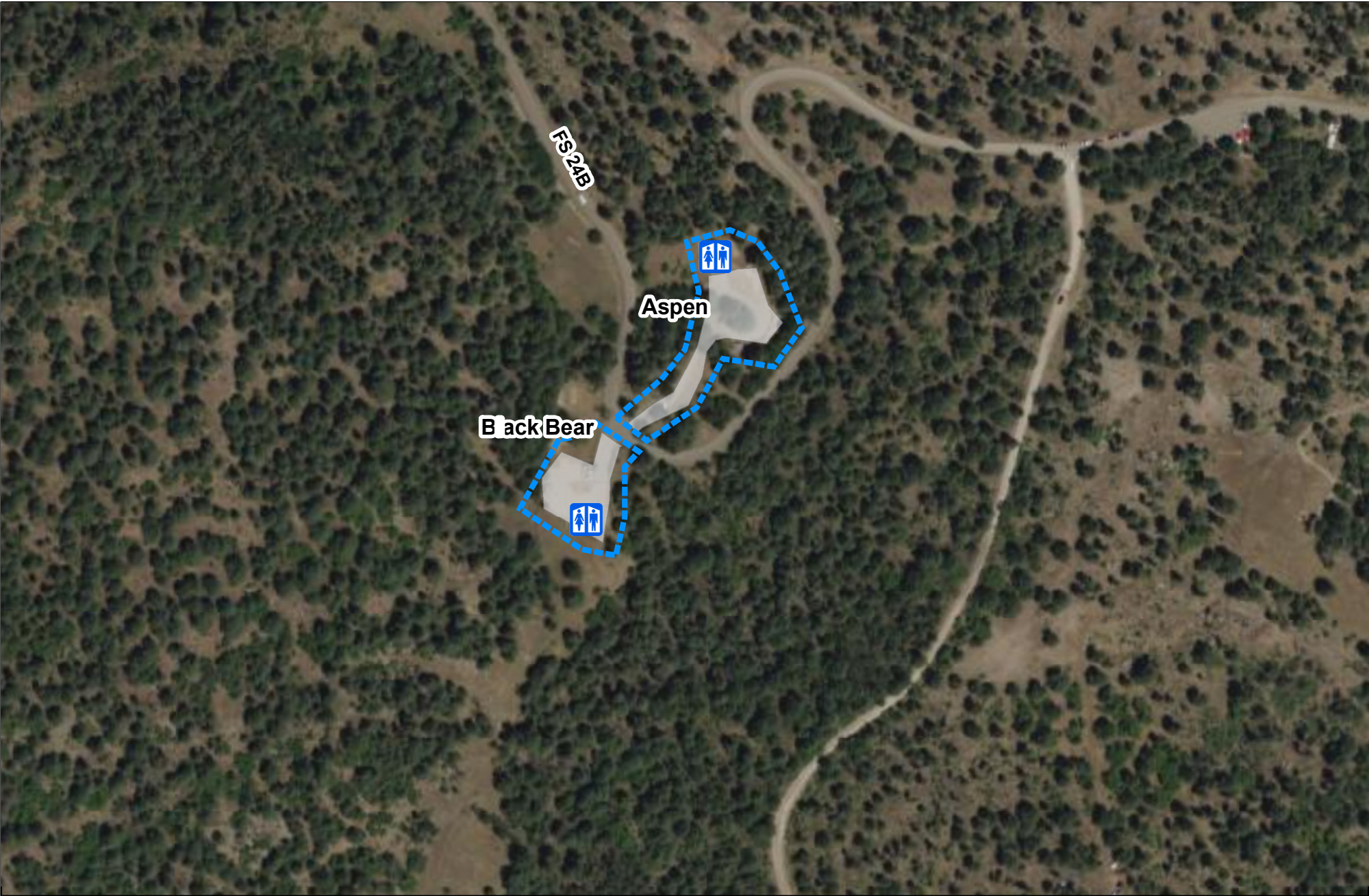
Appendix 2: Maps of Developed Recreation Sites



Legend

-  Permit Boundary
-  Apache Nature Trail

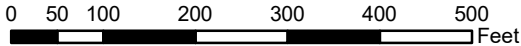


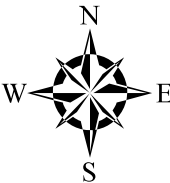


Legend

 Permit Boundary

 Restrooms

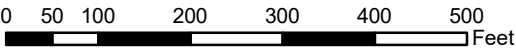


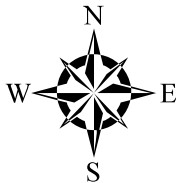
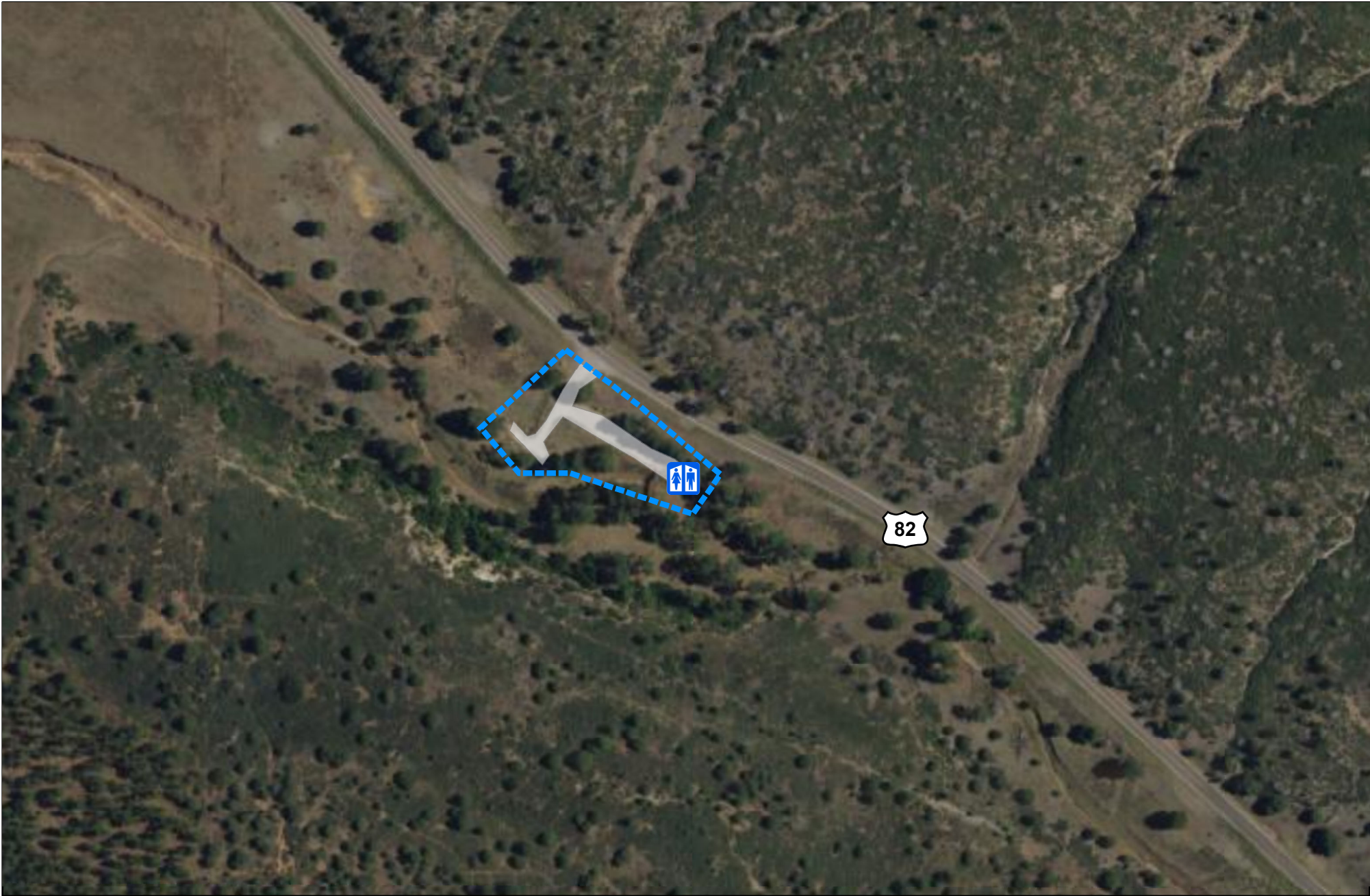


Legend

 Permit Boundary

 Restrooms

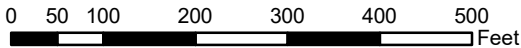


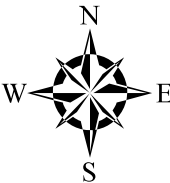
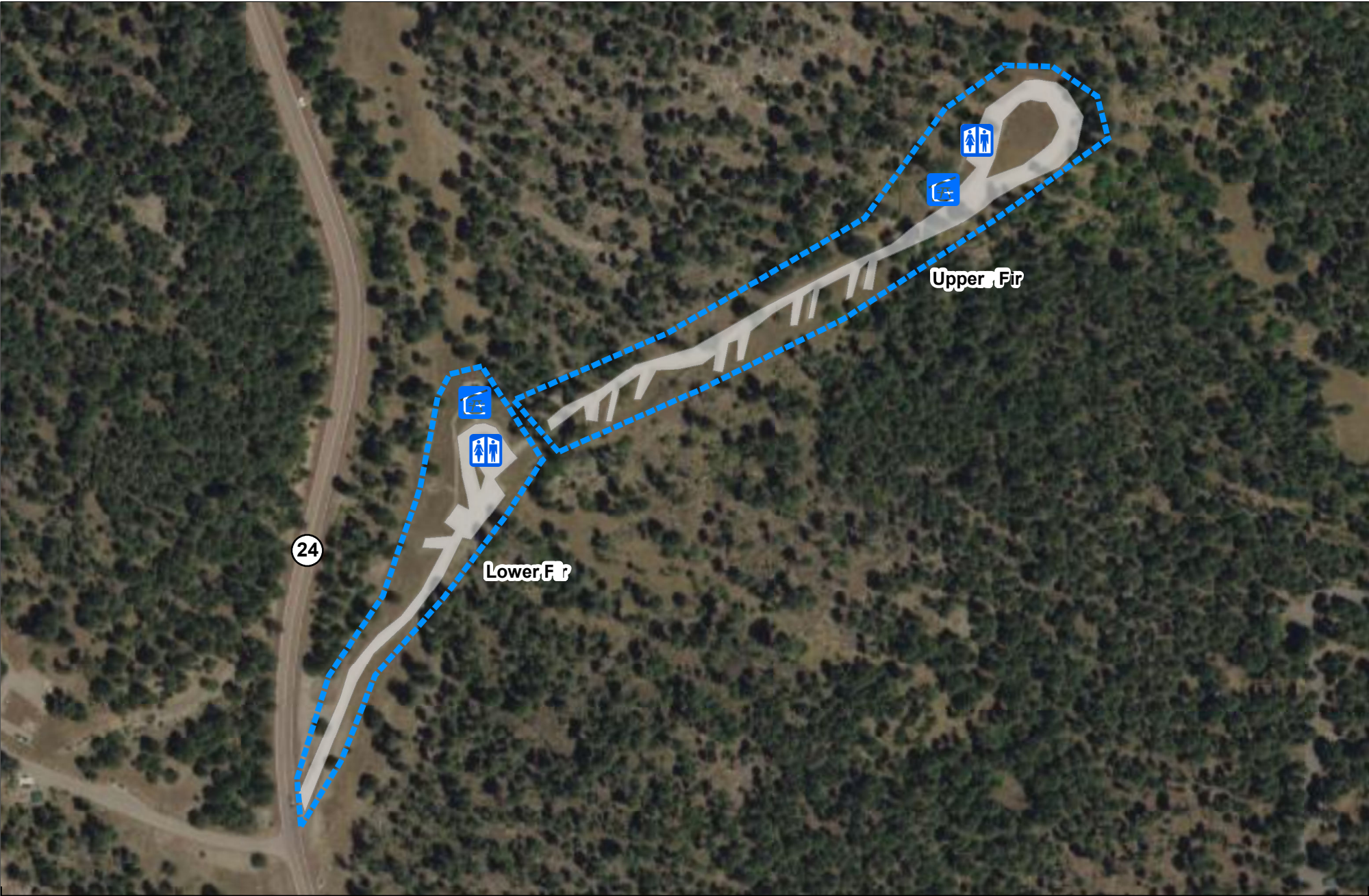


Legend

 Permit Boundary

 Restrooms





Legend

 Permit Boundary

 Restrooms

 Shelter

0 50 100 200 300 400 500 Feet





Legend



Permit Boundary

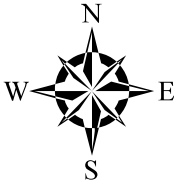
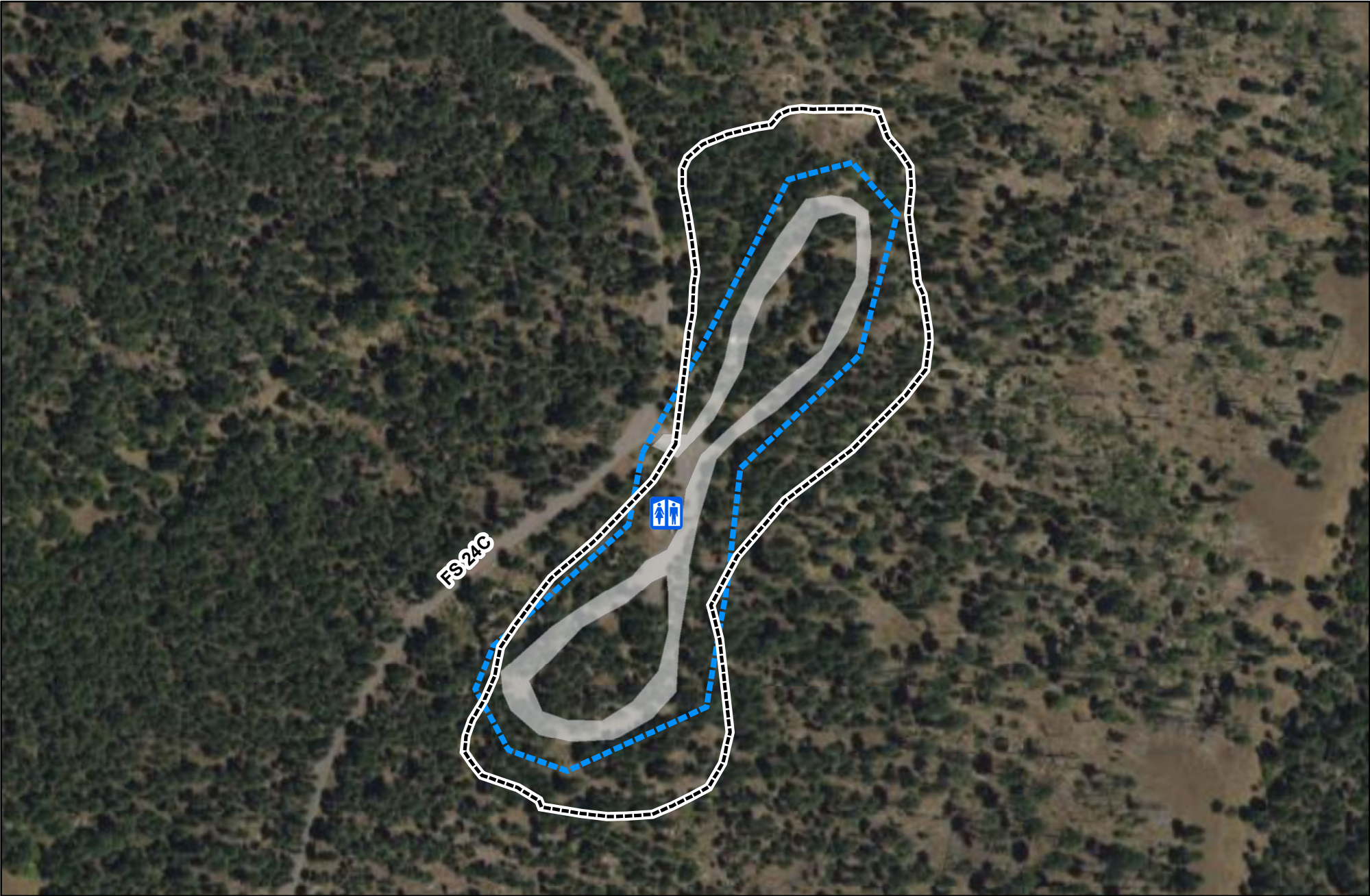


Restrooms

----- Trail

0 50 100 200 300 400 500 Feet





Legend



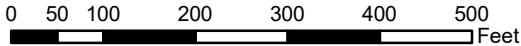
Permit Boundary

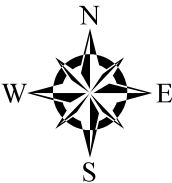
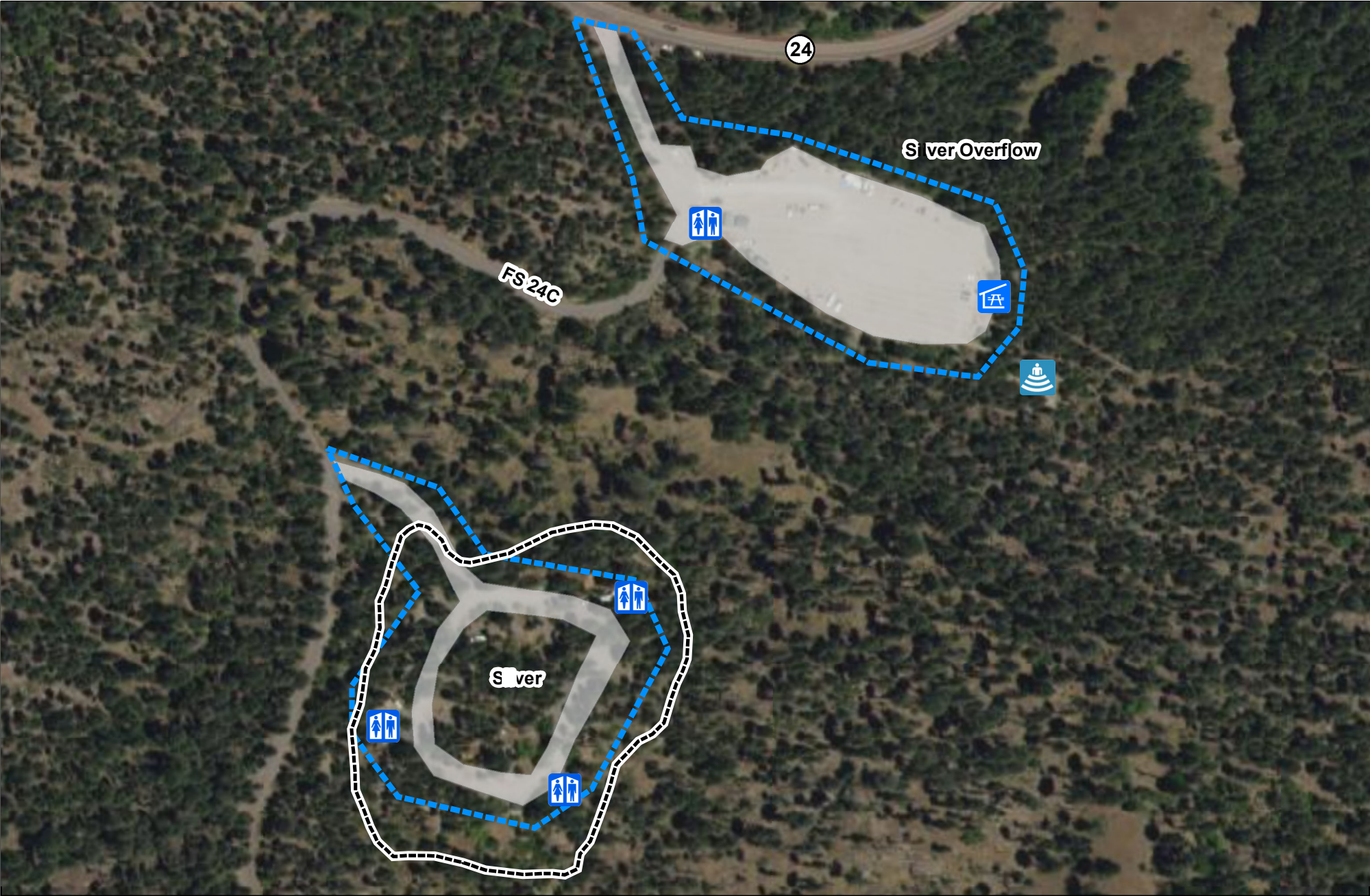


Restrooms



Saddle Nature Trail





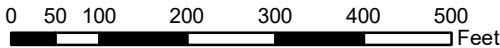
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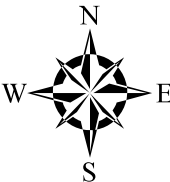
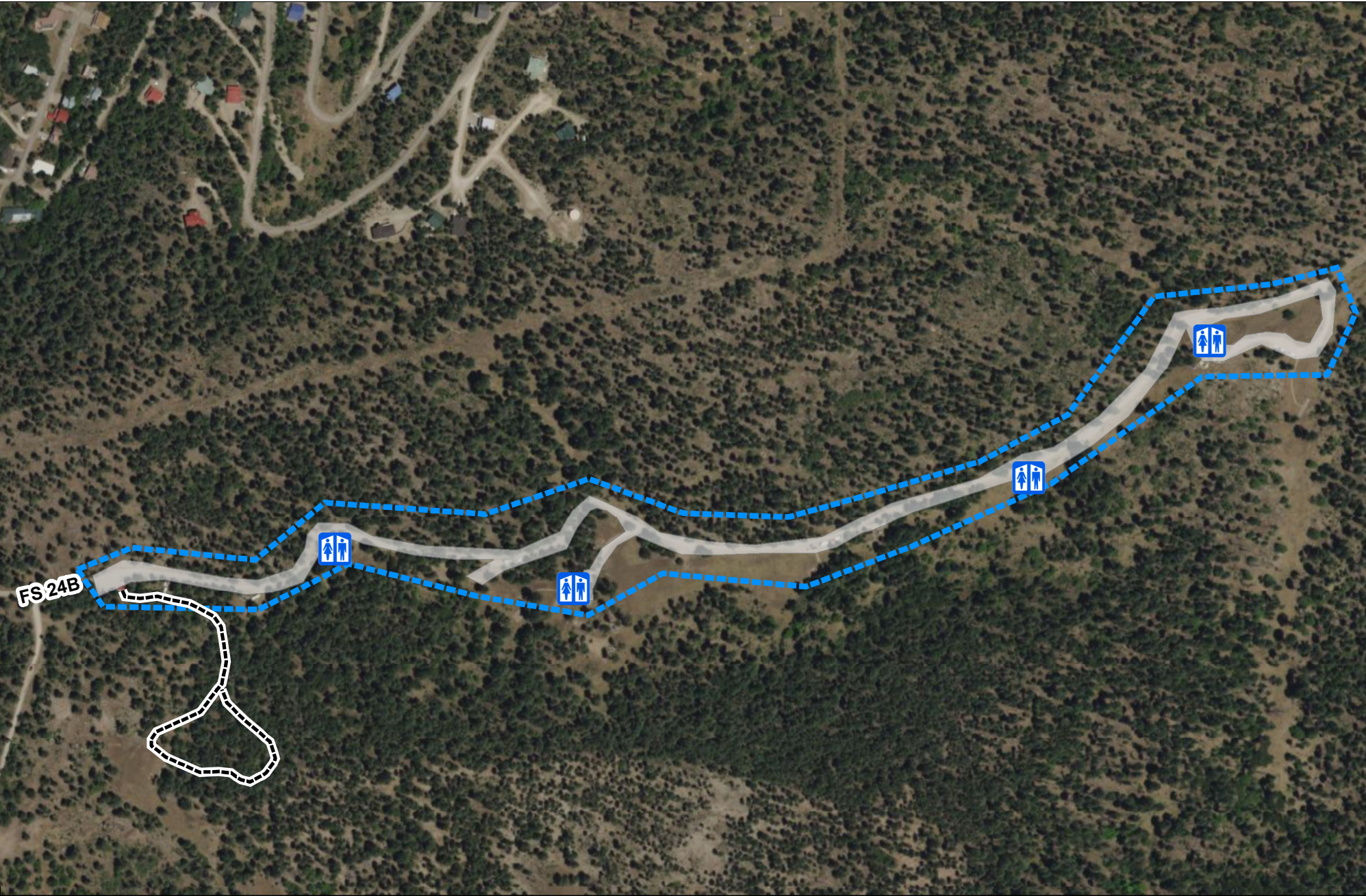
-  Permit Boundary
-  Amphitheater

-  Restrooms

-  Pavillion

-  Silver Nature Trail





Legend

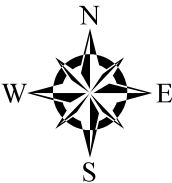
 Permit Boundary

 Restrooms

 La Pasada Encantada Trail

0 50 100 200 300 400 500
 Feet

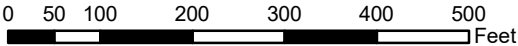


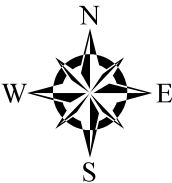
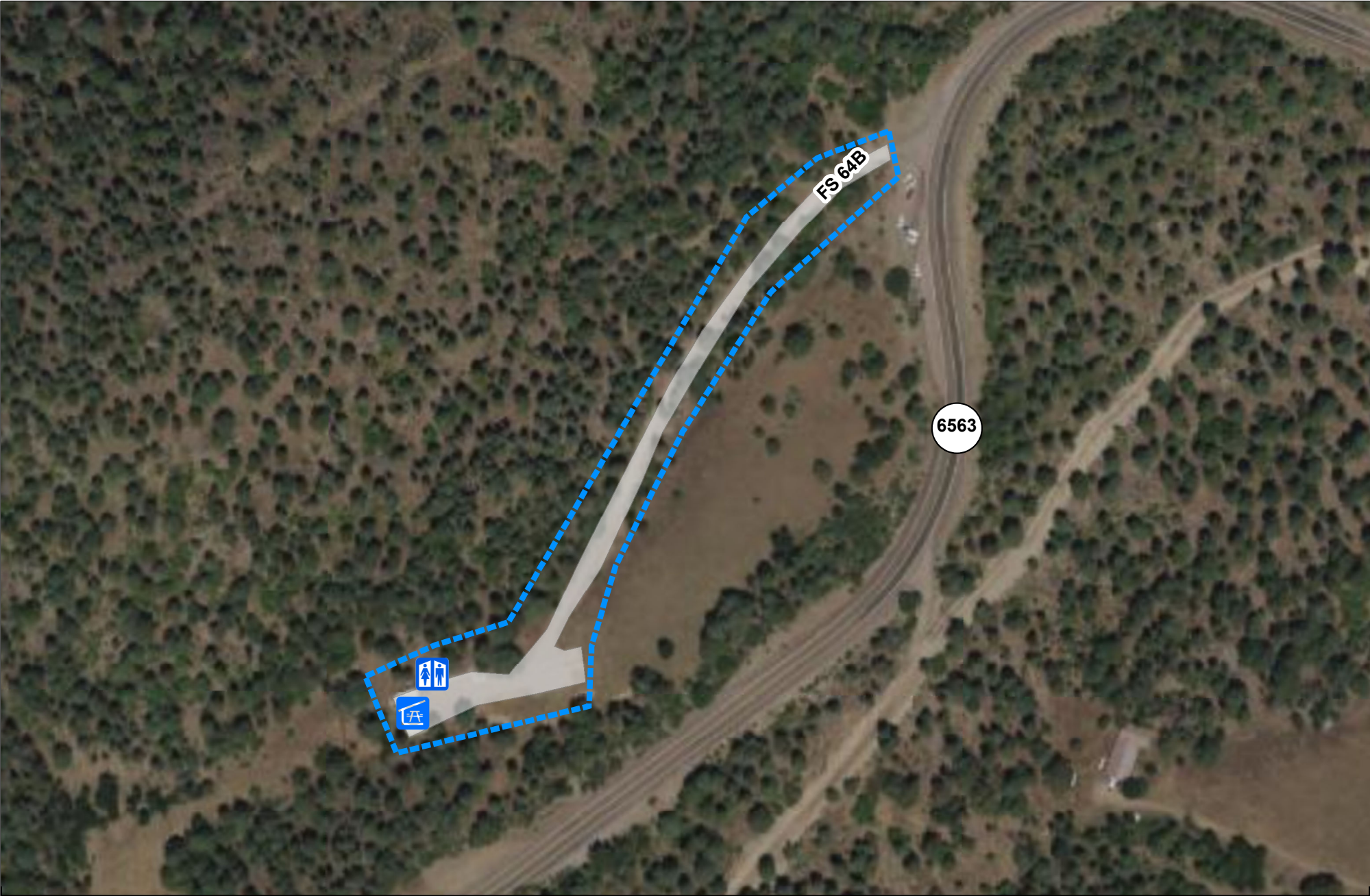


Legend

 Permit Boundary

 Restrooms



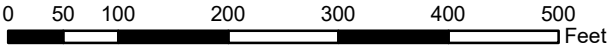


Legend

 Permit Boundary

 Restrooms

 Shelter

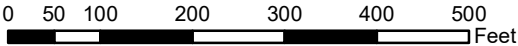


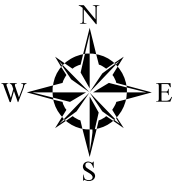


Legend

 Permit Boundary

 Restrooms





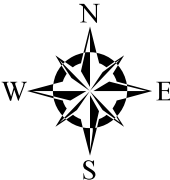
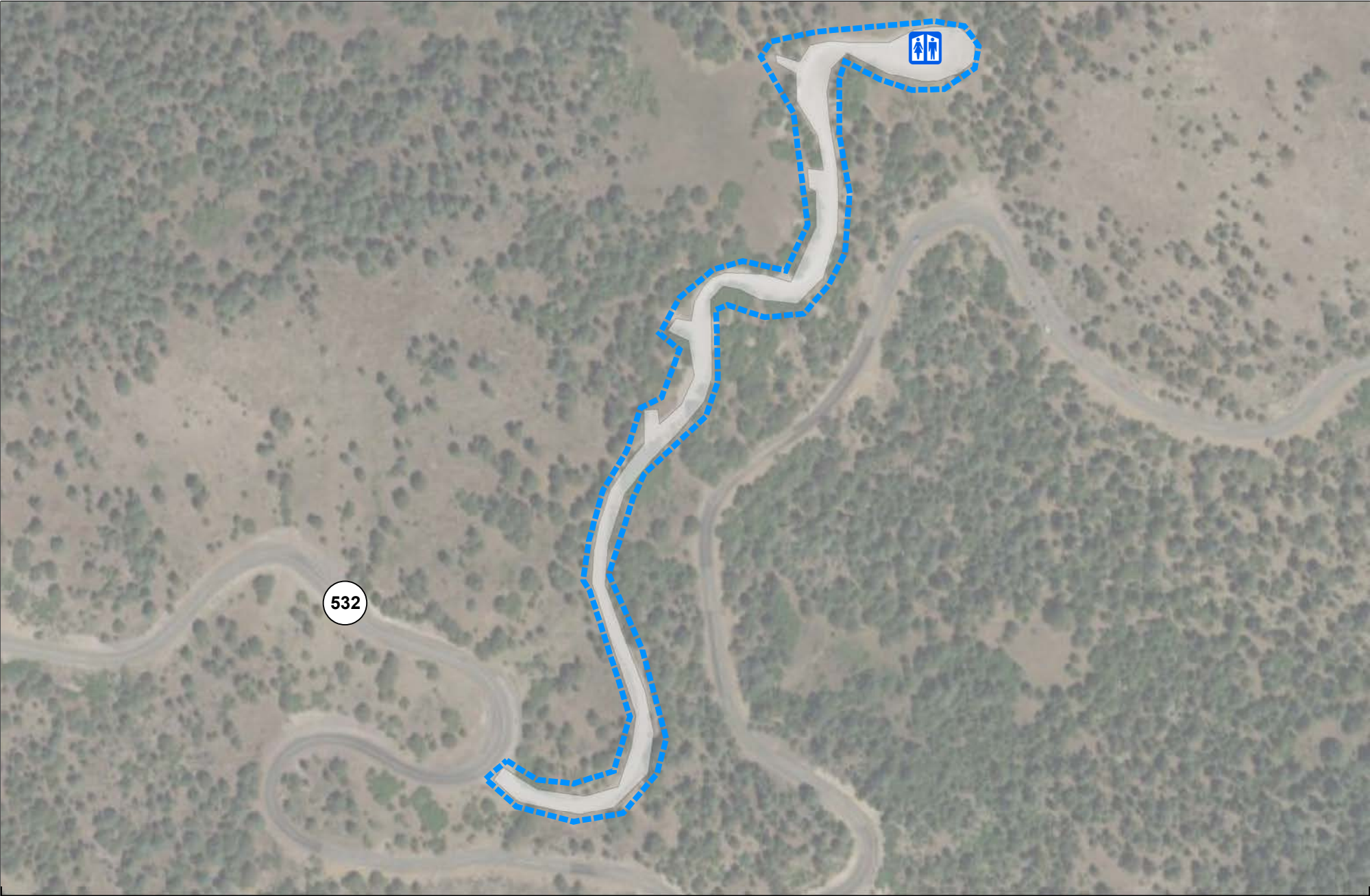
Legend

 Permit Boundary

 Restrooms

0 50 100 200 300 400 500 Feet





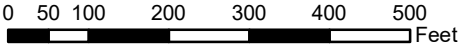
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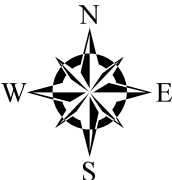
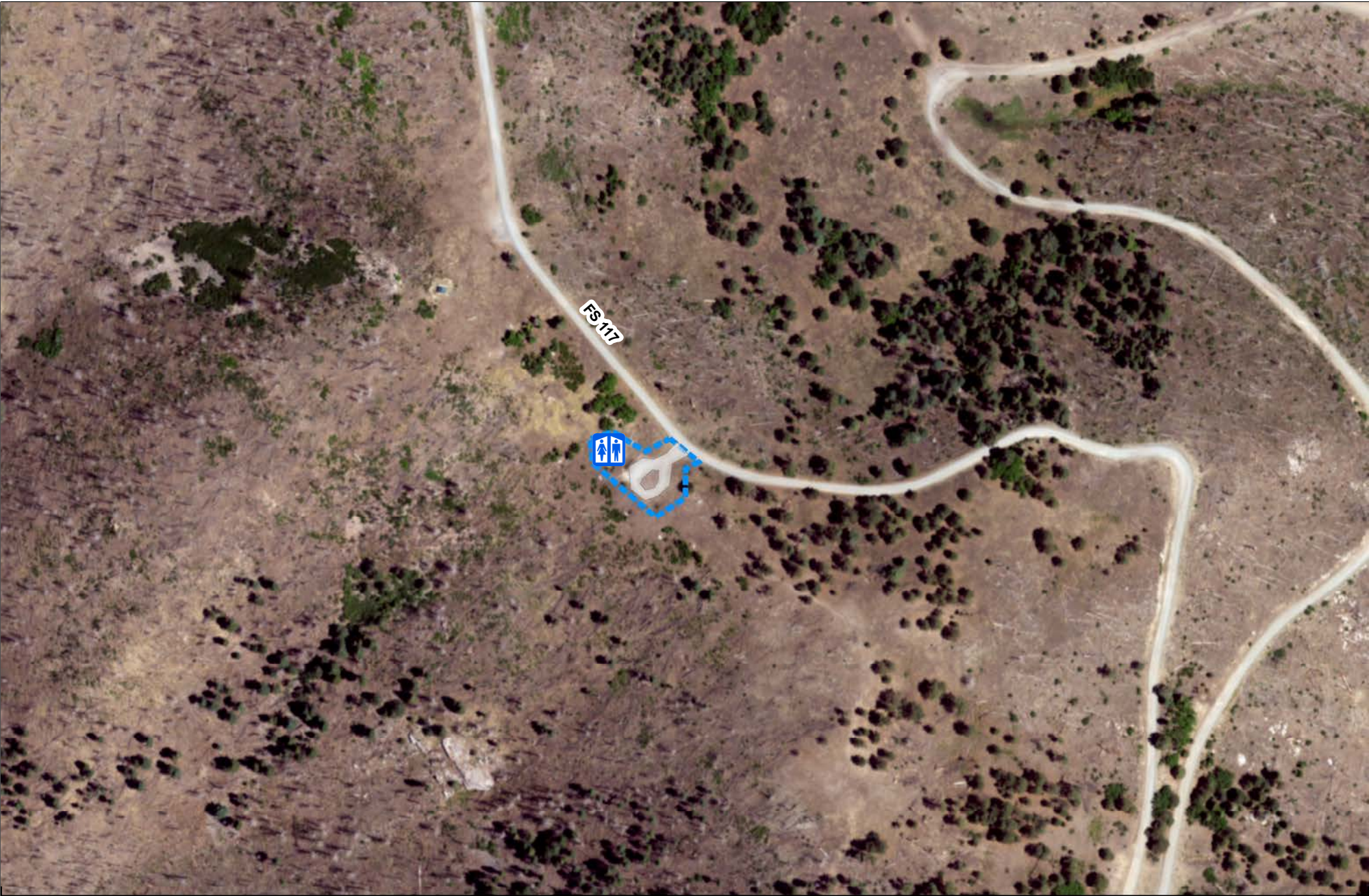


Restrooms



Permit Boundary





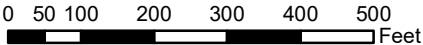
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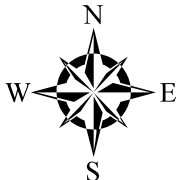


Restrooms



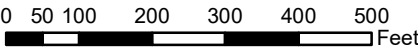
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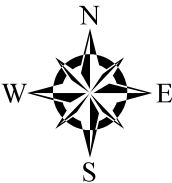
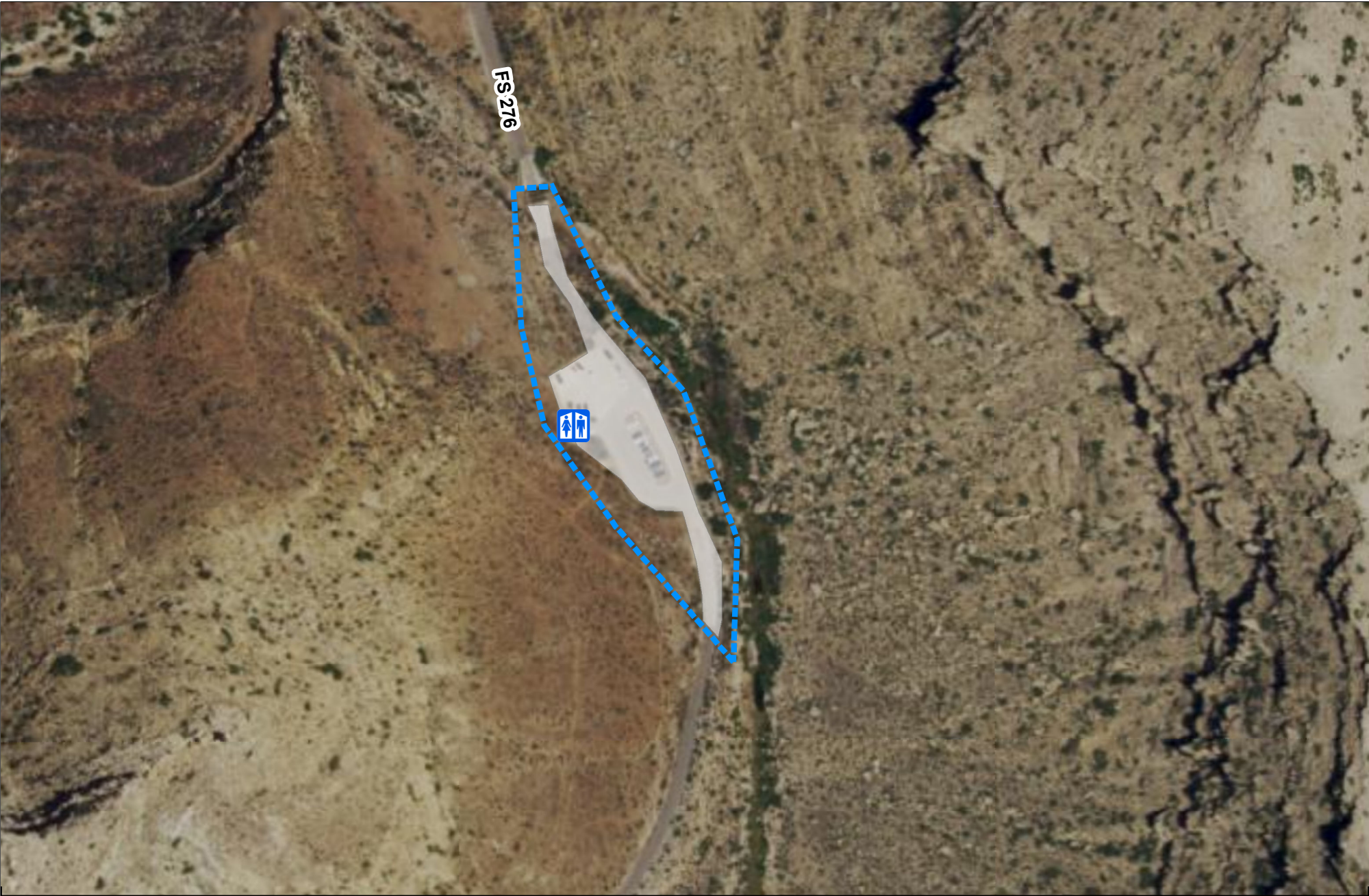




Legend

- Corrals
- Host Site
- Kiosk
- Parking
- Pavilion
- Picnic Table(s)
- Restrooms
- Shelter
- Trail
- Permit Boundary

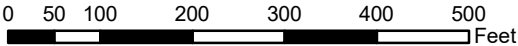




Legend

 Permit Boundary

 Restrooms





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Prospectus for Campground and Related Granger-Thye Concessions
Lincoln National Forest

Appendix 3: Inventory of Government-Furnished Property

Inventory of Government-Furnished Property

The Federal Government owns the improvements within all the developed recreation sites. Included in the following inventory are the description, quantity, and the estimated replacement cost of the applicable property.

Please note that it is the policy of the Forest Service (FSM 2330.5) to provide universally designed recreation sites, facilities and constructed features through the use of designs that accommodate most people, including people with disabilities, while maintaining the setting. For example, all picnic tables, fire rings, toilets structures, etc., that are purchased or constructed, are now to be accessible, so that any person can use those facilities, wherever they are located. Replacement costs use the cost of accessible items where applicable.

The inventory listed below is from generally reliable sources, but no warranty is made as to its accuracy. A final inventory list will be attached to the permit once reviewed by the holder and forest.

Table 1. Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
APACHE	BARRIER	WHEEL STOP	EACH	24	\$182.90	\$4,389.60	
APACHE	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	APACHE TOILET 1 CONCRETE
APACHE	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	APACHE TOILET 2 CONCRETE
APACHE	CULVERT	STANDARD	LN FT	45	\$37.76	\$1,699.20	
APACHE	FIRE_DEVICE	FIRE RING	EACH	26	\$1,357.00	\$35,282.00	
APACHE	GATE	PIPE	EACH	1	\$2,731.70	\$2,731.70	ROAD GATES STEEL
APACHE	MISC_RECREATION	FEE STATION	EACH	1	\$2,596.00	\$2,596.00	
APACHE	MISC_RECREATION	HOST SITE	EACH	1	\$10,637.70	\$10,637.70	
APACHE	MISC_RECREATION	PATHWAY	SQ FT	215	\$1.59	\$341.85	NATIVE MAT. Length=215 ft, Width=1 ft

Appendix 3: Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
APACHE	MISC_RECREATION_UNIT	ACCESSIBLE/SOCIAL IMPACT AREA	SQ FT	10400	\$1.18	\$12,272.00	GRAVEL Length=10400 ft, Width=1 ft
APACHE	SIGN	VISITOR INFORMATION	SQ FT	1	\$59.00	\$59.00	ACCESSIBILITY SIGN ALUMINUM Height=12 in, Width=12 in
APACHE	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS (SINGLE SIDED)
APACHE	SIGN	VISITOR INFORMATION	SQ FT	40	\$59.00	\$2,360.00	INFO. BOARDS (NOT FEE STATIONS) REDWOOD Height=480 in, Width=12 in
APACHE	SIGN	UNIT MARKER	EACH	26	\$324.50	\$8,437.00	FIBERGLASS
APACHE	TABLE	PICNIC TABLE	EACH	26	\$1,787.70	\$46,480.20	CONC/MAS/STL
APACHE	TABLE	TABLE PAD	EACH	26	\$934.56	\$24,298.56	GRAVEL
ASPEN	BARRIER	PARKING BARRIER	LN FT	40	\$31.86	\$1,274.40	ROCK
ASPEN	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	ASPEN CAMPGROUND TOILET
ASPEN	BUILDING	SERVICE	SQ FT	950	\$110.36	\$104,842.00	ASPEN PAVILION
ASPEN	EROSION_CONTROL_DEVICE	RETAINING WALL	CU FT	60	\$89.68	\$5,380.80	CONCRETE Depth=12 in, Height=24 in, Length=30 ft
ASPEN	FIRE_DEVICE	COMBINATION FIRE RING/GRILL	EACH	1	\$1,032.50	\$1,032.50	
ASPEN	FIRE_DEVICE	FIRE RING	EACH	3	\$1,357.00	\$4,071.00	
ASPEN	FIRE_DEVICE	PEDESTAL GRILL, LARGE	EACH	2	\$1,917.50	\$3,835.00	COMMERCIAL PEDESTAL GRILLS (GROUP)
ASPEN	GATE	PIPE	EACH	1	\$2,731.70	\$2,731.70	ROAD GATES STEEL

Appendix 3: Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
ASPEN	MISC_RECREATION	PATHWAY	SQ FT	150	\$2.36	\$354.00	ROAD BASE Length=150 ft, Width=1 ft
ASPEN	MISC_RECREATION_UNIT	BEAR BOX	EACH	1	\$1,504.50	\$1,504.50	
ASPEN	MISC_RECREATION_UNIT	DOUBLE BEAR BOX	EACH	1			
ASPEN	SANITATION	DUMPSTER, LARGE	EACH	1	\$5,900.00	\$5,900.00	
ASPEN	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS (SINGLE SIDED)
ASPEN	TABLE	PICNIC TABLE	EACH	8	\$1,947.00	\$15,576.00	EXPANDED METAL
ASPEN	TABLE	PICNIC TABLE	EACH	2	\$1,947.00	\$3,894.00	ALUMINUM TABLES EXPANDED METAL
ASPEN	TABLE	PICNIC TABLE	EACH	5	\$1,787.70	\$8,938.50	CONC/MAS/STL
BLACK BEAR	BARRIER	WHEEL STOP	EACH	17	\$182.90	\$3,109.30	
BLACK BEAR	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	BLACK BEAR GROUP CG TOILET
BLACK BEAR	BUILDING	SERVICE	SQ FT	950	\$110.36	\$104,842.00	BLACK BEAR PAVILION
BLACK BEAR	FENCE	NON-RANGE, RECREATION	LN FT	380	\$10.03	\$3,811.40	TREATED LUMBER
BLACK BEAR	FENCE	NON-RANGE, RECREATION	LN FT	300	\$10.03	\$3,009.00	TREATED LUMBER
BLACK BEAR	FIRE_DEVICE	COMBINATION FIRE RING/GRILL	EACH	5	\$1,032.50	\$5,162.50	
BLACK BEAR	FIRE_DEVICE	PEDESTAL GRILL, LARGE	EACH	2	\$1,917.50	\$3,835.00	
BLACK BEAR	GATE	PIPE	EACH	1	\$2,731.70	\$2,731.70	ROAD GATES STEEL

Appendix 3: Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
BLACK BEAR	MISC_RECREATION	OTHER	EACH	3	\$118.00	\$354.00	BENCHES
BLACK BEAR	MISC_RECREATION	PATHWAY	SQ FT	50	\$2.36	\$118.00	ROAD BASE Length=25 ft, Width=2 ft
BLACK BEAR	MISC_RECREATION_UNIT	BEAR BOX	EACH	1	\$1,504.50	\$1,504.50	
BLACK BEAR	SANITATION	GARBAGE CAN	EACH	2	\$47.20	\$94.40	
BLACK BEAR	SIGN	VISITOR INFORMATION	SQ FT	12	\$59.00	\$708.00	INFORMATION BOARD ANODIZED ALUMINUM Height=48 in, Width=36 in
BLACK BEAR	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS (DOUBLE SIDED)
BLACK BEAR	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS (SINGLE SIDED)
BLACK BEAR	TABLE	PICNIC TABLE	EACH	3	\$1,787.70	\$5,363.10	CONC/MAS/STL
BLACK BEAR	TABLE	PICNIC TABLE	EACH	2	\$1,947.00	\$3,894.00	ALUMINUM TABLES EXPANDED METAL
BLACK BEAR	TABLE	PICNIC TABLE	EACH	8	\$1,947.00	\$15,576.00	EXPANDED METAL
DEERHEAD	BARRIER	PARKING BARRIER	LN FT	895	\$35.40	\$31,683.00	LOG W/WOOD POSTS
DEERHEAD	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	DEERHEAD CG TOILET NO. 1 EAST
DEERHEAD	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	DEERHEAD CG TOILET NO. 2 CENTER
DEERHEAD	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	DEERHEAD CG TOILET NO. 3 WEST
DEERHEAD	BUILDING	STORAGE	SQ FT	10			D HEAD FC STORAGE
DEERHEAD	EROSION_CONTROL_DEVICE	RETAINING WALL	CU FT	1183	\$59.00	\$69,797.00	WOOD Depth=12 in, Height=12 in, Length=1183 ft

Appendix 3: Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
DEERHEAD	EROSION_CONTR OL_DEVICE	RETAINING WALL	CU FT	30	\$59.00	\$1,770.00	WOOD Depth=12 in, Height=12 in, Length=30 ft
DEERHEAD	FIRE_DEVICE	COMBINATION FIRE RING/GRILL	EACH	25	\$1,032.50	\$25,812.50	
DEERHEAD	FIRE_DEVICE	FIRE RING	EACH	4	\$1,357.00	\$5,428.00	
DEERHEAD	GATE	PIPE	EACH	2	\$2,731.70	\$5,463.40	ROAD GATES STEEL
DEERHEAD	MISC_RECREATIO N	PATHWAY	SQ FT	994	\$1.59	\$1,580.46	NATIVE MAT. Length=994 ft, Width=1 ft
DEERHEAD	MISC_RECREATIO N	FEE STATION	EACH	1	\$2,596.00	\$2,596.00	
DEERHEAD	MISC_RECREATIO N	HOST SITE	EACH	2	\$10,637.70	\$21,275.40	
DEERHEAD	MISC_RECREATIO N_UNIT	ACCESSIBLE/SOCIAL IMPACT AREA	SQ FT	14400	\$1.18	\$16,992.00	GRAVEL Length=14400 ft, Width=1 ft
DEERHEAD	MISC_RECREATIO N_UNIT	TRAILER/RV HOOKUP	EACH	2	\$1,498.60	\$2,997.20	SEWER, WATER, ELECTRICITY, PHONE
DEERHEAD	MISC_RECREATIO N_UNIT	TENT PAD	EACH	27	\$696.20	\$18,797.40	
DEERHEAD	MISC_RECREATIO N_UNIT	ACCESSIBLE/SOCIAL IMPACT AREA	SQ FT	27	\$3.93	\$106.11	PARKING, SPURS, PED ROUTES FOR SITE ASPHALT Length=9 ft, Width=3 ft
DEERHEAD	SANITATION	GARBAGE CAN, ACCESSIBLE	EACH	7	\$619.50	\$4,336.50	
DEERHEAD	SANITATION	GARBAGE BIN	EACH	2	\$802.40	\$1,604.80	
DEERHEAD	SANITATION	GARBAGE PAD	EACH	7	\$180.00	\$1,260.00	
DEERHEAD	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS (DOUBLE SIDED)

Appendix 3: Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
DEERHEAD	SIGN	VISITOR INFORMATION	SQ FT	96	\$59.00	\$5,664.00	INFO. BOARDS (NOT FEE STATIONS) REDWOOD Height=1152 in, Width=12 in
DEERHEAD	SIGN	UNIT MARKER	EACH	19	\$324.50	\$6,165.50	FIBERGLASS
DEERHEAD	TABLE	PICNIC TABLE	EACH	5	\$1,787.70	\$8,938.50	CONC/MAS/STL
DEERHEAD	TABLE	PICNIC TABLE	EACH	16	\$1,947.00	\$31,152.00	EXPANDED METAL
DEERHEAD	TABLE	TABLE PAD	EACH	19	\$934.56	\$17,756.64	GRAVEL
JAMES CANYON	BARRIER	PARKING BARRIER	LN FT	586	\$31.86	\$18,669.96	ROCK
JAMES CANYON	BARRIER	PARKING BARRIER	LN FT	110	\$20.06	\$2,206.60	WOOD, TREATED SAWN
JAMES CANYON	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	JAMES CANYON CAMPGROUND TOILET
JAMES CANYON	BUILDING	SERVICE	SQ FT	50	\$165.54	\$8,277.00	J CANYON FC PAVILION
JAMES CANYON	CULVERT	STANDARD	LN FT	53	\$37.76	\$2,001.28	
JAMES CANYON	EROSION_CONTR OL_DEVICE	STAIRWAY	SQ FT	125	\$169.63	\$21,203.75	WOOD Length=125 ft, Width=12 in
JAMES CANYON	MISC_RECREATIO N_UNIT	TENT PAD	EACH	6	\$696.20	\$4,177.20	
JAMES CANYON	FIRE_DEVICE	COMBINATION FIRE RING/GRILL	EACH	6	\$1,032.50	\$6,195.00	
JAMES CANYON	GATE	PIPE	EACH	1	\$2,731.70	\$2,731.70	ROAD GATES STEEL
JAMES CANYON	MISC_RECREATIO N	PATHWAY	SQ FT	385	\$1.59	\$612.15	NATIVE MAT. Length=385 ft, Width=1 ft
JAMES CANYON	MISC_RECREATIO N_UNIT	ACCESSIBLE/SOCIAL IMPACT AREA	SQ FT	2800	\$1.18	\$3,304.00	GRAVEL Length=2800 ft, Width=1 ft

Appendix 3: Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
JAMES CANYON	PATHWAY_BRIDGE	NOT IDENTIFIED	SQ FT	320	\$100.80	\$32,256.00	
JAMES CANYON	SANITATION	GARBAGE CAN	EACH	4	\$47.20	\$188.80	
JAMES CANYON	SANITATION	GARBAGE PAD	EACH	2	\$180.00	\$360.00	
JAMES CANYON	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS (DOUBLE SIDED)
JAMES CANYON	SIGN	VISITOR INFORMATION	SQ FT	1	\$59.00	\$59.00	INFO. BOARDS (NOT FEE STATIONS) REDWOOD Height=12 in, Width=12 in
JAMES CANYON	TABLE	PICNIC TABLE	EACH	5	\$1,787.70	\$8,938.50	CONC/MAS/STL
JAMES CANYON	TABLE	TABLE PAD	EACH	5	\$123.90	\$619.50	LOW ROS
KARR CANYON LOWER	BARRIER	PARKING BARRIER	LN FT	195	\$20.06	\$3,911.70	BOLLARDS WOOD, TREATED SAWN
KARR CANYON LOWER	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	LOWER KARR CAMPGROUND TOILET
KARR CANYON LOWER	EROSION_CONTROL_DEVICE	RETAINING WALL	CU FT	70	\$89.68	\$6,277.60	CONCRETE Depth=12 in, Height=12 in, Length=70 ft
KARR CANYON LOWER	FIRE_DEVICE	COMBINATION FIRE RING/GRILL	EACH	6	\$1,032.50	\$6,195.00	
KARR CANYON LOWER	GATE	OTHER	EACH	1	\$1,770.00	\$1,770.00	ROAD GATES WOOD, TREATED SAWN
KARR CANYON LOWER	MISC_RECREATION	PATHWAY	SQ FT	700	\$1.59	\$1,113.00	NATIVE MAT. Length=700 ft, Width=1 ft
KARR CANYON LOWER	MISC_RECREATION_UNIT	ACCESSIBLE/SOCIAL IMPACT AREA	SQ FT	1200	\$1.18	\$1,416.00	GRAVEL Length=1200 ft, Width=1 ft
KARR CANYON LOWER	PATHWAY_BRIDGE	NOT IDENTIFIED	SQ FT	150	\$100.80	\$15,120.00	
KARR CANYON LOWER	SANITATION	GARBAGE PAD	EACH	2	\$180.00	\$360.00	GARBAGE PAD

Appendix 3: Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
KARR CANYON LOWER	MISC_RECREATION_UNIT	DOUBLE BEAR GARBAGE BINS	EACH	2			
KARR CANYON LOWER	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS (SINGLE SIDED)
KARR CANYON LOWER	TABLE	PICNIC TABLE	EACH	3	\$1,947.00	\$5,841.00	EXPANDED METAL
KARR CANYON LOWER	TABLE	PICNIC TABLE	EACH	3	\$1,787.70	\$5,363.10	CONC/MAS/STL
KARR CANYON LOWER	TABLE	TABLE PAD	EACH	6	\$123.90	\$743.40	LOW ROS
KARR CANYON LOWER	WATER_SYSTEM		EACH	1	\$200,000.00	\$200,000.00	INOPERABLE
KARR CANYON UPPER	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	UPPER KARR CAMPGROUND TOILET
KARR CANYON UPPER	EROSION_CONTROL_DEVICE	RETAINING WALL	CU FT	120	\$59.00	\$7,080.00	WOOD Depth=12 in, Height=12 in, Length=120 ft
KARR CANYON UPPER	FENCE	NON-RANGE, RECREATION	LN FT	1025	\$10.03	\$10,280.75	RAIL TREATED LUMBER
KARR CANYON UPPER	FIRE_DEVICE	COMBINATION FIRE RING/GRILL	EACH	6	\$1,032.50	\$6,195.00	
KARR CANYON UPPER	GATE	OTHER	EACH	1	\$1,770.00	\$1,770.00	ROAD GATES WOOD, TREATED SAWN
KARR CANYON UPPER	MISC_RECREATION	PATHWAY	SQ FT	685	\$3.93	\$2,692.05	ASPHALT Length=685 ft, Width=1 ft
KARR CANYON UPPER	MISC_RECREATION	INFORMATION KIOSK	SQ FT	30	\$81.13	\$2,433.90	MDO PLYWOOD Height=360 in, Width=12 in
KARR CANYON UPPER	SANITATION	GARBAGE PAD	EACH	2	\$180.00	\$360.00	
KARR CANYON UPPER	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS (DOUBLE SIDED)
KARR CANYON UPPER	SIGN	VISITOR INFORMATION	SQ FT	20	\$59.00	\$1,180.00	INFO. BOARDS (NOT FEE STATIONS) REDWOOD Height=240 in, Width=12 in

Appendix 3: Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
KARR CANYON UPPER	TABLE	PICNIC TABLE	EACH	6	\$1,947.00	\$11,682.00	EXPANDED METAL
LOWER FIR	BARRIER	PARKING BARRIER	LN FT	350	\$31.86	\$11,151.00	ROCK
LOWER FIR	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	FIR LWR GC TOILET
LOWER FIR	BUILDING	SERVICE	SQ FT	1800	\$110.36	\$198,648.00	FIR LWR GC PAVILION
LOWER FIR	FENCE	NON-RANGE, RECREATION	LN FT	1000	\$10.03	\$10,030.00	SMOOTH WIRE BARBED WIRE
LOWER FIR	FENCE	NON-RANGE, RECREATION	LN FT	24	\$10.03	\$240.72	WOOD TREATED LUMBER
LOWER FIR	FIRE_DEVICE	COMBINATION FIRE RING/GRILL	EACH	2	\$1,032.50	\$2,065.00	
LOWER FIR	FIRE_DEVICE	PEDESTAL GRILL, LARGE	EACH	1	\$1,917.50	\$1,917.50	
LOWER FIR	GATE	OTHER	EACH	1	\$1,770.00	\$1,770.00	ROAD GATES WOOD, TREATED SAWN
LOWER FIR	MISC_RECREATION	OTHER	EACH	8	\$118.00	\$944.00	BENCHES
LOWER FIR	MISC_RECREATION	PATHWAY	SQ FT	500	\$1.59	\$795.00	NATIVE MAT. Length=500 ft, Width=1 ft
LOWER FIR	SANITATION	BEAR BOX	EACH	1	\$1,504.50	\$1,504.50	
LOWER FIR	SANITATION	DUMPSTER, LARGE	EACH	1	\$5,900.00	\$5,900.00	
LOWER FIR	SANITATION	GARBAGE PAD	EACH	4	\$180.00	\$720.00	
LOWER FIR	MISC_RECREATION_UNIT	DOUBLE BEAR GARBAGE CAN	EACH	2			
LOWER FIR	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS (DOUBLE SIDED)

Appendix 3: Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
LOWER FIR	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS (SINGLE SIDED)
LOWER FIR	TABLE	PICNIC TABLE	EACH	8	\$1,947.00	\$15,576.00	EXPANDED METAL
OAK GROVE	BARRIER	WHEEL STOP	EACH	13	\$182.90	\$2,377.70	
OAK GROVE	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	OAK G FC TOILET 1
OAK GROVE	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	OAK G FC TOILET 2
OAK GROVE	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	OAK G FC TOILET 3
OAK GROVE	EROSION_CONTR OL_DEVICE	RETAINING WALL	CU FT	30	\$59.00	\$1,770.00	WOOD Depth=6 in, Height=36 in, Length=20 ft
OAK GROVE	FIRE_DEVICE	FIRE RING	EACH	2	\$1,357.00	\$2,714.00	CAMPFIRE CIRCLES (GROUP)
OAK GROVE	FIRE_DEVICE	FIRE RING	EACH	30	\$1,357.00	\$40,710.00	
OAK GROVE	FIRE_DEVICE	PEDESTAL GRILL, SMALL	EACH	1	\$1,020.70	\$1,020.70	
OAK GROVE	GATE	PIPE	EACH	2	\$2,731.70	\$5,463.40	ROAD GATES STEEL
OAK GROVE	MISC_RECREATIO N	FEE STATION	EACH	1	\$2,596.00	\$2,596.00	
OAK GROVE	MISC_RECREATIO N	HOST SITE	EACH	1	\$10,637.70	\$10,637.70	
OAK GROVE	MISC_RECREATIO N	INFORMATION KIOSK	SQ FT	24	\$81.13	\$1,947.12	ALUMINUM Height=72 in, Width=48 in
OAK GROVE	MISC_RECREATIO N_UNIT	TENT PAD	EACH	30	\$696.20	\$20,886.00	
OAK GROVE	MISC_RECREATIO N_UNIT	SUN/WIND SHELTER	EACH	1	\$1,893.90	\$1,893.90	HOST PAVILION STEEL

Appendix 3: Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
OAK GROVE	SANITATION	GARBAGE BIN	EACH	6	\$802.40	\$4,814.40	
OAK GROVE	SIGN	VISITOR INFORMATION	SQ FT	64	\$59.00	\$3,776.00	INFO. BOARDS (NOT FEE STATIONS) HDO PLYWOOD Height=768 in, Width=12 in
OAK GROVE	SIGN	GUIDE	EACH	9	\$572.30	\$5,150.70	HDO PLYWOOD
OAK GROVE	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS (DOUBLE SIDED)
OAK GROVE	TABLE	PICNIC TABLE	EACH	30	\$1,787.70	\$53,631.00	CONC/MAS/STL
OAK GROVE	TABLE	TABLE PAD	EACH	30	\$934.56	\$28,036.80	GRAVEL
PINES	BARRIER	PARKING BARRIER	LN FT	140	\$35.40	\$4,956.00	LOG W/WOOD POSTS
PINES	MISC_RECREATION_UNIT	TENT PAD	EACH	28	\$696.20	\$19,493.6	
PINES	BARRIER	PARKING BARRIER	LN FT	242	\$31.86	\$7,710.12	ROCK
PINES	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	PINES FC TOILET 1
PINES	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	PINES FC TOILET 2
PINES	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	PINES FC TOILET 3
PINES	BUILDING	SERVICE	SQ FT	256	\$110.36	\$28,252.16	PINES FC PAVILION
PINES	CULVERT	STANDARD	LN FT	40	\$37.76	\$1,510.40	
PINES	EROSION_CONTROL_DEVICE	RETAINING WALL	CU FT	235	\$59.00	\$13,865.00	WOOD Depth=12 in, Height=12 in, Length=235 ft
PINES	FENCE	NON-RANGE, RECREATION	LN FT	72	\$10.03	\$722.16	RAIL TREATED LUMBER

Appendix 3: Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
PINES	FIRE_DEVICE	COMBINATION FIRE RING/GRILL	EACH	24	\$1,032.50	\$24,780.00	
PINES	GATE	OTHER	EACH	1	\$1,770.00	\$1,770.00	ROAD GATES WOOD, TREATED SAWN
PINES	GATE	PIPE	EACH	1	\$2,731.70	\$2,731.70	ROAD GATES STEEL
PINES	MISC_RECREATION	PATHWAY	SQ FT	1548	\$2.36	\$3,653.28	ROAD BASE Length=1548 ft, Width=1 ft
PINES	MISC_RECREATION	FEE STATION	EACH	1	\$2,596.00	\$2,596.00	
PINES	MISC_RECREATION	HOST SITE	EACH	1	\$10,637.70	\$10,637.70	
PINES	SANITATION	DUMPSTER, LARGE	EACH	1	\$5,900.00	\$5,900.00	
PINES	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS (DOUBLE SIDED)
PINES	SIGN	VISITOR INFORMATION	SQ FT	104	\$59.00	\$6,136.00	INFO. BOARDS (NOT FEE STATIONS) REDWOOD Height=1248 in, Width=12 in
PINES	TABLE	PICNIC TABLE	EACH	26	\$1,787.70	\$46,480.20	CONC/MAS/STL
PINES	TABLE	PICNIC TABLE	EACH	1	\$1,947.00	\$1,947.00	EXPANDED METAL
PINES	WASTEWATER_SYSTEM	SEPTIC SYSTEMS	EACH	1	\$20,000.00	\$20,000.00	PINES HOST SYSTEM
SADDLE	BARRIER	WHEEL STOP	EACH	17	\$182.90	\$3,109.30	
SADDLE	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	SADDLE FC TOILET 3
SADDLE	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	SADDLE FC TOILET 4
SADDLE	CULVERT	STANDARD	LN FT	146	\$37.76	\$5,512.96	

Appendix 3: Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
SADDLE	FIRE_DEVICE	COMBINATION FIRE RING/GRILL	EACH	17	\$1,032.50	\$17,552.50	
SADDLE	GATE	PIPE	EACH	4	\$2,731.70	\$10,926.80	ROAD GATES STEEL
SADDLE	MISC_RECREATION	FEE STATION	EACH	1	\$2,596.00	\$2,596.00	
SADDLE	MISC_RECREATION	HOST SITE	EACH	1	\$10,637.70	\$10,637.70	
SADDLE	MISC_RECREATION_UNIT	TENT PAD	EACH	16	\$696.20	\$11,139.20	
SADDLE	MISC_RECREATION_UNIT	ACCESSIBLE/SOCIAL IMPACT AREA	SQ FT	6800	\$1.18	\$8,024.00	GRAVEL Length=6800 ft, Width=1 ft
SADDLE	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS (SINGLE SIDED)
SADDLE	SIGN	VISITOR INFORMATION	SQ FT	40	\$59.00	\$2,360.00	INFO. BOARDS (NOT FEE STATIONS) REDWOOD Height=480 in, Width=12 in
SADDLE	SIGN	UNIT MARKER	EACH	17	\$324.50	\$5,516.50	FIBERGLASS
SADDLE	TABLE	PICNIC TABLE	EACH	17	\$1,787.70	\$30,390.90	CONC/MAS/STL
SILVER	BARRIER	WHEEL STOP	EACH	31	\$182.90	\$5,669.90	
SILVER	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	SLVR FC TOILET 1 CONCRETE
SILVER	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	SLVR FC TOILET 2 CONCRETE
SILVER	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	SLVR FC TOILET 3 CONCRETE
SILVER	BUILDING	STORAGE	SQ FT	80			SLVR OF STORAGE WOOD
SILVER	CULVERT	STANDARD	LN FT	50	\$37.76	\$1,888.00	

Appendix 3: Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
SILVER	FIRE_DEVICE	COMBINATION FIRE RING/GRILL	EACH	31	\$1,032.50	\$32,007.50	
SILVER	FIRE_DEVICE	PEDESTAL GRILL, SMALL	EACH	1	\$1,020.70	\$1,020.70	
SILVER	GATE	PIPE	EACH	1	\$2,731.70	\$2,731.70	ROAD GATES STEEL
SILVER	MISC_RECREATION	PATHWAY	SQ FT	96	\$1.59	\$152.64	NATIVE MAT. Length=96 ft, Width=1 ft
SILVER	MISC_RECREATION	FEE STATION	EACH	1	\$2,596.00	\$2,596.00	
SILVER	MISC_RECREATION	HOST SITE	EACH	1	\$10,637.70	\$10,637.70	
SILVER	MISC_RECREATION_UNIT	TENT PAD	EACH	30	\$696.20	\$20,886.00	
SILVER	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS (SINGLE SIDED)
SILVER	SIGN	VISITOR INFORMATION	SQ FT	22	\$59.00	\$1,298.00	INFO. BOARDS (NOT FEE STATIONS) REDWOOD Height=264 in, Width=12 in
SILVER	SIGN	UNIT MARKER	EACH	31	\$324.50	\$10,059.50	FIBERGLASS
SILVER	TABLE	PICNIC TABLE	EACH	31	\$1,787.70	\$55,418.70	CONC/MAS/STL
SILVER OVERFLOW	BARRIER	PARKING BARRIER	LN FT	74	\$31.86	\$2,357.64	BOULDERS ROCK
SILVER OVERFLOW	BARRIER	PARKING BARRIER	LN FT	165	\$20.06	\$3,309.90	WOOD, TREATED SAWN
SILVER OVERFLOW	BARRIER	PARKING BARRIER	LN FT	50	\$35.40	\$1,770.00	BOLLARDS CONCRETE
SILVER OVERFLOW	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	SLVR OF FC TOILET
SILVER OVERFLOW	BUILDING	OTHER INSTITUTIONAL USES	SQ FT	300	\$329.84	\$98,952.00	SLVR OF SHOWER

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
SILVER OVERFLOW	BUILDING	SERVICE	SQ FT	49			SSA ENTRY BUILDING
SILVER OVERFLOW	CULVERT	STANDARD	LN FT	97	\$37.76	\$3,662.72	
SILVER OVERFLOW	EROSION_CONTR OL_DEVICE	RETAINING WALL	CU FT	25	\$59.00	\$1,475.00	WOOD Depth=12 in, Height=12 in, Length=25 ft
SILVER OVERFLOW	EROSION_CONTR OL_DEVICE	STAIRWAY	SQ FT	20	\$169.63	\$3,392.60	WOOD Length=20 ft, Width=12 in
SILVER OVERFLOW	FIRE_DEVICE	COMBINATION FIRE RING/GRILL	EACH	3	\$1,032.50	\$3,097.50	
SILVER OVERFLOW	GATE	PIPE	EACH	3	\$2,731.70	\$8,195.10	ROAD GATES STEEL
SILVER OVERFLOW	MISC_RECREATIO N	FEE STATION	EACH	1	\$2,596.00	\$2,596.00	
SILVER OVERFLOW	MISC_RECREATIO N	HOST SITE	EACH	2	\$10,637.70	\$21,275.4	
SILVER OVERFLOW	MISC_RECREATIO N	INFORMATION KIOSK	SQ FT	24	\$81.13	\$1,947.12	ALUMINUM Height=72 in, Width=48 in
SILVER OVERFLOW	MISC_RECREATIO N_UNIT	TRAILER/RV HOOKUP	EACH	1	\$1,498.60	\$1,498.60	SEWER, WATER, ELECTRICITY, PHONE
SILVER OVERFLOW	SANITATION	DUMP STATION, TRAILER	EACH	1	\$22,066.00	\$22,066.00	
SILVER OVERFLOW	SANITATION	DUMPSTER, LARGE	EACH	3	\$5,900.00	\$17,700.00	
SILVER OVERFLOW	SANITATION	GARBAGE PAD	EACH	3	\$180.00	\$540.00	
SILVER OVERFLOW	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS (DOUBLE SIDED)
SILVER OVERFLOW	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS (SINGLE SIDED)
SILVER OVERFLOW	SIGN	VISITOR INFORMATION	SQ FT	20	\$59.00	\$1,180.00	INFO. BOARDS (NOT FEE STATIONS) REDWOOD Height=240 in, Width=12 in

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
SILVER OVERFLOW	TABLE	PICNIC TABLE	EACH	11	\$1,947.00	\$21,417.00	EXPANDED METAL
SILVER OVERFLOW	WASTEWATER_SY STEM	SEPTIC SYSTEMS	EACH	1	\$20,000.00	\$20,000.00	SILVER OVERFLOW SHOWERS
SILVER OVERFLOW	WASTEWATER_SY STEM	SEPTIC SYSTEMS	EACH	1	\$20,000.00	\$20,000.00	SILVER OVERFLOW RV DUMP
SITTING BULL FALLS	BARRIER	CURB AND GUTTER	LN FT	900	\$42.48	\$38,232.00	
SITTING BULL FALLS	BARRIER	PARKING BARRIER	LN FT	85	\$35.40	\$3,009.00	CONCRETE
SITTING BULL FALLS	BARRIER	WHEEL STOP	EACH	21	\$182.90	\$3,840.90	
SITTING BULL FALLS	BUILDING	SERVICE	SQ FT	792	\$531.96	\$421,312.32	SBF FP TOILET
SITTING BULL FALLS	BUILDING	SERVICE	SQ FT	1269	\$110.36	\$140,046.84	SBF FP RCK PAVILION 1
SITTING BULL FALLS	BUILDING	SERVICE	SQ FT	494	\$110.36	\$54,517.84	SBF FP RCK PAVILION 2
SITTING BULL FALLS	BUILDING	SERVICE	SQ FT	442	\$110.36	\$48,779.12	SBF FP PAVILION 1
SITTING BULL FALLS	BUILDING	SERVICE	SQ FT	442	\$110.36	\$48,779.12	SBF FP PAVILION 2
SITTING BULL FALLS	BUILDING	SERVICE	SQ FT	442	\$110.36	\$48,779.12	SBF FP PAVILION 3
SITTING BULL FALLS	BUILDING	SERVICE	SQ FT	442	\$110.36	\$48,779.12	SBF FP PAVILION 4
SITTING BULL FALLS	BUILDING	SERVICE	SQ FT	442	\$110.36	\$48,779.12	SBF FP PAVILION 5
SITTING BULL FALLS	BUILDING	SERVICE	SQ FT	442	\$110.36	\$48,779.12	SBF FP PAVILION 6
SITTING BULL FALLS	BUILDING	SERVICE	SQ FT	442	\$110.36	\$48,779.12	SBF FP PAVILION 7

Appendix 3: Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
SITTING BULL FALLS	BUILDING	SERVICE	SQ FT	442	\$110.36	\$48,779.12	SBF FP PAVILION 8
SITTING BULL FALLS	BUILDING	SERVICE	SQ FT	283	\$110.36	\$31,231.88	SBF FP HOST PAVILION
SITTING BULL FALLS	EROSION_CONTR OL_DEVICE	RIPRAP	CU FT	4600	\$12.98	\$59,708.00	GABION BASKETS Depth=12 in, Height=12 in, Length=4600 ft
SITTING BULL FALLS	EROSION_CONTR OL_DEVICE	STAIRWAY	SQ FT	16	\$76.70	\$1,227.20	CONCRETE Length=16 ft, Width=12 in
SITTING BULL FALLS	FENCE	NON-RANGE, RECREATION	LN FT	2130	\$10.03	\$21,363.90	RAIL TREATED LUMBER
SITTING BULL FALLS	FIRE_DEVICE	PEDESTAL GRILL, SMALL	EACH	23	\$1,020.70	\$23,476.10	
SITTING BULL FALLS	MISC_RECREATIO N	PATHWAY	SQ FT	7111	\$5.02	\$35,697.22	CONCRETE Length=7111 ft, Width=1 ft
SITTING BULL FALLS	MISC_RECREATIO N	SECURITY LIGHT	EACH	1	\$43.66	\$43.66	
SITTING BULL FALLS	MISC_RECREATIO N	FEE STATION	EACH	1	\$2,596.00	\$2,596.00	
SITTING BULL FALLS	MISC_RECREATIO N	HOST SITE	EACH	2	\$10,637.70	\$21,274.20	
SITTING BULL FALLS	MISC_RECREATIO N	INFORMATION KIOSK	SQ FT	70	\$81.13	\$5,679.10	MDO PLYWOOD Height=840 in, Width=12 in
SITTING BULL FALLS	MISC_RECREATIO N_UNIT	SUN/WIND SHELTER	EACH	11	\$3,097.50	\$34,072.50	CONCRETE
SITTING BULL FALLS	MISC_RECREATIO N_UNIT	TRAILER/RV HOOKUP	EACH	1	\$1,498.60	\$1,498.60	SEWER, WATER, ELECTRICITY, PHON)
SITTING BULL FALLS	PATHWAY_BRIDG E	COMPLEX	SQ FT	23.01	\$258.56	\$5,949.47	SITTING BULL FALLS #1
SITTING BULL FALLS	PATHWAY_BRIDG E	COMPLEX	SQ FT	96	\$258.56	\$24,821.76	SITTING BULL FALLS #2
SITTING BULL FALLS	RECORDING_SITE	REGISTRATION BOX, POST-MOUNTED	EACH	1	\$68.44	\$68.44	

Appendix 3: Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
SITTING BULL FALLS	SANITATION	GARBAGE BIN	EACH	2	\$802.40	\$1,604.80	
SITTING BULL FALLS	SANITATION	GARBAGE CAN, ACCESSIBLE	EACH	3	\$619.50	\$1,858.50	
SITTING BULL FALLS	SANITATION	GARBAGE PAD	EACH	3	\$180.00	\$540.00	
SITTING BULL FALLS	SIGN	SITE (ON POSTS)	EACH	2	\$2,832.00	\$5,664.00	ENTRANCE SIGNS (DOUBLE SIDED)
SITTING BULL FALLS	SIGN	VISITOR INFORMATION	SQ FT	20	\$59.00	\$1,180.00	INFO. BOARDS PLEXIGLASS OTHER Height=240 in, Width=12 in
SITTING BULL FALLS	TABLE	BENCH	EACH	4	\$442.50	\$1,770.00	CONC/MAS/STL
SITTING BULL FALLS	TABLE	PICNIC TABLE	EACH	26	\$1,787.70	\$46,480.20	CONC/MAS/STL
SITTING BULL FALLS	TABLE	TABLE PAD	EACH	3	\$934.56	\$2,803.68	GRAVEL
SITTING BULL FALLS	WASTEWATER_SY STEM	SEPTIC SYSTEMS	EACH	1	\$20,000.00	\$20,000.00	SBF FPG SEP SYS
SITTING BULL FALLS	WASTEWATER_SY STEM	SEPTIC SYSTEMS	EACH	1	\$20,000.00	\$20,000.00	SBF FPG HOST SEP SYS
SITTING BULL FALLS	WATER_SYSTEM	WELL	EACH	1	\$75,000.00	\$75,000.00	SITTING BULL FALLS
SKYLINE	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	SKYLINE FC TOILET 1
SKYLINE	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	SKYLINE FC TOILET 2
SKYLINE	EROSION_CONTR OL_DEVICE	RETAINING WALL	CU FT	259	\$89.68	\$23,227.12	CONCRETE Depth=12 in, Height=12 in, Length=259 ft
SKYLINE	FIRE_DEVICE	FIREPLACE	EACH	17	\$4,342.40	\$73,820.80	
SKYLINE	GATE	PIPE	EACH	2	\$2,731.70	\$5,463.40	ROAD GATES STEEL

Appendix 3: Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
SKYLINE	MISC_RECREATION_UNIT	TENT PAD	EACH	17	\$696.20	\$11,835.40	
SKYLINE	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS (SINGLE SIDED)
SKYLINE	SIGN	VISITOR INFORMATION	SQ FT	64	\$59.00	\$3,776.00	INFO. BOARDS (NOT FEE STATIONS) HDO PLYWOOD Height=768 in, Width=12 in
SKYLINE	SIGN	UNIT MARKER	EACH	1	\$354.00	\$354.00	WHITE OAK
SKYLINE	TABLE	PICNIC TABLE	EACH	18	\$1,787.70	\$32,178.60	CONC/MAS/STL
SLEEPY GRASS	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	SLEEPY GRASS PG TOILET
SLEEPY GRASS	CULVERT	STANDARD	LN FT	144	\$37.76	\$5,437.44	
SLEEPY GRASS	FENCE	NON-RANGE, RECREATION	LN FT	200	\$10.03	\$2,006.00	RAIL TREATED LUMBER
SLEEPY GRASS	FENCE	NON-RANGE, RECREATION	LN FT	525	\$10.03	\$5,265.75	WIRE BARBED WIRE
SLEEPY GRASS	FIRE_DEVICE	FIRE RING	EACH	4	\$1,357.00	\$5,428.00	
SLEEPY GRASS	GATE	OTHER	EACH	1	\$1,770.00	\$1,770.00	ROAD GATES WOOD, TREATED SAWN
SLEEPY GRASS	MISC_RECREATION	INFORMATION KIOSK	SQ FT	12	\$81.13	\$973.56	HDO PLYWOOD Height=36 in, Width=48 in
SLEEPY GRASS	MISC_RECREATION_UNIT	SUN/WIND SHELTER	EACH	1	\$1,427.80	\$1,427.80	WOOD
SLEEPY GRASS	TABLE	PICNIC TABLE	EACH	4	\$1,947.00	\$7,788.00	EXPANDED METAL
SLEEPY GRASS	TABLE	TABLE PAD	EACH	4	\$934.56	\$3,738.24	GRAVEL
SLEEPY GRASS CAMPGROUND	EROSION_CONTROL_DEVICE	STAIRWAY	SQ FT	4.2	\$169.63	\$712.45	STAIRWAY

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
SLEEPY GRASS CAMPGROUND	EROSION_CONTR OL_DEVICE	RETAINING WALL	CU FT	130	\$89.68	\$11,651.90	CONCRETE
SLEEPY GRASS CAMPGROUND	EROSION_CONTR OL_DEVICE	RETAINING WALL	CU FT	10.7	\$59.00	\$631.30	WOOD
SLEEPY GRASS CAMPGROUND	BARRIER	PARKING BARRIER	LN FT	412	\$31.86	\$13,126.32	ROCK
SLEEPY GRASS CAMPGROUND	GATE	PIPE	EACH	1	\$2,731.70	\$2,731.70	STEEL
SLEEPY GRASS CAMPGROUND	CULVERT	STANDARD	LN FT	120	\$37.76	\$4,531.20	
SLEEPY GRASS CAMPGROUND	TABLE	PICNIC TABLE	EACH	27	\$1,787.70	\$48,267.9	CONC/MAS/STL
SLEEPY GRASS CAMPGROUND	BARRIER	PARKING BARRIER	LN FT	63	\$35.40	\$2,230.20	LOG W/WOOD POSTS
SLEEPY GRASS CAMPGROUND	MISC_RECREATIO N	PATHWAY	SQ FT	1599	\$1.59	\$2,542.41	NATIVE MAT.
SLEEPY GRASS CAMPGROUND	BUILDING	SERVICE	SQ FT	57	\$531.96	\$30,321.72	SLEEPY GRASS CG TOILET NO. 1
SLEEPY GRASS CAMPGROUND	MISC_RECREATIO N_UNIT	DOUBLE BEAR GARBAGE CAN	EACH	3			
SLEEPY GRASS CAMPGROUND	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS
SLEEPY GRASS CAMPGROUND	MISC_RECREATIO N	FEE STATION	EACH	1	\$2,596.00	\$2,596.00	
SLEEPY GRASS CAMPGROUND	MISC_RECREATIO N	HOST SITE	EACH	1	\$10,637.70	\$10,637.70	
SLEEPY GRASS CAMPGROUND	MISC_RECREATIO N	INFORMATION KIOSK	SQ FT	30	\$81.13	\$2,433.90	ALUMINUM
SLEEPY GRASS CAMPGROUND	BUILDING	SERVICE	SQ FT	57	\$531.96	\$30,321.72	SLEEPY GRASS CG TOILET NO. 2
SLEEPY GRASS CAMPGROUND	BUILDING	SERVICE	SQ FT	57	\$531.96	\$30,321.72	SLEEPY GRASS CG TOILET NO. 3

Appendix 3: Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
SLEEPY GRASS CAMPGROUND	BUILDING	SERVICE	SQ FT	57	\$531.96	\$30,321.72	SLEEPY GRASS CG TOILET NO. 4
SLEEPY GRASS CAMPGROUND	SANITATION	DUMPSTER, LARGE	EACH	2	\$9,646.5	\$19,293.2	
SLEEPY GRASS CAMPGROUND	GATE	PIPE	EACH	1	\$2,731.70	\$2,731.70	STEEL
SLEEPY GRASS CAMPGROUND	BUILDING	STORAGE					
SLEEPY GRASS CAMPGROUND	SANITATION	GARBAGE CAN, ACCESSIBLE	EACH	3	\$619.50	\$1,858.5	
SLEEPY GRASS CAMPGROUND	SIGN	VISITOR INFORMATION	SQ FT	190	\$59.00	\$11,210.00	INFO. BOARDS REDWOOD
SLEEPY GRASS CAMPGROUND	SIGN	UNIT MARKER	EACH	27	\$324.50	\$8,761.50	FIBERGLASS
SLEEPY GRASS CAMPGROUND	FIRE_DEVICE	COMBINATION FIRE RING/GRILL	EACH	20	\$1,032.50	\$20,650	
SLEEPY GRASS CAMPGROUND	DRINKING FOUNTAIN	SERVICE	EACH	1			
SLEEPY GRASS CAMPGROUND	MISC_RECREATION_UNIT	TENT PAD	EACH	21	\$696.20	\$14,620.20	
SLIDE	BARRIER	PARKING BARRIER	LN FT	30	\$35.40	\$1,062.00	LOG W/WOOD POSTS
SLIDE	BARRIER	WHEEL STOP	EACH	19	\$182.90	\$3,475.10	
SLIDE	BUILDING	SERVICE	SQ FT	1200	\$110.36	\$132,432.00	SLIDE GC PAVILION
SLIDE	FENCE	NON-RANGE, RECREATION	LN FT	170	\$21.24	\$3,610.80	WIRE NATIVE WOOD
SLIDE	FIRE_DEVICE	FIRE RING	EACH	1	\$1,357.00	\$1,357.00	CAMPFIRE CIRCLES (GROUP)
SLIDE	FIRE_DEVICE	COMBINATION FIRE RING/GRILL	EACH	5	\$1,032.50	\$5,162.50	

Appendix 3: Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
SLIDE	GATE	OTHER	EACH	1	\$1,770.00	\$1,770.00	ROAD GATES WOOD, TREATED SAWN
SLIDE	MISC_RECREATION	PATHWAY	SQ FT	120	\$2.36	\$283.20	ROAD BASE Length=120 ft, Width=1 ft
SLIDE	BUILDING	SERVICE	SQ FT	57	\$531.96	\$30,321.72	SLIDE CG TOILET NO. 1
SLIDE	MISC_RECREATION_UNIT	BEAR BOX	EACH	1	\$1,504.50	\$1,504.50	
SLIDE	SANITATION	GARBAGE CAN	EACH	3	\$47.20	\$141.60	
SLIDE	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS (DOUBLE SIDED)
SLIDE	SIGN	VISITOR INFORMATION	SQ FT	20	\$59.00	\$1,180.00	INFO. BOARDS (NOT FEE STATIONS) REDWOOD Height=240 in, Width=12 in
SLIDE	TABLE	PICNIC TABLE	EACH	3	\$1,947.00	\$5,841.00	EXPANDED METAL
SLIDE	TABLE	PICNIC TABLE	EACH	5	\$1,787.70	\$8,938.50	CONC/MAS/STL
SLIDE	TABLE	PICNIC TABLE	EACH	2	\$1,947.00	\$3,894.00	ALUMINUM TABLES EXPANDED METAL
THREE RIVERS	BARRIER	WHEEL STOP	EACH	5	\$182.90	\$914.50	
THREE RIVERS	MISC_RECREATION	HOST SITE	EACH	1	\$10,637.70	\$10,637.70	
THREE RIVERS	BUILDING	SERVICE	SQ FT	49	\$531.96	\$26,066.04	THREE RIV FC TOILET 1
THREE RIVERS	BUILDING	SERVICE	SQ FT	49	\$531.96	\$26,066.04	THREE RIV FC TOILET 2
THREE RIVERS	BUILDING	SERVICE	SQ FT	49	\$531.96	\$26,066.04	THREE RIV FC TOILET 3
THREE RIVERS	BUILDING	SERVICE	SQ FT	800	\$110.36	\$88,288.00	THREE RIV FC LRG PAVILION

Appendix 3: Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
THREE RIVERS	BUILDING	SERVICE	SQ FT	144	\$110.36	\$15,891.84	THREE RIV FC SM PAVILION 1
THREE RIVERS	BUILDING	SERVICE	SQ FT	144	\$110.36	\$15,891.84	THREE RIV FC SM PAVILION 2
THREE RIVERS	BUILDING	SERVICE	SQ FT	144	\$110.36	\$15,891.84	THREE RIV FC SM PAVILION 3
THREE RIVERS	BUILDING	SERVICE	SQ FT	144	\$110.36	\$15,891.84	THREE RIV FC SM PAVILION 5
THREE RIVERS	BUILDING	SERVICE	SQ FT	144	\$110.36	\$15,891.84	THREE RIV FC SM PAVILION 6
THREE RIVERS	BUILDING	SERVICE	SQ FT	144	\$110.36	\$15,891.84	THREE RIV FC SM PAVILION 7
THREE RIVERS	BUILDING	SERVICE	SQ FT	144	\$110.36	\$15,891.84	THREE RIV FC SM PAVILION 4
THREE RIVERS	EQUESTRIAN_OH V	CORRAL	EACH	8	\$3,905.80	\$31,246.40	STEEL
THREE RIVERS	MISC_RECREATION_UNIT	TENT PAD	EACH	12	\$696.20	\$8,354.4	
THREE RIVERS	EROSION_CONTR OL_DEVICE	RETAINING WALL	CU FT	75	\$59.00	\$4,425.00	WOOD Depth=12 in, Height=12 in, Length=75 ft
THREE RIVERS	EROSION_CONTR OL_DEVICE	STAIRWAY	SQ FT	83	\$169.63	\$14,079.29	WOOD Length=83 ft, Width=12 in
THREE RIVERS	FIRE_DEVICE	PEDESTAL GRILL, LARGE	EACH	2	\$1,917.50	\$3,835.00	
THREE RIVERS	FIRE_DEVICE	FIRE RING	EACH	12	\$1,357.00	\$16,284.00	
THREE RIVERS	GATE	PIPE	EACH	1	\$2,731.70	\$2,731.70	ROAD GATES STEEL
THREE RIVERS	MISC_RECREATION	PATHWAY	SQ FT	2175	\$2.07	\$4,502.25	DECOMPOSED GRANITE Length=2175 ft, Width=1 ft
THREE RIVERS	MISC_RECREATION_UNIT	SUN/WIND SHELTER	EACH	7	\$1,893.90	\$13,257.30	STEEL

Appendix 3: Inventory of Government-Furnished Property

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
THREE RIVERS	SANITATION	GARBAGE BIN	EACH	12	\$802.40	\$9,628.80	
THREE RIVERS	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS (SINGLE SIDED)
THREE RIVERS	SIGN	VISITOR INFORMATION	SQ FT	82	\$59.00	\$4,838.00	INFO. BOARDS (NOT FEE STATIONS) REDWOOD Height=984 in, Width=12 in
THREE RIVERS	SIGN	UNIT MARKER	EACH	1	\$354.00	\$354.00	WHITE OAK
THREE RIVERS	TABLE	PICNIC TABLE	EACH	20	\$1,787.70	\$35,754.00	CONC/MAS/STL
THREE RIVERS	WATER_SYSTEM	WELL	EACH	1	\$75,000.00	\$75,000.00	
UPPER FIR	BARRIER	PARKING BARRIER	LN FT	250	\$35.40	\$8,850.00	LOG W/WOOD POSTS
UPPER FIR	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	FIR UPR GC TOILET 1
UPPER FIR	BUILDING	SERVICE	SQ FT	204	\$531.96	\$108,519.84	FIR UPR GC TOILET 2
UPPER FIR	BUILDING	SERVICE	SQ FT	2600	\$110.36	\$286,936.00	FIR UPR GC PAVILION
UPPER FIR	FIRE_DEVICE	FIRE RING	EACH	1	\$1,357.00	\$1,357.00	CAMPFIRE CIRCLES (GROUP)
UPPER FIR	FIRE_DEVICE	COMBINATION FIRE RING/GRILL	EACH	2	\$1,032.50	\$2,065.00	
UPPER FIR	FIRE_DEVICE	PEDESTAL GRILL, LARGE	EACH	1	\$1,917.50	\$1,917.50	
UPPER FIR	MISC_RECREATION	OTHER	EACH	26	\$118.00	\$3,068.00	WHEEL STOPS
UPPER FIR	MISC_RECREATION	PATHWAY	SQ FT	146	\$1.59	\$232.14	NATIVE MAT. Length=146 ft, Width=1 ft
MISC_RECREATION_UNIT	DOUBLE BEAR GARBAGE CAN	EACH	2				MISC_RECREATION_UNIT

Site Name	Item	Type	UOM	Quantity	Replacement Cost (each)	Total	Remarks
UPPER FIR	SANITATION	DUMPSTER, LARGE	EACH	1	\$5,900.00	\$5,900.00	
UPPER FIR	SANITATION	GARBAGE PAD	EACH	4	\$180.00	\$720.00	
UPPER FIR	SIGN	SITE (ON POSTS)	EACH	1	\$2,832.00	\$2,832.00	ENTRANCE SIGNS (DOUBLE SIDED)
UPPER FIR	TABLE	BENCH	EACH	16	\$348.10	\$5,569.60	EXPANDED METAL
UPPER FIR	TABLE	PICNIC TABLE	EACH	10	\$1,947.00	\$19,470.00	EXPANDED METAL



Forest Service
U.S. DEPARTMENT OF AGRICULTURE

Prospectus for Campground and Related Granger-Thye Concessions
Lincoln National Forest

Appendix 4: Applicable Forest Orders

Applicable Forest Orders

Included in this appendix are all regionwide and forest wide orders which apply to the Lincoln National Forest. They appear in order by effective date beginning with the most recent. Additional orders, individually specific to each district, are available on the forest webpage: <https://www.fs.usda.gov/r03/lincoln/alerts>. This webpage will also provide the most up to date closures and orders.

Table 1. Applicable Forest Orders.

Effective Date	Order #	Description
December 15, 2025	# 03-08-00-25-001	Camping Stay Limit
November 1, 2024	# 03-08-01-24-007	Snow Play Closure
February 26, 2024	# 03-08-02-24-002	Toboggan Trail (T5003) Closure
December 1, 2023	# 03-08-00-23-002	Occupancy and Use Prohibitions
June 1, 2023	# 03-00-23-001	Fireworks, Explosives and Sparks Restrictions
June 1, 2023	# 03-00-23-002	Motor Vehicle Order Road Restrictions
June 21, 2021	# 03-00-00-21-002	Cannabis Possession Prohibited
Seasonal - monsoon season closure.	# Unassigned	Smokey Bear Ranger District Area/Trails Closure



Forest Service
U.S. DEPARTMENT OF AGRICULTURE

Prospectus for Campground and Related Granger-Thye Concessions
Lincoln National Forest

Appendix 5: Sample Use Report

Daily Use/Fee Report

For: Ranger District National Forest Campground

Key:

Payment Type:

R = Reservation

P = Golden Access / Senior/Access Pass

Ch = Check

C = Cash

Fees Collected:

OV = Overnight Camping

EV = Extra Vehicle

DU = Day Use

O = Other

[illegible]

Monthly or Annual Use/Fee Report

For: Ranger District National Forest
Reporting Period:

Campground	Total # of sites occupied	Total # of people	Percent Occupied	Camping fees collected on site	Fees for other goods & services	# Passes used (Senior / Golden/Access)	Rec.gov fees
<i>Beckett CG</i>	<i>8</i>	<i>18</i>	<i>80%</i>	<i>\$154</i>	<i>\$20</i>	<i>1</i>	<i>\$27</i>
Grand Total							

End of Year Use/Fee Report Only

Total Net Revenue	
Taxes paid	
Annual fees collected under Rec.gov	
Total Gross Revenue	



Forest Service
U.S. DEPARTMENT OF AGRICULTURE

Prospectus for Campground and Related Granger-Thye Concessions
Lincoln National Forest

Appendix 6: Sample Customer Service Comment Card

Customer Service Comment Card

Thank you for camping or visiting this recreation area. Please take a few moments to reflect on your recreation experience. We appreciate you taking time to evaluate, comment or share suggestions.

Drop this off to your host, nearest Forest Service office or mail to: (Permittee Address)

Campground or Recreation Area: _____

Date of Visit: _____ Type of Use (*Check all that apply*):

☐ Camping ☐ Day Use ☐ Fishing ☐ Boating ☐ Hiking ☐ Other _____

Did you reserve a campsite through the reservation company? ☐ Yes ☐ No

	Excellent	Good	Fair	Poor
Employee Courtesy/Attitude				
Employee Knowledge				
Cleanliness of Campsite				
Cleanliness of Facilities				
Fee Payment Procedures				
Price/Value of Campsite				
Information Available/Present				
Sense of Security				
Overall Rating				
If you made reservations:				
Ease of making contact				
Processed in Timely Manner				
Operator Courtesy/Attitude				
Operator Knowledge				
Price/Value of this Service				
Overall Rating				

Please make comments or suggestions on the other side of this form

Name/Address/Phone (Voluntary): _____

Permittee/Company Name is a concessionaire operating and maintaining these facilities under permit issued by the USDA Forest Service.



Forest Service
U.S. DEPARTMENT OF AGRICULTURE

Prospectus for Campground and Related Granger-Thye Concessions
Lincoln National Forest

Appendix 7: Standard Performance Evaluation Form

Campground Concessionaire Performance Evaluation

Forest:	
Ranger District:	
Permit Holder:	
Appraiser:	
Date:	

! Denotes Critical Element

Performance Item	Above Expectations	Meets Expectations	Below Expectations	Unacceptable
1. PERMIT TERMS				
! A. Insurance requirements met	☐	☐	☐	☐
! B. Payments timely	☐	☐	☐	☐
C. Use Reports accurate & timely	☐	☐	☐	☐
! D. Title VI requirements met	☐	☐	☐	☐
E. Advertising & signage acceptable	☐	☐	☐	☐
F. Other permit terms met (specify below)				
Communications	☐	☐	☐	☐
Interpretive Programs	☐	☐	☐	☐
Miscellaneous Sales	☐	☐	☐	☐
Fee-Offset Projects	☐	☐	☐	☐
2. OPERATION & MAINTENANCE PLAN				
! A. O&M Plan properly submitted	☐	☐	☐	☐
! B. Employees qualified and trained	☐	☐	☐	☐
C. Employees knowledgeable of area	☐	☐	☐	☐

Performance Item	Above Expectations	Meets Expectations	Below Expectations	Unacceptable
! D. Ops & maintenance performed correctly and in timely manner	☐	☐	☐	☐
3. PUBLIC SERVICE				
! A. Good PR maintained with Forest visitors	☐	☐	☐	☐
B. Good comments received from visitors	☐	☐	☐	☐
! C. Fees & services provided as represented	☐	☐	☐	☐
D. Proper ID of equipment and staff	☐	☐	☐	☐
E. Visitor compliance with FS regulations obtained	☐	☐	☐	☐
F. Info and signs readable, current, presentable	☐	☐	☐	☐
4. MEANINGFUL MEASURES				
Health and Cleanliness				
! A. Humans free from exposure to human waste	☐	☐	☐	☐
! B. Water and sewage treatment systems in compliance with State and FS standards	☐	☐	☐	☐
C. Garbage does not overflow	☐	☐	☐	☐
D. Garbage containers are animal resistant	☐	☐	☐	☐
E. Litter & waste removal is timely	☐	☐	☐	☐
F. Graffiti removal is timely	☐	☐	☐	☐
G. Toilets & garbage containers free of odors	☐	☐	☐	☐
H. "Pack In/Out" message is posted where used	☐	☐	☐	☐
Setting				
! A. Ecosystem protected against permanent loss	☐	☐	☐	☐
B. Management activities are consistent with desired conditions	☐	☐	☐	☐

Performance Item	Above Expectations	Meets Expectations	Below Expectations	Unacceptable
C. Services & recreation opportunities are consistent with ROS objectives	☐	☐	☐	☐
D. Vegetation management plan adhered to	☐	☐	☐	☐
E. Unacceptable soil compaction, erosion, vegetation loss, etc., prevented or corrected	☐	☐	☐	☐
Safety & Security				
! A. Safety inspections completed & documented	☐	☐	☐	☐
! B. High-risk conditions corrected prior to use	☐	☐	☐	☐
! C. High-risk conditions occurring in season are corrected immediately, or identified, or the site is closed to the public	☐	☐	☐	☐
D. Employees placed where required	☐	☐	☐	☐
E. 36 CFR 261.14 infractions reported promptly	☐	☐	☐	☐
Responsiveness				
! A. Facilities meet Forest Service Outdoor Recreation Accessibility Guidelines (FSORAG)	☐	☐	☐	☐
B. Bulletin boards contain required info and are neat, visible, and easy to read	☐	☐	☐	☐
C. Employees receive appropriate "Good Host" and customer-service training	☐	☐	☐	☐
D. Visitors feel welcome and appreciated	☐	☐	☐	☐
Condition of Facilities				
! A. All facilities functional and in good repair	☐	☐	☐	☐
B. SST toilet standards are met	☐	☐	☐	☐
C. Facilities maintained in condition received	☐	☐	☐	☐
D. Vandalism corrected promptly	☐	☐	☐	☐

Performance Item	Above Expectations	Meets Expectations	Below Expectations	Unacceptable
E. Roads and spurs maintained	☐	☐	☐	☐

Comments and/or corrective actions pertaining to specific items listed above:

Have all “Below Expectations” items from previous performance inspection/appraisal(s) been corrected?

Evaluation and Appraisal Overall Rating:**Above Expectations** ☐**Meets Expectations** ☐**Below Expectations** ☐**Unacceptable** ☐**Note:**

1. If any Critical Element is rated “Below Expectations” the best possible overall rating is Below Expectations.
2. If any Critical Element is rated “Unacceptable” the best possible overall rating is Unacceptable.
3. If one to three other elements are rated “Unacceptable” the best possible overall rating is Below Expectations.
4. If three or more Critical Elements are rated “Below Expectations” or over four other elements are rated “Unacceptable” the best possible rating is Unacceptable.

Below Expectations: The permit holder is given notice regarding which element(s) justify the rating, and if performance in this element(s) is not improved prior to the next rating period, the Below Expectations rating shall be reduced to an Unacceptable rating.

Unacceptable: The permit holder is issued written notice of the Opportunity to Take Corrective Action as stipulated in Section V (C) of the Special-Use Permit. This is the required first step in suspension and/or revocation of use over all or portions of the permit area. In some instances, such as a lack of adequate insurance, safety issues, etc., suspension or revocation may take place immediately.

Signatures:

Print Name:	
Permit Holder Representative	Date

Print Name:	
Forest Representative	Date

The permit holder's signature denotes that the Forest Service representative has discussed this evaluation/appraisal with the permit holder or his/her representative. A signature does not necessarily constitute agreement or acceptance of the rating.



Forest Service
U.S. DEPARTMENT OF AGRICULTURE

Prospectus for Campground and Related Granger-Thye Concessions
Lincoln National Forest

Appendix 8: FSM 2342.1, Exhibit 01, Law Enforcement at Concession Campgrounds

Law Enforcement at Concession Campgrounds

Forest Service Manual 2342.1 lists the Federal laws and regulations that allow occupancy and use of National Forest System lands by entities other than the FS. Clarification of this policy is provided below.

2342.1 - Exhibit 01

ROLES AND RESPONSIBILITIES

1. **Concessionaires.** In responding to violations of Federal, State, and local laws, ordinances, and regulations, concessionaires have the same authority as a private citizen. Concessionaires generally cannot enforce Federal, State, or local laws or regulations, including 36 CFR part 261, Prohibitions on National Forest System lands. Concessionaires should be knowledgeable of applicable Federal, State, and local laws and regulations, including 36 CFR part 261, and should report violations of these laws and regulations to the appropriate law enforcement authorities.

Concessionaires may enhance public safety at concession campgrounds in a number of ways. For example, they may hire a private security firm, hire off-duty State or local law enforcement personnel, or enter into a cooperative agreement with the county for additional patrols.

Under the terms of the campground concession permit, the authorized officer may allow or require a concessionaire to establish certain restrictions on conduct or rules of use. For instance, the concessionaire may establish a rule of use that limits the number of vehicles per campground site, establishes a limit on the length of stay, or prohibits washing food at a water hydrant. The rules of use may be incorporated into the concessionaire's operating plan, and the concessionaire may be held accountable for ensuring compliance under the terms of the special use permit.

Conduct that violates rules of use may also violate Federal, State, or local laws. When such conduct occurs, the concessionaire should report those violations to the appropriate law enforcement authority. For example, violation of a rule of use may constitute a disturbance of the peace in violation of State law or disorderly conduct in violation of Forest Service regulations at 36 CFR 261.4

To minimize confusion between criminally enforceable Federal, State, and local laws and concessionaire-established rules of use, each should be separately posted within the campground.

2. **State and Local Law Enforcement Agencies.** Generally, State and local law enforcement agencies have authority to enforce applicable State and local laws, ordinances, and regulations on National Forest System lands. Under 16 U.S.C. 480, States retain their civil and criminal jurisdiction over persons on the National Forests. Thus, crimes involving persons and their property are generally the primary responsibility of State and local law enforcement authorities.

Where a concessionaire has established rules of use, there is no authority for a State or local law enforcement agency to take enforcement action, unless the conduct giving rise to the violation of a rule of use also constitutes a violation of State or local law.

There is no authority for the Forest Service to allow State and local law enforcement personnel to enforce Federal laws and regulations, including 36 CFR part 261. Some conduct may be prosecuted under Federal or State law because the conduct violates both Federal and State law. However, State and local law enforcement officers may enforce only State and local law.

3. **Forest Service.** The Forest Service retains all its authorities and responsibilities for enforcing Federal laws and regulations relating to administration of National Forest System lands. The role and responsibilities of the Forest Service do not change simply because the Forest Service has issued a special use permit to a concessionaire. Forest Service personnel should continue to enforce all Federal laws and regulations relating to administration of National Forest System lands within concessionaire-operated campgrounds.

Forest Service personnel should not assume, however, that all laws and regulations applicable to facilities operated by the Forest Service are also applicable to sites operated by concessionaires. For example, as a matter of policy the Forest Service does not interpret failure to pay a camping fee charged by a concessionaire to be a violation of 36 CFR 261.15 because the camping fee charged by the concessionaire is not an admission or recreation use fee for a “site, facility,... or service furnished by the United States.” The agency construes “furnished by the United States” to mean “owned and operated” by the United States.” Therefore, the Forest Service would not cite someone for failure to pay a camping fee at a concession campground because the site is operated by a concessionaire, rather than the Forest Service, and the concessionaire, rather than the Forest Service, retains the campground fees.

The regulations at 36 CFR part 261, subpart A, apply at both Forest Service and concessionaire-operated campgrounds. In contrast, orders issued under 36 CFR part 261, subpart B, may or may not apply at concession campgrounds. A subpart B order must clearly state the area to which it applies. 36 CFR 261.50(c)(1). If the order is forest- wide, it applies to all campgrounds, including concession campgrounds, within the forest. Operating plans for concession campground permits should be consistent with any orders that apply. A concessionaire may not allow an activity prohibited by an order. However, a concessionaire’s rule of use may be stricter than an order.

The Regional Forester or Forest Supervisor may exempt concession campgrounds from an order and may want to exempt them to place more responsibility for the site on the concessionaire. Rules of use rather than the order would then govern. This approach is consistent with one of the purposes of the campground concession program, which is to reduce expenditure of limited Forest Service resources in administering developed recreation sites.

When issuing a subpart B order, the Regional Forester or Forest Supervisor should consider whether the order should apply at concession campgrounds.

2342.1 - Exhibit 01--Continued

If concession campgrounds are exempted from a subpart B order, the rules of use established by concessionaires may differ from the restrictions contained in the order that applies elsewhere. For example, the restriction established by an order on the number of vehicles allowed per campsite at a Forest Service-operated campground may differ from the same type of restriction adopted as a rule of use at a concession campground. Forest Service personnel should ensure that they enforce only those subpart B orders that apply to concession campgrounds.

36 CFR part 261, subpart C, regulations should be handled the same way as subpart B orders. Subpart C regulations are issued by the Chief or Regional Forester to prohibit acts or omissions in all or any part of an area over which the Chief or Regional Forester has jurisdiction.

Forest Service law enforcement personnel should cooperate with State and local law enforcement agencies to the extent authorized by Forest Service policy (FSM 5360) and State and Federal law, such as 16 U.S.C. 559g(c), which authorizes acceptance of a law enforcement designation from States, and 16 U.S.C. 553, which authorizes the Forest Service to aid in the enforcement of State laws in certain respects.

Prospectuses and permits for concession campgrounds should clearly describe the respective responsibilities of Forest Service law enforcement personnel, State and local law enforcement authorities, and concessionaires.

SUMMARY

Crimes involving persons and property are generally violations of State law. State and local law enforcement authorities have jurisdiction to enforce State laws at concession campgrounds. Forest Service personnel have the responsibility to enforce Federal laws and regulations relating to the administration of National Forest System lands.

Concessionaires may establish and enforce rules of use that are subordinate to Federal, State, and local laws and regulations. Rules of use are not enforceable by Federal, State, or local law enforcement authorities unless violations or rules of use constitute violations of Federal, State, or local laws.

Concessionaires should contact Federal, State, and local law enforcement authorities to address criminal violations under their respective jurisdictions. Concessionaires may also consider hiring a private security firm or contracting with off-duty State or local law enforcement personnel to address day-to-day public safety concerns at concession campgrounds.

Campground concession prospectuses and permits should clearly describe the respective responsibilities of Forest Service law enforcement personnel, local law enforcement authorities, and concessionaires. In order to minimize visitor confusion between criminally enforceable Federal, State, and local laws and concessionaire-established rules of use, each should be separately posted within a campground.



Forest Service
U.S. DEPARTMENT OF AGRICULTURE

Prospectus for Campground and Related Granger-Thye Concessions
Lincoln National Forest

Appendix 9: Sample Annual Operating Plan

Minimum Content of the Proposed Annual Operating Plan

This appendix enumerates the minimum that must be included in the applicant's proposed annual operating plan regarding the annual operating season, staffing, and operation and maintenance of the concession opportunity.

The applicant's proposed annual operating plan must be consistent with the campground concession prospectus (prospectus) and campground concession permit (permit). The applicant's proposed operating plan may not contain any language that shifts, or could be interpreted as shifting, responsibility to the Forest Service for all or part of the applicant's responsibilities under the permit, including but not limited to the applicant's responsibilities for public health and safety such as inspecting, identifying, and felling of hazard trees in the permit area.

The Forest Service will evaluate the applicant's proposed annual operating plan based on the criteria specified in the prospectus. The selected applicant's proposed annual operating plan will be submitted to the authorized officer for review and approval.

If you have questions, please contact:

Paul Finch	Mailing Address
Telephone: 575-682-5333	Lincoln National Forest
Email: paul.finch@usda.gov	4 Lost Lodge Road Cloudcroft, NM 88317

In the event the USDA receives a demand or request for [COMPANY NAME] Confidential Information and disclosure of such Confidential Information is required by law, the USDA may disclose the Confidential Information provided that: (a) before making any such disclosure, USDA provides [COMPANY NAME] with, to the extent legally permitted, immediate written notice of such demand or request so that [COMPANY NAME] may seek a protective order or other remedy; and (b) USDA does not disclose more than that portion of the Confidential Information which USDA is legally required to disclose.

Contents

1. Annual Operating Season.....	1
2. Staffing.....	2
2a. Supervision and Management.....	2
2b. Personnel.....	2
2c. Employee Training.....	3
2d. Employee Conduct.....	3
2e. Uniforms and Motor Vehicle Identification and Use.....	3
3. Customer Service	4
4. Pre-Season Operations	4
4a. Annual Pre-Season Safety and Facility Inspections.....	4
4b. Pre-Season Requirements for Water Systems.....	4
4c. Pre-Season Holder Maintenance, Reconditioning, and Renovation (MRR).....	5
5. Operational Requirements and Holder MRR During the Operating Season.....	5
5a. Operational and Maintenance Requirements for Water Systems.....	5
5b. Holder MRR During the Operating Season	6
5c. Standards for Facility Cleaning and Holder MRR.....	6
5c1. All Facilities	6
5c2. Toilet Facilities.....	7
5c3. Picnic Tables	7
5c4. Fire Rings and Grills	8
5c5. Grounds	8
5c6. Roads and Trails	8
5c7. Barriers	8
5c8. Water Hydrants.....	8
5c9. Trash Receptacles.....	9
5c10. Campsite Markers.....	9
5c11. Bulletin Boards, Signs, and Fee Stations.....	9
5c12. Fee Enforcement.....	9
6. Mid-Season Safety and Facility Inspections	9
7. Signs and Posters	10
7a. Identification of Concession Operation	10
7b. Title VI Compliance	10
7c. Signs and On-Site Advertising.....	10
8. Advertising.....	10
8a. Accurate Representation	10
8b. Equal Opportunity.....	10
9. Fire Prevention and Suppression Plan.....	11
10. Road and Trail Maintenance	11
11. Emergency Response	11
12. Law Enforcement, Campground Security, and Rules of Use.....	11
12a. Law Enforcement.....	11
12b. Campground Security	11
13. Communications Systems	12
14. Bears, and Other Wildlife	12
14.a. Sensitive Species.....	13
15. Rodent Control.....	13

Appendix 9 – Minimum Content of the Proposed Annual Operating Plan

16. Vegetation Management	13
16a. Vegetation Management Plan	13
16b. Use of Pesticides	13
16c. Management of Noxious Weeds	13
16d. Felling of Hazard Trees	13
16e. Disposal of Trees that Do Not Meet Utilization Standards	14
16f. Disposal of Trees that Meet Utilization Standards	14
17. Use of Fee Sites by Non-Paying Visitors and Management of Non-Paying Customers.....	15
18. Optional Programs	15
18a. Interpretive Programs.....	15
18b. Recycling Program	15
19. Optional Services	16
20. Equestrian Campgrounds	17
21. Performance Evaluations	17
22. Post-Season Operations.....	18
22a. Post-Season Requirements for Water Systems	18
22b. Utilities	18
22c. Post-Season Safety and Facility Inspection	18

List of Tables

Table 1. Minimum Operating Season by Site.....	1
Table 2. Recommended Site Managers by Location	Error! Bookmark not defined.

1. Annual Operating Season

The annual operating season is the period each year that the campgrounds are open to the public. The minimum annual operating season is May to September. Applicants may propose a longer annual operating season. All campsites in the concession opportunity must be open seven days per week, including holidays, during the minimum annual operating season.

The proposed annual operating plan must specify the dates of the beginning and end of the annual operating season, as well as the dates of the beginning and end of pre-season and post-season operations.

If the Forest Service will operate the campgrounds during a shoulder season, the proposed annual operating plan must specify the starting and ending dates of the shoulder season.

Table 1. Minimum Operating Season by Site

Site Name	Minimum Operating Season
Sacramento Ranger District	
Apache Campground	May – September
Aspen Group Campground Area	May – September
Black Bear Group Campground	May – September
Deerhead Campground	April – October
James Canyon Campground (optional)	Year Round
Lower Fir Group Campground Area	May – September
Pines Campground	May – September
Saddle Campground	May – September
Silver Campground and Amphitheater	April – October
Silver Overflow Campground	April – October
Sleepy Grass Campground	May – September
Sleepy Grass Picnic Area	Year Round
Slide Group Campground Area	May – September
Upper Fir Group Area	May – September
Upper Karr Canyon Dispersed Campground (optional)	Camping – May – September Site - Year Round
Karr Canyon Picnic Site (optional)	May – September
Smokey Bear Ranger District	
Oak Grove Campground*	May – September
Skyline Campground (optional)	May – September
Three Rivers Campground	Year Round
Guadalupe Ranger District	
Sitting Bull Falls Recreation Area	Year Round

**See Section O of the Prospectus for Campground and Related Granger-Thye Concessions for additional information.*

2. Staffing

The Proposed annual operating plan must provide for sufficient staffing to meet the requirements for operating and maintaining the concession opportunity as described in the campground concession prospectus (prospectus) and provided for in the campground concession permit (permit). The proposed annual operating plan must provide for the applicant to furnish and train all personnel and supervise their activities under the permit.

The proposed annual operating plan must require the applicant to comply with applicable state and federal laws and regulations governing employment, wages, and worker safety, equal opportunity, civil rights, workers compensation, and employment of people with disabilities and noncitizens.

2a. Supervision and Management

The proposed annual operating plan must designate a representative who will serve as the liaison between the applicant and the Forest Service and have full authority to act on the terms of the permit.

There may be more than one designee, each of whom has the authority to act on one or more permit terms (i.e., one person may deal with operations issues, one may deal with maintenance issues, and another may deal with financial issues). The designees' names and job titles must be included in the application.

The proposed annual operating plan must provide sufficient on-site supervisory staff to provide direction and oversight of hosts and other field personnel during the operating season.

2b. Personnel

In addition to the requirements outlined in the supervision and management section, the proposed annual operating plan should provide for site managers "hosts" to be located at the sites listed below. A history of operations experience indicates that having personnel stationed at these sites is useful given the complexity of operations at these sites.

Table 2. Recommended number of hosts by location

District / Area	Site Name	Recommended Number of Hosts
Sacramento Ranger District	Apache Campground	1
Sacramento Ranger District	Aspen Group Campground Area	Past host coverage was provided by closest adjacent campground host.
Sacramento Ranger District	Black Bear Group Campground	Past host coverage was provided by closest adjacent campground host.
Sacramento Ranger District	Deerhead Campground	1 to 2
Sacramento Ranger District	James Canyon Campground (optional)	Adjacent host
Sacramento Ranger District	Lower Fir Group Campground Area	Past host coverage was provided by adjacent host of Pines Campground.
Sacramento Ranger District	Pines Campground	1 (couple recommended) – Previous hosts have provided coverage for all group campgrounds on the Sacramento Ranger District.
Sacramento Ranger District	Saddle Campground	1

District / Area	Site Name	Recommended Number of Hosts
Sacramento Ranger District	Silver Campground and Amphitheater	1
Sacramento Ranger District	Silver Overflow Campground	1 (couple recommended)
Sacramento Ranger District	Sleepy Grass Campground	1 (couple recommended)
Sacramento Ranger District	Sleepy Grass Picnic Area	Past host coverage was provided by closest adjacent campground host.
Sacramento Ranger District	Slide Group Campground Area	Past host coverage was provided by closest adjacent campground host.
Sacramento Ranger District	Upper Fir Group Area	Past host coverage was provided by closest adjacent campground host.
Sacramento Ranger District	Upper Karr Canyon Dispersed Campground (optional)	Past host coverage was provided by closest adjacent campground host.
Sacramento Ranger District	Karr Canyon Picnic Site (optional)	Coverage provided by closest adjacent campground host.
Smokey Bear Ranger District	Oak Grove Campground*	1 to 2
Smokey Bear Ranger District	Skyline Campground (optional)	1 to 2
Smokey Bear Ranger District	Three Rivers Campground	1 to 2
Guadalupe Ranger District	Sitting Bull Falls Recreation Area	1 to 2 (recommended one couple minimum)

**See Section O of the Prospectus for Campground and Related Granger-Thye Concessions for additional information.*

The proposed annual operating plan must include staffing hours, schedules, and personnel locations for operations and maintenance. The proposed annual operating plan should include job descriptions and level of authority for all employee positions.

2c. Employee Training

The proposed annual operating plan must describe the training program for the applicant's employees.

2d. Employee Conduct

The proposed annual operating plan must specify that the applicant will be responsible for the conduct of the applicant's employees, including ensuring that they conduct themselves professionally at all times, and their compliance with all applicable federal, state, and local laws. Federal prohibitions include but are not limited to:

- Engaging in conduct prohibited by Forest Service regulations at 36 CFR Part 261, Subpart A; and
- Being under the influence of intoxicating beverages or narcotic drugs while on duty.

2e. Uniforms and Motor Vehicle Identification and Use

The proposed annual operating plan must include a description of the components of the uniform for the applicant's employees. The proposed annual operating plan must provide for the applicant's employees to have a professional uniform including a name tag identifying them as the applicant's employees, and the uniform must be clean and presentable when worn. The proposed annual operating plan must provide

for the applicant's employee uniforms to be readily identifiable to the public. The proposed annual operating plan must provide that the applicant's employees may not wear any component of the Forest Service uniform, including Forest Service volunteer uniform components.

The proposed annual operating plan should provide for the applicant's motor vehicles to be clean, quiet, and well-maintained and for the applicant's name to be professionally displayed on each side of vehicles used at the campgrounds. Motor vehicle use is allowed on National Forest System roads and National Forest System trails only if they are designated for that purpose or if motor vehicle use of those roads and trails is expressly authorized by the permit.

3. Customer Service

The proposed annual operating plan must address development and implementation of a customer service program that responds to customers' requests in a helpful, timely, courteous, and professional manner.

The proposed annual operating plan must provide for making customer service comment cards available to the public. A sample comment card is included in FS-2700-34, Appendix 6.

The Forest Service reserves the right to conduct random use counts and surveys in the permit area regarding the service they are receiving. These surveys may be used for ongoing monitoring, as well as the holder's annual performance evaluation (FS-2700-34, Appendix 7).

4. Pre-Season Operations

The proposed annual operating plan must require the applicant to conduct the following pre-season inspections and maintenance before the annual operating season begins.

4a. Annual Pre-Season Safety and Facility Inspections

The Forest Service has no duty to inspect the permit area or operations of the selected applicant for hazardous conditions or compliance with health and safety requirements or to correct hazards identified in the permit area. The proposed annual operating plan must provide that the applicant is solely responsible for performing and documenting an annual pre-season safety and facility inspection of the permit area, including inspection of hazard trees; correcting any safety and maintenance deficiencies identified during the inspection, including identifying and felling of hazard trees, before the operating season begins; and documenting any corrective actions taken. For purposes of this operating plan, "hazard tree" is defined as a standing tree that presents a visible hazard to people or property due to conditions such as deterioration of or damage to the root system, trunk, stem, or limbs or the direction or lean of the tree. The proposed annual operating plan must provide that the applicant is solely responsible for eliminating or mitigating high-risk conditions as soon as practicable and for closing affected areas until the high-risk conditions are eliminated or mitigated.

4b. Pre-Season Requirements for Water Systems

The proposed annual operating plan must provide for compliance with all existing and future applicable federal, state, and local public health and safety requirements for operation of the water systems, including any required certifications.

The proposed annual operating plan must provide for properly activating the water systems before opening the campgrounds. The proposed annual operating plan must provide for the applicant to affect all repair of water system components necessitated by vandalism or improper operation or maintenance, such as damage to valves, water lines, and other system components due to insufficient draining at shutdown that resulted in water being left in the system and freezing over the winter.

The proposed operating plan must include procedures for ensuring the safety of the water system prior to the operating season, including but not limited to:

- Cleaning the insides of the well and storage tank, where applicable.
- Thoroughly flushing the entire system to remove any foreign matter.
- Distributing throughout the system a chlorine solution that tests at a level of more than 10 ppm at the most distant hydrant and allowing the chlorine solution to sit for at least 24 hours to sanitize the system.
- Obtaining satisfactory bacteriological test results from a state-certified laboratory.

4c. Pre-Season Holder Maintenance, Reconditioning, and Renovation (MRR)

The proposed operating plan must provide for a thorough cleaning of all campground facilities prior to the operating season. Tasks must include but are not limited to:

- Cleaning and sanitizing toilet facilities and checking toilet vault levels.
- Clearing campsites of any debris and overgrown vegetation.
- Removing any litter from fire rings and the campgrounds generally.
- Emptying trash receptacles.
- Removing any graffiti from facilities and repairing any vandalized facilities.

5. Operational Requirements and Holder MRR During the Operating Season

The proposed annual operating plan must address the following operational requirements and holder MRR during the operating season.

5a. Operational and Maintenance Requirements for Water Systems

The proposed annual operating plan must provide for compliance with form FS-2700-4h, Appendix F, Operation of Federally Owned Drinking Water Systems, and all existing and future applicable federal, state, and local requirements for operation and maintenance of the water systems during the operating season, including routine, repeat, and special purpose bacteriological testing and any required notifications and retesting if results are unsatisfactory. Per current Forest Service water testing requirements, bacteriological water samples must be taken monthly, and a nitrate and nitrite test for each potable water system source is required once per year. The state may require annual or scheduled nitrate

and nitrite testing. The proposed annual operating plan must provide for the applicant to send all water samples for each water system to a state-certified laboratory and to send all test results for each water system to the state department of public health as frequently as required by the state and to the Forest Service monthly.

The proposed annual operating plan must provide for all personnel operating and testing water systems to be certified as required by applicable federal, state, and local law.

The proposed annual operating plan must provide for the applicant to maintain a log of operation and maintenance of all water systems that at a minimum includes:

- Meter readings.
- Dates, times, and results of all testing, inspections, cleaning, repairs, operational adjustments, and maintenance, including maintenance of the distribution system.
- For chlorinated systems, chlorine residual testing documentation, including the testing method, location, date, and time; chlorine amounts and levels; and flushing.

The proposed annual operating plan must provide for the applicant to make the log available to the Forest Service upon request.

The proposed annual operating plan must provide for the applicant to perform routine sanitary surveys of water systems to ensure their integrity.

The proposed annual operating plan must provide for the applicant to be responsible for all costs associated with testing and monitoring the water systems.

The proposed annual operating plan must provide for the applicant to make any repairs of the water systems necessitated by vandalism, natural events, or improper operation or maintenance.

5b. Holder MRR During the Operating Season

The proposed annual operating plan must specify the types and frequency and provide for documentation of holder MRR. Holder MRR is not subject to Granger-Thye (GT) fee offset. Only Government maintenance, reconditioning, renovation, and improvement is subject to GT fee offset under a GT fee offset agreement.

5c. Standards for Facility Cleaning and Holder MRR

The proposed annual operating plan must include standards and timeframes for cleaning campground facilities and holder MRR that at a minimum address the following.

5c1. All Facilities

- Removal of graffiti and repair of vandalized facilities.
- Cleaning and maintenance of facilities.
- Visitor and vehicle capacity.
- Conducting and documenting annual pre-season and end-of-season safety and facility inspections and correcting identified deficiencies identified during pre-season inspections before the

operating season begins and correcting deficiencies identified during the end-of-season inspection before the next operating season begins.

- Eliminating or mitigating any high-risk conditions identified during the operating season as soon as practicable or closing affected areas.
- Ensuring electrical systems meet applicable state and local requirements.
- Cutting grass and trimming overhanging brush around picnic tables, bulletin boards, water hydrants, barriers, signs, buildings, parking areas, paths, campsites, and other facilities.

5c2. Toilet Facilities

- Cleaning frequency and procedures, including:
 - Procedures for keeping toilet facilities free of objectionable odor.
 - Requiring Forest Service approval for any deodorants, disinfectants, and fly strips provided by the applicant.
 - Removal of any exposed human waste immediately upon discovery or notification.
 - Keeping the outside step and exterior of toilet buildings, including the roof, free of dirt and debris.
 - Keeping walkways and trails free of obstructions and excess vegetation.
- Maintenance frequency and procedures, including:
 - Painting the interior of at least 20% of the toilet facilities each year in a color approved by the Forest Service.
 - Completely pumping toilet vaults when they become 75% full and at the end of each operating season, and completely pumping toilet vaults that are more than 50% full at the end of the final operating season under the permit.
- Pumping septic tanks for flush toilets on a schedule agreed to with the Forest Service.
- Meeting applicable federal, state, and local requirements for all other types of sewage treatment systems.
- Transporting all sewage from the campgrounds to a sanitary landfill, sewage lagoon, or treatment plant approved by the Forest Service.

5c3. Picnic Tables

- Mowing grass and trimming vegetation around the picnic area.
- Maintaining sufficient vegetation, gravel, or other material approved by the Forest Service around picnic tables to prevent mud and erosion.
- Maintaining a level surface for picnic tables.

5c4. Fire Rings and Grills

- Keeping fire rings free of litter and level.
- Maintaining sufficient concrete, gravel, or other material approved by the Forest Service around fire rings to prevent mud and erosion.
- Clearing all combustible materials and vegetation within a distance of at least 3 feet from fire rings.
- Removing ashes, charcoal, and unburned wood from fire rings and grills when the debris level is less than 4 inches from the top of the ring or grill.
- Disposing of ashes, charcoal, and unburned wood off National Forest System lands and in accordance with applicable state and local law.
- Not placing hot ashes, charcoal, and unburned firewood in dumpsters or trash receptacles.
- Removing any fire rings, fire pits, and other modifications that were not installed or approved by the Forest Service, including any ashes, charcoal, and unburned wood, and scattering the rocks and spreading soil over the areas.

5c5. Grounds

- Keeping the campgrounds free of litter and domestic animal waste.
- If pack-in, pack-out requirements apply, prominently displaying those requirements; providing trash bags to customers; and removing any trash within 24 hours of discovery or notification.
- Preventing or correcting loss of vegetation and erosion caused by recreational use in accordance with the approved vegetation management plan.
- Removing any nails, ropes, and wire from trees.
- Mowing grass and trimming vegetation.

5c6. Roads and Trails

- Maintaining walkways and paths, including clearing debris and trimming overhanging vegetation and maintaining proper drainage to minimize water damage.
- Treating and maintaining roads in the permit area to control dust.
- Cleaning and maintaining ditches and culverts in the permit area to allow proper drainage.

5c7. Barriers

- Trimming vegetation around barriers to keep them visible.

5c8. Water Hydrants

- Ensuring that water hydrants meet federal and state standards.

- Replacing the gravel sump when sour-smelling, filled with dirt, or excess water does not properly drain.
- Posting water hydrants with a sign prohibiting dish washing, bathing, hand washing, and fish cleaning from the hydrants.

5c9. Trash Receptacles

- Specifying the type, size, number, and locations of trash receptacles.
- Emptying trash before it exceeds the capacity of the receptacle.
- Keeping areas where trash receptacles are located clean and free of objectionable odors.
- Disposing of all trash from National Forest System lands in accordance with applicable state and local law.

5c10. Campsite Markers

- Ensuring that campsite markers are well-maintained, neatly arranged, and meet Forest Service sign standards.

5c11. Bulletin Boards, Signs, and Fee Stations

- Ensuring that information boards look professional and uncluttered and contain appropriate and current information in multiple languages, as needed.
- Ensuring that signs, bulletin boards, and fee stations are well-maintained and meet Forest Service sign standards.

5c12. Fee Enforcement

- Providing for enforcement of camping and other use fees.

6. Mid-Season Safety and Facility Inspections

The Forest Service has no duty to inspect the permit area or operations of the selected applicant for hazardous conditions or compliance with health and safety requirements or to correct hazards identified in the permit area. The proposed annual operating plan must provide that the applicant is solely responsible for performing mid-season safety and maintenance inspections of the permit area, including inspection of hazard trees, at a minimum prior to July 4th and the Labor Day weekend, and documenting any deficiencies identified during mid-season inspections. The proposed annual operating plan must provide that the applicant is solely responsible for correcting any safety and maintenance deficiencies identified during mid-season inspections, including identifying and felling hazard trees, as soon as practicable and documenting any corrective actions taken. The proposed annual operating plan must provide that the applicant is solely responsible for eliminating or mitigating high-risk conditions as soon as practicable and for closing affected areas until the high-risk conditions are eliminated or mitigated.

7. Signs and Posters

The proposed annual operating plan must provide for the applicant to supply all signs and posters and for all signs and posters to be approved by the Forest Service. The Forest Service can furnish information on companies that sell Forest Service-approved signs. The proposed annual operating plan may provide for the applicant to enter into a collection agreement with the Forest Service for the purchase of Unicorn P Code signs if the applicant is not able to purchase them.

7a. Identification of Concession Operation

The proposed annual operating plan must provide for posting a sign on the entrance board for each campground stating that the campground is operated under a permit issued by the Forest Service and including the name of the concessioner and the concessioner's contact information.

7b. Title VI Compliance

The proposed annual operating plan must provide for posting signage with Forest Service-approved wording documenting compliance with Title VI of the Civil Rights Act of 1964, such as USDA's And Justice for All poster.

The proposed annual operating plan must provide for the Unicorn P23-43 Welcome to Your National Forests poster or a Forest Service-approved equivalent to be posted on entrance boards to inform the public of applicable prohibitions in Forest Service regulations at 36 CFR Part 261, Subpart A.

7c. Signs and On-Site Advertising

The proposed annual operating plan must provide for the location, design, size, color, and content of any additional signs or advertising posted on National Forest System lands to be approved by the Forest Service.

8. Advertising

The proposed annual operating plan must provide information on how the applicant is going to advertise the permit area to the public.

8a. Accurate Representation

The proposed annual operating plan must provide that the applicant may not misrepresent in any way, either orally, online, or in print, any aspect of the authorized use and occupancy, including services provided by the applicant, the status of the permit, or the permit area. The proposed annual operating plan must provide for all forms of the applicant's advertising to state that the permit area is located in the [name] National Forest or Grassland.

8b. Equal Opportunity

The proposed annual operating plan must provide for all forms of advertising to state that the applicant is an equal opportunity provider.

9. Fire Prevention and Suppression Plan

The proposed annual operating plan must include a proposed fire prevention and suppression plan that addresses at a minimum:

- Procedures for preventing and suppressing wildfires and structural fires.
- Reporting procedures and emergency response for fires.
- Training and experience required for employees for fire prevention and suppression.
- Fire prevention and suppression tools and equipment that will be maintained on-site.
- Visitor and employee safety, including but not limited to an emergency evacuation plan and communication plan.

10. Road and Trail Maintenance

At a minimum, the proposed annual operating plan must provide for the applicant to maintain vehicular and pedestrian access to the campgrounds in a safe and passable condition and in accordance with Forest Service standards, including but not limited to mowing along road shoulders and around parking barriers for visibility; brushing to facilitate vehicular access; and cleaning culverts at the beginning of each operating season and following large storms.

11. Emergency Response

The proposed annual operating plan must address how the applicant will respond to medical, law enforcement, facility, fire, flood, and other types of emergencies that might occur in and around the campgrounds.

12. Law Enforcement, Campground Security, and Rules of Use

12a. Law Enforcement

Forest Service, state, and local law enforcement and the selected applicant each have enforcement roles at campground concessions. Form FS-2700-34, Appendix 8, addresses enforcement authorities and responsibilities at campground concessions (FSM 2342.1, exhibit 01).

12b. Campground Security

The proposed annual operating plan must address campground security, including but not limited to rules of use the applicant will post and enforce at the campgrounds.

The proposed annual operating plan must provide for the applicant to report vandalism, destruction of federal or personal property, and criminal violations within 24 hours of discovery or notification to local law enforcement and the Forest Service.

The proposed annual operating plan must address measures that will be taken to prevent vehicle parking from causing resource damage and blocking traffic.

12c. Rules of Use

The proposed annual operating plan must include, but is not limited to, rules of use addressing the following:

- Leashing of dogs.
- Exceeding the stay limit.
- Failure to pay camping and other use fees.
- Excessive noise.
- Improper disposal of wastewater and sewage.
- Parking or camping in undesignated sites.
- Use of motor vehicles off designated routes and at an excessive speed.
- Overnight camping in parking areas.
- Discharge of firearms in the permit area.
- Vandalism, particularly of toilet facilities and trees.
- Improper use of hydrants, e.g., for fish cleaning.
- Illegal campfires.
- Applicable noise restrictions.

13. Communications Systems

The proposed annual operating plan must provide for complete, timely, and accurate communications (e.g., via two-way radios and cellular telephones) among all employees, the Forest Service, Recreation.gov., and emergency response agencies.

The proposed annual operating plan must identify the applicant's on-site representative and how that person will communicate with the Forest Service on-site.

The proposed annual operating plan may not provide for use of Forest Service radio frequencies and equipment.

14. Bears, and Other Wildlife

The proposed annual operating plan must address facilitation of safe human-wildlife interactions, including but not limited to posting the following precautions and guidelines:

- Do not feed bears or other wildlife.
- Report bear activity within 24 hours to the state department of fish and wildlife.
- Post messages relating to bear activity on signboards.
- Use approved wildlife-proof trash containers, as needed.
- Keep all food in secure containers.

- Properly dispose of all trash and wastewater containing food as soon as possible.

The proposed annual operating plan must provide for posting information about bear activity in the campgrounds on signboards. The New Mexico Game and Fish Department (888) 248-6866, and the Forest Service must be notified when predators/dangerous animals are observed in or near the developed areas.

14.a. Sensitive Species

Sacramento Checkerspot Butterfly

Most of the Campgrounds and group areas around Cloudcroft are considered habitat for this species. The New Mexican penstemon is the butterfly's only food source for the larvae and is found in meadows along with other plants such as sneeze weed and sunflowers. It is required that any vegetation that needs to be cleared must be coordinated with the Forest Service for prior approval from the district wildlife biologist.

15. Rodent Control

The proposed annual operating plan must address rodent control if it is identified as a concern in the prospectus and must provide for posting information about the prevalence of and precautions for Hantavirus and plague in the campgrounds on signboards.

16. Vegetation Management

16a. Vegetation Management Plan

The proposed annual operating plan must include a proposed vegetation management plan specifying the methods, frequency, and types of vegetation management to be conducted by the applicant to meet operation and maintenance requirements in the proposed annual operating plan.

16b. Use of Pesticides

The proposed vegetation management plan must provide for use of pesticides in accordance with the terms of the permit, including but not limited to submission of a Pesticide-Use Proposal for concurrence by the Forest Service.

16c. Management of Noxious Weeds

The proposed vegetation management plan must provide for preventing the infestation and spread of noxious weeds in the permit area, including the ability to identify common noxious weeds in the permit area; performing timely treatment by mechanical or chemical means in accordance with a Pesticide-Use Proposal; and performing timely and effective revegetation of disturbed areas where noxious weeds may grow. The proposed vegetation management plan may provide for use of a collection agreement with the Forest Service for noxious weed treatments.

16d. Felling of Hazard Trees

The proposed annual operating plan must provide for the applicant to submit a request to the authorized officer to remove any hazard trees identified by the holder as soon as practicable after identification. The

proposed annual operating plan must provide for the authorized officer to respond to the request in writing as soon as practicable.

Consistent with the prospectus, the proposed annual operating plan must provide that:

- The applicant's annual responsibility for the costs of felling hazard trees in the permit area is limited to **1%** of the applicant's annual adjusted gross revenue.
- The Forest Service is responsible for paying the annual costs of felling hazard trees in the permit area only to the extent the annual costs exceed **1%** of the applicant's annual adjusted gross revenue.
- The Forest Service's responsibility for the annual costs of felling hazard trees in the permit area that exceed 1% of the holder's annual adjusted gross revenue in no way affects the applicant's sole responsibility for inspection, identification, and felling of hazard trees in the permit area.
- Only the annual costs of felling hazard trees in the permit area that exceed **1%** of the applicant's annual adjusted gross revenue are eligible for GT fee offset.
- The extent to which the annual costs of felling hazard trees that exceed **1%** of the applicant's annual adjusted gross revenue are eligible for GT fee offset must be identified in the GT fee offset agreement.

The proposed annual operating plan must provide for the applicant to notify the authorized officer when approved cutting, destruction, or trimming of hazard trees and other types of vegetation has been completed.

16e. Disposal of Trees that Do Not Meet Utilization Standards

The proposed vegetation management plan must provide for the applicant to:

- Cut all stumps from hazard tree removal flush with the ground to reduce tripping hazards;
- Buck slash and logs; and
- Stack slash and logs for customer use, remove them from the campground, or scatter.

The proposed vegetation management plan must provide for the applicant to remove any slash or logs that are a barrier to use of a campsite or constitute a safety hazard. The proposed annual operating plan may provide for slash and logs 6 inches or less in diameter to be bucked for free firewood and for slash and logs greater than 6 inches in diameter to remain on-site as woody material for wildlife.

16f. Disposal of Trees that Meet Utilization Standards

The proposed vegetation management plan must provide for the Forest Service to determine the method of disposal of trees felled in the permit area that meet utilization standards. The proposed annual operating plan must provide for disposal to be by sale or without charge per 36 CFR Part 223, as may be most advantageous to the United States.

The proposed annual operating plan must provide that if sale to the applicant is deemed appropriate for disposal by the authorized officer, in consultation with the local timber management staff, any such

timber sale contract between the Forest Service and the applicant will not be interpreted to override or modify the Damage to United States Property clause, clause III.G, and the Indemnification of the United States Clause, clause III.J, in the permit or in any way affect the Forest Service's ability to recover as an additional insured under the insurance obtained by the applicant under the Insurance Clause, clause III.K, in the permit for any injury, loss, or damage arising from the applicant's use and occupancy, including cutting, destruction, or trimming of vegetation in the permit area.

17. Use of Fee Sites by Non-Paying Visitors and Management of Non-Paying Customers

The proposed annual operating plan must provide for limited use of toilet facilities, picnic tables, and potable water facilities in the campgrounds by non-paying visitors at no charge. The proposed annual operating plan may provide for charging non-paying visitors a fee for using dump stations to refill water tanks or dump waste.

The proposed operating plan must address how non-paying customers will be managed.

18. Optional Programs

18a. Interpretive Programs

If interpretive programs are offered, the proposed annual operating plan must provide that any proposed interpretive programs meet applicable accessibility requirements.

The proposed annual operating plan must specify any charges for interpretive services.

The proposed annual operating plan must include an interpretive services plan for any interpretive services proposed by the applicant. The interpretive services plan must include:

- The location, type (e.g., campfire programs, guided walks, brochures, children's activities, or displays), and frequency of interpretive services.
- The topics (e.g., natural and cultural resources, fisheries and wildlife, fire management, and water resources) and a synopsis of the subject matter of the contents of the interpretive program.
- A description of the presenters, including any contractors such as museums, historical societies, and interpretive associations, and their qualifications.

18b. Recycling Program

If a recycling program is offered, the proposed annual operating plan must provide for recycling of all standard recyclable materials and must include a description of proposed recycling services for each campground. The proposed annual operating plan must provide for the applicant to conduct and cover the costs of the recycling program, including emptying materials from the recycling receptacles and transporting them from the campgrounds to an appropriate recycling facility, and for recycling receptacles provided by the applicant to be subject to Forest Service approval. The proposed annual operating plan may provide that any proceeds from the sale of recycled materials may be retained by the applicant and will not be counted as income for land use fee calculation purposes.

19. Optional Services

Proposals may include any combination of the optional sites, or alternatively, exclude them all. If you include an optional site, the proposed annual operating plan must describe how they will manage the selected optional sites and any unique conditions for the site specified below. There are 4 optional sites in this opportunity:

- James Canyon Campground (optional)
 - No alternative standards.
- Karr Canyon Picnic Area (optional)
 - Karr Canyon Picnic Area is located on Forest Road 63. The postseason closure operations will require at a minimum that the holder post signage indicating the area is closed and the picnic site is no longer being managed and maintained. Post season closure will include the holder closing a Forest Service gate at the start of FR 63, currently there is no gate present.
 - The site is surrounded by the Lower Karr Canyon dispersed camping sites. Forest visitors who visit the Lower Karr Canyon dispersed camping sites, utilize the Karr Canyon Picnic Area restroom. If selected to operate this site through this prospectus process, the Forest Service will work with the holder to pump the toilet annually to help with keeping the surrounding dispersed camping sites free, with the possibility to reassess the use of the day use site by the dispersed site campers after two years of operation to determine how best to move forward.
- Upper Karr Canyon Dispersed Campground (optional)
 - The optional Upper Karr Canyon is a popular winter recreation area for the local community. The public enjoy tubing, sledding, snowshoeing, and cross-country skiing in the recreation area. Describe how the recreation area will be managed for the winter recreation activities and public use of the area.
 - Operational Seasons
 - This site is a popular campground with the peak camping season May – September, but the site is also a popular area for winter recreational activities including sledding, tubing, snowshoeing, and cross-country skiing; the most popular being sledding and tubing. The peak winter recreation season is usually December – February but is dependent on weather conditions of the area.
 - Quarterly inspections will be conducted.
 - Describe pre-season/during season/post-season operations that include the peak camping season and peak winter recreation season.
 - Winter Recreation
 - Operational Considerations - The lands within the special use permit boundary shall remain open to the non-paying public for all lawful purposes. Any restrictions the permit area and Forest Service agree to be necessary to protect the operation of authorized improvements must be documented in the operating plan; the area is required to post these restrictions in locations where they would be effective in informing the public such as the entrance portals.
 - Operations schedule
 - Provide a summary of season and hours, and services on Forest. Describe your policy and provide details. Are there differences between operational and non-operational hours; pre-season/during season/post-season differences; list any equipment restrictions; access to sledding facilities, or closed areas.

- Temporary Facilities
 - Describe any temporary facilities such as yurts or large tents that will be used for the season and their primary purpose
- Tubing/Sledding Hills
 - Describe special restrictions, safety plan, signage and advertising.
- Parking and Roads
 - Describe how to enforce traffic safety, will there be attendants, charge or free, parking zoned, sledding area parking versus trailhead parking, accommodating non-recreating public.
- Fire Use
 - Any use of fire other than for standard warming and cooking requires prior approval from the Forest Service. Requests shall be made through the Permit Administrator.
- Closures Due to Extreme Conditions
 - During extreme weather conditions, such as periods of high winds, extreme cold, or reduced snow depths, the circumstances may constitute such a level of hazard that operations must be curtailed for a period of time in the affected areas. Such curtailment may be as limited as a single trail or as extensive as the entire site. The responsibility for such closure ultimately rests with the Manager.
- Skyline Campground (optional)
 - No alternative standards.

The proposed annual operating plan must describe any additional services to be provided, such as:

- The sale of firewood, camping or fishing supplies, and food items, e.g., ice, soda, and bottled water.
- Rental of bikes and fishing equipment.
- Guided interpretive tours.

20. Equestrian Campgrounds

The proposed operating plan must provide that any equestrian campgrounds are available for equestrian users only and that only certified weed-free hay may be used at equestrian campgrounds. The proposed annual operating plan must also provide for monitoring manure bins and removal of manure as needed.

21. Performance Evaluations

The proposed annual operating plan must provide for the Forest Service, to the extent deemed feasible and appropriate by the Forest Service, to conduct a performance evaluation during the applicant's annual operating season and, to the extent deemed feasible and appropriate by the Forest Service, to conduct a follow-up performance evaluation before the end of the holder's annual operating season to determine whether any noncompliance identified during the mid-season performance evaluation has been corrected.

22. Post-Season Operations

The proposed annual operating plan must address the following requirements for post-season operations.

22a. Post-Season Requirements for Water Systems

The proposed annual operating plan must provide for properly shutting down the water systems during the winter season, including:

- Draining all pumps, holding tanks, water lines, hydrants, and faucets, ideally by pressurizing them with an air compressor.
- Securing hand pumps so that water is not available to the public.

22b. Utilities

The proposed annual operating plan must provide for utility services to be shut down and final meter readings to be made at the end of the operating season. The proposed annual operating plan must provide for garbage dumpsters to be secured to prevent overflow from off-season visitors.

22c. Post-Season Safety and Facility Inspection

The Forest Service has no duty to inspect the permit area or operations of the selected applicant for hazardous conditions or compliance with health and safety requirements or to correct hazards identified in the permit area. The proposed annual operating plan must provide that the applicant is solely responsible for conducting and documenting an annual post-season safety and facility inspection of the campgrounds, including inspection of hazard trees, and preparing and submitting a report of the inspection to the Forest Service. The proposed annual operating plan must provide that the applicant is solely responsible for correcting any safety and holder MRR deficiencies identified during the inspection, including identifying and felling hazard trees, before the next operating season begins. The proposed annual operating plan must provide that the applicant is solely responsible for eliminating or mitigating high-risk conditions as soon as practicable but no later than before the next operating season begins.



Forest Service
U.S. DEPARTMENT OF AGRICULTURE

Prospectus for Campground and Related Granger-Thye Concessions
Lincoln National Forest

Appendix 10: FS-2700-4h, Special-Use Permit for Campground
and Related Granger-Thye Concessions, and FS-2700-4h,
Appendix-F, Operation of Federally Owned Drinking Water Systems

Authorization ID: #AUTH_ID#
Contact ID: #HOLDER_ID#
Use Code: #USE_CODE#
Expiration Date: #EXPIRATION_DATE#

FS-2700-4h (09/2020)
OMB No. 0596-0082

**U.S. DEPARTMENT OF AGRICULTURE
FOREST SERVICE**

**SPECIAL USE PERMIT FOR
CAMPGROUND AND RELATED GRANGER-THYE CONCESSIONS**

**AUTHORITY:
Section 7 of the Granger-Thye Act, 16 U.S.C. 580d**

#HOLDER_NAME#, #HOLDER_ADD_LINE_1#, #HOLDER_ADD_LINE_2#, #HOLDER_ADD_LINE_3#,
#HOLDER_CITY#, #HOLDER_STATE# #HOLDER_ZIP#

#HOLDER_NAME# (the holder) is hereby authorized to use and occupy National Forest System (NFS) lands in
the National Forest, subject to the terms of this special use permit (permit).

#PURPOSE#

<u>FACILITY</u>	<u>LEGAL DESCRIPTION</u>	<u>ACRES</u>	<u>DISTRICTS</u>

This permit covers #USE_ACRES# acres or #USE_MILES# miles, which are described above, are shown on the
map attached to this permit (hereinafter the "permit area").

This permit is issued for the purpose of operating and maintaining a Forest Service developed recreation site or
sites as provided herein and in the attached appendices. The following are attached to and incorporated into this
permit:

**<USER NOTES FOR APPENDICES>
<Add any other appendices and delete Appendix G, if inapplicable.>**

APPENDIX A: Annual Operating Plan
APPENDIX B: Annual Granger-Thye Fee Offset Agreement
APPENDIX C: Holder Maintenance and Reconditioning Plan
APPENDIX D: Developed Recreation Site Maps
APPENDIX E: Facility and Improvement Inventory
APPENDIX F: List of Federally Owned Improvements Covered by Property Insurance
APPENDIX G: Operation of Federally Owned Drinking Water Systems
APPENDIX H: Granger-Thye Fee Offset Claim

I. GENERAL TERMS

A. AUTHORITY. This permit is issued under Section 7 of the Granger-Thye Act, 16 U.S.C. 580d, and 36 CFR
Part 251, Subpart B, as amended, and is subject to their provisions.

- B. AUTHORIZED OFFICER.** The authorized officer is the Forest or Grassland Supervisor, a District Ranger, or the Station, Institute, or Area Director with delegated authority pursuant to Forest Service Manual 2700.
- C. TERM.** This permit shall expire at midnight on #EXPIRATION_DATE#, provided that the permit term may be extended up to 5 years by amendment at the sole discretion of the authorized officer based on sustained satisfactory performance or administrative need. Expiration of this permit shall not require notice, a decision document, or any environmental analysis or other documentation.
- D. CONTINUATION OF USE AND OCCUPANCY.** This permit is not renewable. After it expires, continuation of the use and occupancy authorized by this permit is at the sole discretion of the authorized officer. After expiration, issuance of a new permit for the use and occupancy authorized by this permit shall be subject to competition.
- E. AMENDMENT.** This permit may be amended in whole or in part by the Forest Service when at the discretion of the authorized officer such action is deemed necessary or desirable to incorporate new terms that may be required by law, regulation, directive, the applicable land management plan, or projects and activities implementing the land management plan pursuant to 36 CFR Part 218.
- F. COMPLIANCE WITH LAWS, REGULATIONS, AND OTHER LEGAL REQUIREMENTS.** In exercising the rights and privileges granted by this permit, the holder shall comply with all present and future federal laws and regulations and all present and future state, county, and municipal laws, regulations, and other legal requirements that apply to the permit area, to the extent they do not conflict with federal law, regulation, or policy. The Forest Service assumes no responsibility for enforcing laws, regulations, and other legal requirements that fall under the jurisdiction of other governmental entities.
- G. NON-EXCLUSIVE USE.** The use and occupancy authorized by this permit is not exclusive. The Forest Service reserves the right of access to the permit area, including a continuing right of physical entry to the permit area and the authorized facilities and improvements for inspection, monitoring, or any other purpose consistent with any right or obligation of the United States under any law or regulation. The Forest Service reserves the right to allow others to use the permit area in any way that is not inconsistent with the holder's rights and privileges under this permit, after consultation with all parties involved. Except for any restrictions that the holder and the authorized officer agree are necessary to protect the installation and operation of authorized improvements, the permit area shall remain open to the public for all lawful purposes. To facilitate public use of this area, all existing roads shall remain open to the public, except for roads that may be closed by joint agreement of the holder and the authorized officer.
- H. ASSIGNABILITY.** This permit is not assignable or transferable.
- I. CHANGE IN CONTROL OF THE BUSINESS ENTITY**
1. **Notification.** The holder shall notify the authorized officer when a change in control of the business entity that holds this permit is planned.
 - (a) In the case of a corporation, control is an interest, beneficial or otherwise, of sufficient outstanding voting securities or capital of the business so as to permit the exercise of managerial authority over the actions and operations of the corporation or election of a majority of the board of directors of the corporation.
 - (b) In the case of a partnership, limited partnership, joint venture, or individual entrepreneurship, control is a beneficial ownership of or interest in the entity or its capital so as to permit the exercise of managerial authority over the actions and operations of the entity.
 - (c) In other circumstances, control is any arrangement under which a third party has the ability to exercise management authority over the actions or operations of the business.
 2. **Effect of Change in Control.** Any change in control of the business entity as defined in clause I.H.1 shall cause this permit to terminate upon issuance of a new permit to another party for the use and occupancy authorized by this permit. The party who acquires control of the business entity must submit an application for a permit for the type of use and occupancy authorized by this permit. Issuance of a new permit to the party acquiring control shall be at the sole discretion of the authorized officer. The authorized officer shall determine

that the applicant meets requirements under federal regulations. If a new permit is issued to the party acquiring control, the term shall be for no more than the balance of the term of this permit. Once the permit issued to the party acquiring control expires, issuance of a new permit for the type of use and occupancy authorized by this permit shall be subject to competition.

J. LIMITATIONS. Nothing in this permit gives or implies permission to build or maintain any structure or facility or to conduct any activity, unless specifically provided for in this permit. Any use not specifically identified in this permit must be proposed in accordance with 36 CFR 251.54. Approval of such a proposed use through issuance of a new permit is at the sole discretion of the authorized officer.

II. OPERATIONS, MAINTENANCE, AND RECONDITIONING

A. ANNUAL OPERATING PLAN

1. The holder or the holder's designated representative shall prepare and annually revise by an annual operating plan. The annual operating plan shall be prepared in consultation with the authorized officer or the authorized officer's designated representative and shall cover all operations authorized by this permit, regardless of season. The annual operating plan shall be submitted by the holder and approved in writing by the authorized officer or the authorized officer's designated representative prior to the operating season and shall be attached to this permit as an appendix. Any operating plan revisions shall be submitted by the holder and approved in writing by the authorized officer or the authorized officer's designated representative before they are implemented.

2. The annual operating plan shall specify the operational requirements governing the sites covered by this permit. At a minimum, the annual operating plan shall enumerate the minimum operating seasons and how the holder will provide services to the public; protect public health and safety and the environment; and repair, maintain, or enhance the function of the improvements covered by this permit. The annual operating plan shall contain standards and sufficient detail to enable the Forest Service to monitor operations for compliance.

3. The holder shall perform a condition survey of the water system each year before it is opened. The holder shall prepare a brief written report that notes all deficiencies that may render compliance with Appendix G of this permit (Operation of Federally Owned Drinking Water Systems) and other applicable regulatory requirements infeasible. The condition survey report shall also include a detailed description of all water system deficiencies and/or repair work which the holder has identified as requiring corrective action in order for the system to be in compliance with Appendix G of this permit and applicable Federal and State safe drinking water regulation. If repair work is necessary, a repair plan shall be attached to the condition survey report. The repair plan shall identify all water system components requiring repair, estimated costs for repair and the approximate time schedule to complete the repair. The report shall be sent to the authorized officer at least two weeks prior to opening the system for the season. All deficiencies shall be corrected to the satisfaction of the Forest Service prior to opening the system. Corrections and the date they were made shall be recorded in the condition survey. If the system operates throughout the year, the condition survey shall be submitted to the Forest Service by January 15 each year.

B. MINIMUM USE AND OCCUPANCY. Use and occupancy of the permit area shall be exercised at least days each year, unless otherwise authorized in writing under additional terms of this permit.

C. GRANGER-THYE (GT) FEE OFFSET AGREEMENT. Government maintenance and reconditioning projects shall be performed in accordance with an annual GT fee offset agreement as provided in clause V.D.2 of this permit.

D. HOLDER MAINTENANCE, RECONDITIONING, AND RENOVATION

1. The holder at its expense shall perform holder maintenance, reconditioning, and renovation as defined in clause V.D.1(d) of this permit under a holder maintenance, reconditioning, or renovation plan approved by the Forest Service. The holder maintenance, reconditioning, and renovation plan shall describe required holder maintenance, reconditioning, and renovation responsibilities and their frequency. The work performed under this plan shall not be subject to fee offset under clauses V.D.2 and V.E.1.

2. The holder shall maintain all equipment and other facilities on site in good repair and free of leakage of lubricants, fuel, coolants, and hydraulic fluid. The holder shall properly dispose of all hazardous waste-contaminated soil, vegetation, debris; vehicle oil filters (drained of free-flowing oil); oily rags; and waste oil in accordance with local, State, and Federal regulations off of NFS lands and shall transport such substances, or arrange to have such substances transported in accordance with State and Federal regulations.

E. ALTERATION OF FEDERALLY OWNED IMPROVEMENTS. If during the term of this permit any federally owned improvements are altered in any way, the material, equipment, fixtures or other appurtenances that are affixed to or made a part of those improvements in connection with the alteration shall become the property of the United States, regardless of whether the work is performed by the holder or any other party. The holder shall not be entitled to any compensation for that property, other than to the extent it qualifies for fee offset under clause V.E.

F. RESPONSIBILITY FOR DAY-TO-DAY ACTIVITIES. As a general rule, the holder shall conduct the day-to-day activities authorized by this permit. Some but not all of these activities may be conducted by a party other than the holder, but only with prior written approval of the authorized officer. The holder shall continue to be responsible for compliance with all the terms of this permit.

G. MONITORING BY THE FOREST SERVICE. The Forest Service shall monitor the holder's operations and reserves the right to inspect the permit area and authorized facilities and improvements at any time for compliance with the terms of this permit. The holder shall comply with inspection requirements deemed appropriate by the authorized officer. The holder's obligations under this permit are not contingent upon any duty of the Forest Service to inspect the permit area or authorized facilities or improvements. A failure by the Forest Service or other governmental officials to inspect is not a justification for noncompliance with any of the terms of this permit.

H. CUTTING, DISPOSAL, AND PLANTING OF VEGETATION. This permit does not authorize the cutting of trees, brush, shrubs, and other plants ("vegetation"). Vegetation may be cut, destroyed, or trimmed only after the authorized officer or the authorized officer's designated agent has approved in writing and marked or otherwise identified what may be cut, destroyed, or trimmed. The holder shall notify the authorized officer when approved cutting, destruction, or trimming of vegetation has been completed. The Forest Service shall determine in advance of felling the method of disposal of trees felled in the permit area that meet utilization standards. Disposal may be by sale or without charge per 36 CFR Part 223, as may be most advantageous to the United States. Debris from felling that does not meet utilization standards shall also be disposed of according to methods determined by the Forest Service. If sale to the holder is deemed appropriate for disposal by the authorized officer, in consultation with the local timber management staff, any such timber sale contract between the Forest Service and the holder shall not be interpreted to override or modify the Damage to United States Property Clause, clause III.G, or the Indemnification of the United States Clause, clause III.J, in this permit or in any way affect the Forest Service's ability to recover as an additional insured under the insurance obtained by the holder under the Insurance Clause, clause III.K, in this permit for any injury, loss, or damage arising from the holder's use and occupancy, including cutting, destruction, or trimming of vegetation in the permit area. Planting of vegetation in the permit area must have prior written approval from the authorized officer.

I. SIGNS. Signs or other advertising posted on NFS lands shall be subject to prior written approval of the authorized officer as to location, design, size, color, and content. Erected signs shall be maintained to standards determined by the Forest Service.

J. NONDISCRIMINATION

1. The holder and its employees shall not discriminate against any person on the basis of race, color, sex (in educational and training programs), national origin, age, or disability or by curtailing or refusing to furnish accommodations, facilities, services, or use privileges offered to the public generally. In addition, the holder and its employees shall comply with the provisions of Title VI of the Civil Rights Act of 1964 as amended, Section 504 of the Rehabilitation Act of 1973, as amended, Title IX of the Education Amendments of 1972, as amended, and the Age Discrimination Act of 1975, as amended.

2. The holder shall include and require compliance with the above nondiscrimination provisions in any third-party agreement made with respect to the operations authorized under this permit.

3. The Forest Service shall furnish signs setting forth this policy of nondiscrimination. These signs shall be conspicuously displayed at the public entrance to the permit area and at other exterior or interior locations, as directed by the Forest Service.

4. The Forest Service shall have the right to enforce the foregoing nondiscrimination provisions by suit for specific performance or by any other available remedy under the laws of the United States or the State in which the violation occurs.

K. EQUAL ACCESS TO FEDERAL PROGRAMS. In addition to the above nondiscrimination policy, the holder agrees to ensure that its programs and activities are open to the general public on an equal basis and without regard to any non-merit factor.

L. RESERVATION SERVICES. Recreation.gov is the only authorized reservation service to be utilized by the holder. No other reservation service of any kind may be used by the holder. Operational procedures for use of Recreation.gov will be developed and placed in the annual operating plan.

M. SANITATION. The operation and maintenance of all sanitation and food service systems and facilities shall comply with applicable standards set by state and local health departments.

N. REFUSE DISPOSAL. The holder shall comply with all applicable federal, state, and local requirements related to disposal of any refuse resulting from the use and occupancy authorized by this permit.

O. ADVERTISING. The holder shall not misrepresent in any way, either orally; in online or print circulars, brochures, advertising, and other media; or on its website, signs, or letterheads, any aspect of the use authorized by this permit, including services provided by the holder, the status of this permit, or the permit area. All the holder's online or print circulars, brochures, advertising, and other media regarding use of the permit area shall state that the permit area is located in the [name] National Forest or Grassland.

P. REGULATING SERVICES AND RATES. The Forest Service reserves the right to regulate the adequacy, type, and price of services provided to the public and to require that these services conform to satisfactory standards. The holder may be required to furnish a schedule of prices for sales and services authorized by this permit. Such prices and services may be regulated by the Forest Service, provided that the holder shall not be required to charge prices significantly different from those charged by comparable or competing businesses.

Q. SALE OF ALCOHOLIC BEVERAGES. The sale of alcoholic beverages is prohibited in the permit area.

R. GAMBLING. Gambling or gambling devices is prohibited on NFS lands, regardless of whether gambling or gambling devices are lawful under state or local law.

S. FIREWORKS. The sale of fireworks is prohibited in the permit area. Possession or use of fireworks in the permit area is also prohibited without prior written approval from the authorized officer.

T. DISORDERLY CONDUCT. Disorderly or otherwise objectionable conduct by the holder or those occupying the permit area with the holder's permission shall upon proof thereof be cause for revocation of this permit.

<USER NOTES FOR CLAUSE II.U>

<Include following clause II.U where the holder is the same as the holder in the previous permit for the campground concession. Delete the remaining clause II.U.>

U. USE OF SITE OR FACILITY NAME. Any new use by the holder of the name of a site or facility enumerated in the permit area description on the first page of this permit (hereinafter "the property") to identify goods and services provided under this permit requires prior written approval from the authorized officer. New uses of the property may be approved only if they are conducted in connection with the use and occupancy authorized by this permit and in a manner consistent with the Forest Service's mission, as determined by the Forest Service. Existing uses of the property may continue during the term of this permit without written approval from the authorized officer. Upon termination or revocation of this permit without issuance of a new permit to the holder, any permission granted by the authorized officer for new uses of the property terminates, the holder shall discontinue all new and existing uses of the property, and the holder relinquishes all rights arising from the

holder's use of the property and waives any claim of rights arising from holder's use of the property against the Forest Service and any subsequent holder's use of the property.

<Include the following clause II.U in permits where the holder is different from the holder in the previous permit for the campground concession. Delete the preceding clause II.U.>

U. USE OF SITE OR FACILITY NAME. Any use by the holder of the name of a site or facility enumerated in the permit area description on the first page of this permit (hereinafter "the property") to identify goods and services provided under this permit requires prior written approval from the authorized officer. Uses of the property may be approved only if they are conducted in connection with the use and occupancy authorized by this permit and in a manner consistent with the Forest Service's mission, as determined by the Forest Service. The holder acknowledges that the property is owned solely by the Forest Service, the holder's use of the property shall inure to the exclusive benefit of the Forest Service, and the holder shall not acquire any rights in the property through the holder's use of it. Upon termination or revocation of this permit without issuance of a new permit to the holder, any permission granted by the authorized officer for use of the property terminates, the holder shall discontinue all use of the property, and the holder relinquishes all rights arising from the holder's use of the property and waives any claim of rights arising from holder's use of the property against the Forest Service and any subsequent holder's use of the property.

III. RIGHTS AND LIABILITIES

A. LEGAL EFFECT OF THE PERMIT. This permit, which is revocable and terminable, is not a contract or a lease, but rather a federal license. The benefits and requirements conferred by this authorization are reviewable solely under the procedures set forth in 36 CFR Part 214 and 5 U.S.C. 704. This permit does not constitute a contract for purposes of the Contract Disputes Act, 41 U.S.C. 601. The permit is not real property, does not convey any interest in real property, and may not be used as collateral for a loan.

B. VALID EXISTING RIGHTS. This permit is subject to all valid existing rights. Valid existing rights include those derived from mining and mineral leasing laws of the United States. The United States is not liable to the holder for the exercise of any such right or claim.

C. ABSENCE OF THIRD-PARTY BENEFICIARY RIGHTS. The parties to this permit do not intend to confer any rights on any third party as a beneficiary under this permit, including any party who has responsibility for any day-to-day activities authorized by this permit, if approved by the authorized officer under clause II.F.

<USER NOTES FOR CLAUSE III.D>

<Include clause III.D in special use authorizations when they will involve the use of water and the water development and use will occur on NFS lands. Consult FSH 2709.11, section 52.4, clauses D-24 through D-27, for alternate circumstances and choose the appropriate clauses in consultation with the local Forest Service Water Rights Program Manager. Select or fill in the appropriate use in brackets, and delete the bracketed language as appropriate.>

D. WATER FACILITIES AND WATER RIGHTS

1. **Water Facilities.** No ditch, reservoir, well, spring, seepage, or other facility to pump, divert, store, or convey water (hereinafter "water facilities") for which the point of diversion, storage, or withdrawal is on NFS lands may be initiated, developed, certified, or adjudicated by the holder unless expressly authorized in this permit. The authorization of any water facilities in the permit area is granted to allow use of water only in connection with the [recreation residence, resort, marina, or specify use] authorized by this permit. If the use of any water facilities in connection with this [recreation residence, resort, marina, or specify use] ceases, the authorization to use any associated water facilities terminates. The United States may place conditions on installation, operation, maintenance, and removal of water facilities that are necessary to protect public property, public safety, and natural resources on NFS lands in compliance with applicable law. Any change in a water facility, including a change in the ownership or beneficial use of water or location of use of water from a water facility, that is not expressly authorized in this permit shall result in termination of the authorization for that water facility.

2. **Water Rights.** This permit does not confer any water rights on the holder. The term "water rights" includes all authorizations, such as certificates, reservations, decrees, or permits, for water use issued under state law. Any

necessary water rights must be acquired and maintained by the holder in accordance with State law and the terms of this permit. After this permit is issued, all water rights obtained by the holder for facilities that divert or pump water from sources located on NFS lands for use on NFS lands, whether authorized or unauthorized, are for the benefit of the United States and shall be acquired in the name of the United States. Any expenses for acquiring and maintaining water rights shall be the responsibility of the holder and not the responsibility of the United States. The United States reserves the right to take all actions necessary to maintain and protect any right to divert and use water on site.

WATER RIGHTS HELD IN THE NAME OF THE UNITED STATES (if none, so state)

State ID #	Owner	Purpose of Use	Decree, License, or Certificate #	Point of Diversion	Point of Use

<USER NOTES FOR CLAUSE III.D.3>

<Add clause III.D.3 when water rights required for the use to be authorized have already been obtained in accordance with State law in the name of the holder; acquisition of those water rights did not violate the terms of the permit; and the water development and use will occur on NFS lands. Otherwise delete this clause. Select or fill in the appropriate use in brackets and delete the bracketed language as appropriate.

When clause III.D.3 is included in a permit, the notary clause must be added to the permit after the signature block. Additionally, when the authorized officer is exercising the power of attorney under clause III.D.3(c) to effectuate transfer of water rights to a succeeding permit holder or the United States, the permit and the deed transferring title must be provided to the state engineer's office and the appropriate county recorder's office.>

3. Water Rights Acquired in the Name of the Holder

(a) Identification of Water Rights

WATER RIGHTS HELD IN THE NAME OF THE HOLDER (if none, so state)

State ID #	Owner	Purpose of Use	Decree, License, or Certificate #	Point of Diversion	Point of Use

(b) Termination or Revocation. Upon termination or revocation of this permit, the holder shall transfer the water rights enumerated in clause III.D.3(a) to any succeeding permit holder, for use only in connection with the [recreation residence, resort, marina, or specify other use] authorized by this permit. If that use is not reauthorized, the holder shall promptly petition in accordance with State law to remove from NFS lands the point of diversion and water use associated with the water rights enumerated in clause III.D.3(a) or shall transfer these water rights to the United States.

(c) Documentation of Transfer. The holder and the holder's heirs and assignees shall execute and properly file any document necessary to transfer ownership of the water rights enumerated in clause III.D.3(a) to a succeeding permit holder or the United States. By executing this permit, the holder hereby grants limited power of attorney to

the authorized officer to execute any document on behalf of the holder as may be necessary to transfer the water rights enumerated in clause III.D.3(a) to a succeeding permit holder or the United States.

Holder's initials and date: _____

(d) Waiver. The holder waives any claims against the United States for compensation for any water rights subject to clause III.D.3 that are transferred, removed, or relinquished as a result of revocation or termination of this permit or for compensation in connection with imposition of any conditions on installation, operation, maintenance, and removal of water facilities associated with water rights enumerated in clause III.D.3(a).

E. NO WARRANTY OF ACCESS, SITE SUITABILITY, OR SERVICES. This permit authorizes the use and occupancy of NFS lands by the holder for the purposes identified in this permit. The Forest Service does not make any express or implied warranty of access to the permit area, of the suitability of the permit area for the authorized uses, or for the furnishing of road or trail maintenance, water, fire protection services, search and rescue services, or any other services by a government agency, utility, association, or individual.

F. RISK OF LOSS. The holder assumes all risk of loss to the authorized improvements and all risk of loss of use and occupancy of the permit area, in whole or in part, due to public health and safety or environmental hazards. Loss to the authorized improvements and of use and occupancy of the permit area may result from but is not limited to theft, vandalism, fire and any fire-fighting activities (including prescribed burns), environmental contamination, avalanches, rising waters, winds, falling limbs or trees, and other forces of nature. If any authorized improvements in the permit area are destroyed or substantially damaged, the authorized officer shall conduct an analysis to determine whether the improvements can be safely occupied in the future and whether rebuilding should be allowed. If rebuilding is not allowed, this permit shall terminate. If the authorized officer determines that the permit area cannot be safely occupied due to a public health or safety or environmental hazard, this permit shall terminate. Termination under this clause shall not give rise to any claim for damages, including lost profits and the value of the improvements, by the holder against the Forest Service.

G. DAMAGE TO UNITED STATES PROPERTY. The holder has an affirmative duty to protect from damage the land, property, and other interests of the United States that are associated with the use and occupancy authorized by this permit. Damage includes but is not limited to destruction of or damage to NFS lands, fire suppression costs, and destruction of or damage to federally owned improvements.

1. The holder shall be liable for all injury, loss, or damage, including fire suppression costs, prevention and control of the spread of invasive species, and the costs of rehabilitation or restoration of natural resources, resulting from the holder's use and occupancy of the permit area. Compensation shall include but not be limited to the value of resources damaged or destroyed, the costs of restoration, cleanup, or other mitigation, fire suppression or other types of abatement costs, and all associated administrative, legal (including attorney's fees), and other costs. Such costs may be deducted from a performance bond required under clause III.L.

2. The holder shall be liable for damage to all roads and trails of the United States caused by use of the holder or the holder's heirs, assignees, agents, employees, or contractors to the same extent as provided under clause III.G.1, except that liability shall not include reasonable and ordinary wear and tear.

H. HEALTH AND SAFETY. The holder shall take all measures necessary to protect the health and safety of all persons affected by the use and occupancy authorized by this permit. The holder shall promptly abate as completely as possible and in compliance with all applicable laws and regulations any physical or mechanical procedure, activity, event, or condition existing or occurring in connection with the authorized use and occupancy during the term of this permit that causes or threatens to cause a hazard to the health or safety of the public or the holder's employees, agents, or contractors. The holder shall as soon as practicable notify the authorized officer of all serious accidents that occur in connection with these procedures, activities, events, or conditions. The Forest Service has no duty under the terms of this permit to inspect the permit area or operations of the holder for hazardous conditions or compliance with health and safety standards.

I. ENVIRONMENTAL PROTECTION

1. Compliance with Environmental Laws. The holder shall in connection with the use and occupancy authorized by this permit comply with all applicable federal, state, and local environmental laws and regulations, including but

not limited to those established pursuant to the Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA), as amended, 42 U.S.C. 9601 *et seq.*, the Resource Conservation and Recovery Act, as amended, 42 U.S.C. 6901 *et seq.*, the Federal Water Pollution Control Act, as amended, 33 U.S.C. 1251 *et seq.*, the Oil Pollution Act, as amended, 33 U.S.C. 2701 *et seq.*, the Clean Air Act, as amended, 42 U.S.C. 7401 *et seq.*, the Toxic Substances Control Act, as amended, 15 U.S.C. 2601 *et seq.*, the Federal Insecticide, Fungicide, and Rodenticide Act, as amended, 7 U.S.C. 136 *et seq.*, and the Safe Drinking Water Act, as amended, 42 U.S.C. 300f *et seq.*

2. Definition of Hazardous Material. For purposes of clause III.I and section V, "hazardous material" shall mean (a) any hazardous substance under section 101(14) of CERCLA, 42 U.S.C. 9601(14); (b) any pollutant or contaminant under section 101(33) of CERCLA, 42 U.S.C. 9601(33); (c) any petroleum product or its derivative, including fuel oil, and waste oils; and (d) any hazardous substance, extremely hazardous substance, toxic substance, hazardous waste, ignitable, reactive or corrosive materials, pollutant, contaminant, element, compound, mixture, solution or substance that may pose a present or potential hazard to human health or the environment under any applicable environmental laws.

3. Oil Discharges and Release of Hazardous Materials. The holder shall immediately notify all appropriate response authorities, including the National Response Center and the authorized officer or the authorized officer's designated representative, of any oil discharge or of the release of a hazardous material in the permit area in an amount greater than or equal to its reportable quantity, in accordance with 33 CFR Part 153 and 40 CFR Part 302. For the purposes of this requirement, "oil" is as defined by section 311(a)(1) of the Clean Water Act, 33 U.S.C. 1321(a)(1). The holder shall immediately notify the authorized officer or the authorized officer's designated representative of any release or threatened release of any hazardous material in or near the permit area which may be harmful to public health or welfare or which may adversely affect natural resources on federal lands.

4. Remediation of Release of Hazardous Materials. The holder shall remediate any release, threat of release, or discharge of hazardous materials that occurs in connection with the holder's activities in the permit area, including activities conducted by the holder's agents, employees, or contractors and regardless of whether those activities are authorized under this permit. The holder shall perform remediation in accordance with applicable law immediately upon discovery of the release, threat of release, or discharge of hazardous materials. The holder shall perform the remediation to the satisfaction of the authorized officer and at no expense to the United States. Upon revocation or termination of this permit, the holder shall deliver the site to the Forest Service in compliance with all applicable laws and regulations and free and clear of contamination.

J. INDEMNIFICATION OF THE UNITED STATES. The holder shall indemnify, defend, and hold harmless the United States for any costs, damages, claims, liabilities, and judgments arising from past, present, and future acts or omissions of the holder in connection with the use and occupancy authorized by this permit. This indemnification and hold harmless provision includes but is not limited to acts and omissions of the holder or the holder's heirs, assignees, agents, employees, or contractors in connection with the use and occupancy authorized by this permit which result in: (1) violations of any laws and regulations which are now or which may in the future become applicable; (2) judgments, claims, demands, penalties, or fees assessed against the United States; (3) costs, expenses, and damages incurred by the United States; or (4) the release or threatened release of any solid waste, hazardous waste, hazardous material, pollutant, contaminant, oil in any form, or petroleum product into the environment. The authorized officer may prescribe terms that allow the holder to replace, repair, restore, or otherwise undertake necessary curative actions to mitigate damages in combination with or as an alternative to monetary indemnification.

K. INSURANCE. The holder shall furnish proof of insurance, such as a certificate of insurance, to the authorized officer prior to issuance of this permit and each year thereafter that this permit is in effect. The Forest Service reserves the right to review the insurance policy and require any changes needed to ensure adequate coverage of the United States in connection with the authorized use and occupancy. The holder shall send an authenticated copy of any insurance policy obtained pursuant to this clause to the Forest Service immediately upon issuance of the policy. Any insurance policy obtained by the holder pursuant to this clause shall include the United States as an additional insured in an endorsement to the policy, and the additional insured provision shall provide for insurance coverage for the United States as required under this clause and to the extent of the full limits of insurance available to the holder. The holder shall give 30 days prior written notice to the Forest Service of cancellation of or any modification to the insurance policy. The certificate of insurance, the authenticated copy of the insurance policy, and written notice of cancellation or modification of an insurance policy should be sent to

the authorized officer. Minimum amounts of coverage and other insurance requirements are subject to change at the sole discretion of the authorized officer on the anniversary date of this permit.



1. **Liability.** The holder shall have in force liability insurance covering losses associated with the use and occupancy authorized by this permit arising from personal injury or death and third-party property damage in the minimum amount of \$#AMOUNT# as a combined single limit per occurrence.

<USER NOTES FOR CLAUSE III.K.2>

<Include clause III.K.2 if the authorized officer intends to repair, rebuild, restore, or replace any authorized improvements that become damaged or destroyed, and require sufficient property insurance to cover the cost of repairing, rebuilding, restoring, or replacing those improvements. Otherwise, omit clause III.K.2, and re-designate clause III.K.3 as clause III.K.2.>

2. **Property.** The holder shall have in force property insurance at a minimum for each of the authorized federally owned improvements listed in Appendix F of this permit, [] in the minimum amount per occurrence listed for each of those improvements in Appendix F, for a total minimum amount per occurrence of \$#AMOUNT#.

[] [] The types of loss to be covered by clause III.K.2 shall include but not be limited to damage to the federally owned improvements listed in Appendix F. The United States shall be named as an additional insured under the property insurance. At the sole discretion of the authorized officer, the Forest Service may require the holder to use all proceeds from property damage insurance policies to repair, rebuild, restore, or replace damaged federally owned property covered by the policy, or may obtain payment of those proceeds from the holder or the insurance company.

3. **Hazardous Materials.** Depending on the holder's operations, the Forest Service may require the holder to demonstrate the availability of funds to address any release or threatened release of hazardous materials that may occur in connection with the holder's use and occupancy. Any requirements imposed would be established on a case-by-case basis by the authorized officer based on the degree of environmental risk from the holder's operations. The use and storage of normal campground maintenance items in nominal amounts would generally not trigger financial assurance requirements.

L. BONDING. The authorized officer may require the holder to furnish a bond or other security for any of the obligations imposed by the terms of this permit or any applicable law, regulation, or order.

<USER NOTES FOR CLAUSES III.L.1 THROUGH III.L.3>

<Delete clauses IV.L.1 through IV.L.3 when a bond is not required.>

1. As a further guarantee of compliance with the terms of this permit, the holder agrees to deliver and maintain a surety bond or other acceptable security, such as cash deposited and maintained in a federal depository or negotiable securities of the United States, in the amount of \$#AMOUNT# for [specify obligations covered, e.g., to secure the holder's obligation to restore the permit area after construction or upon revocation or termination of the permit without issuance of a new permit]. The authorized officer may periodically evaluate the adequacy of the bond or other security and increase or decrease the amount as appropriate. If the bond or other security becomes unsatisfactory to the authorized officer, the holder shall within 30 days of demand furnish a new bond or other security issued by a surety that is solvent and satisfactory to the authorized officer. The bond shall provide that at the Forest Service's sole discretion the surety shall pay the United States for any loss covered by the bond or, in the event of complete default under the permit, shall pay a third party to operate the concession for the balance of the permit term, without prejudice to any other rights and remedies of the United States. The bond shall also provide that selection of a third party to operate the site is subject to Forest Service approval.

2. The bond shall be released or other security returned 30 days after (a) the authorized officer certifies that the obligations covered by the bond or other security are met and (b) the holder establishes to the satisfaction of the authorized officer that all claims for labor and material for the secured obligations have been paid or released.

3. The holder may be required to obtain additional bonding or security prior to undertaking additional construction or alteration not covered by the bond or other security or when the authorized improvements are to be removed and the permit area restored.

IV. RESOURCE PROTECTION

A. WATER SYSTEMS

1. The holder, as the water supplier and operator of the drinking water system, shall operate the system in compliance with Forest Service Manual (FSM) Chapter 7420, applicable federal, state, and local drinking water laws and all regulations applicable to public and nonpublic drinking water systems. This includes, but is not limited to, renovation, operating and maintaining the system and conducting drinking water testing, maintaining records to demonstrate compliance, and taking the appropriate corrective and follow-up actions in accordance with Appendix G of this permit (Operation of Federally Owned Drinking Water Systems) and federal, state, and any other applicable requirements. The holder shall be able to demonstrate compliance with Appendix G of this permit (Operation of Federally Owned Drinking Water Systems) and all other applicable requirements by maintaining all necessary records. For the purposes of this authorization, public water systems are as defined in the Safe Drinking Water Act, 42 U.S.C. 300f *et seq.*, as amended, and in the National Primary Drinking Water Regulations, 40 CFR Part 141, or by state regulations if more stringent. Requirements under FSM 7420 applicable to the holder are set forth in this section and Appendix G to the permit entitled "Operation of Federally Owned Drinking Water Systems."
2. For federally owned systems, the holder shall notify and consult with the Forest Service within 24 hours or on the next business day after notification by the laboratory of a sample that tests positive for microbiological contamination. The holder shall provide a copy of positive lab test to the Forest Service within one week of receiving the lab result. The holder shall notify the State drinking water program and Forest Service within 48 hours of any failure to comply with a federal or state drinking water requirement and make a written record that the notification occurred and place it in the system's record file. The holder shall notify and consult with the Forest Service within 48 hours of notification of a maximum contaminant level violation or an acute violation. The holder shall respond to the microbial contamination event as specified in Appendix G of this permit (Operation of Federally Owned Drinking Water Systems) and applicable regulations.
3. The holder shall retain all records as required by applicable laws and regulations. The holder agrees to make the records available upon request to the Forest Service and to any other regulatory agency authorized to review Forest Service activities. Copies of microbiological test results for federally owned water systems shall be forwarded monthly to the Forest Service by the 15th of the month following the sampling date. Copies of all other drinking water sample results shall be forwarded to the Forest Service at the end of the operating season. If the operating season is longer than six months in length, copies of sample results must be provided to the Forest Service every six months. The holder shall clearly identify all sample results that violate FSM requirements or state, federal, and local requirements when the copies are submitted. Sample results that violate any of these requirements must have the results of required follow up samples attached. Copies of sample results that violate state requirements must have documentation attached to demonstrate that the state was informed of the violation within 48 hours of the lab notifying the holder of the results. The holder shall surrender all records for a federally owned system to the Forest Service upon permit termination or revocation.
4. For federally owned systems, the holder shall provide the name of the water system operator in writing to the Forest Service and notify the authorized officer within 72 hours of a change in personnel. Operators shall be certified to operate drinking water systems for all water systems classified as community or non-transient, non-community or when otherwise required by the state in which the system is located. Records to demonstrate operator certification shall be kept by the holder and made available to Forest Service upon request.

B. VANDALISM. The holder shall take reasonable measures to prevent and discourage vandalism and disorderly conduct and when necessary shall contact the appropriate law enforcement officer.

C. PESTICIDE USE

1. Authorized Officer Concurrence. Pesticides may not be used outside of buildings in the permit area to control pests, including undesirable woody and herbaceous vegetation (including aquatic plants), insects, birds, rodents, or fish without prior written concurrence of the authorized officer. Only those products registered or otherwise authorized by the U.S. Environmental Protection Agency and appropriate State authority for the specific purpose planned shall be authorized for use within areas on NFS lands.

2. Pesticide-Use Proposal. Requests for concurrence of any planned uses of pesticides shall be provided in advance using the Pesticide-Use Proposal (form FS-2100-2). Annually the holder shall, on the due date established by the authorized officer, submit requests for any new, or continued, pesticide usage. The Pesticide-Use Proposal shall cover a 12-month period of planned use. The Pesticide-Use Proposal shall be submitted at least 60 days in advance of pesticide application. Information essential for review shall be provided in the form specified. Exceptions to this schedule may be allowed, subject to emergency request and approval, only when unexpected outbreaks of pests require control measures which were not anticipated at the time a Pesticide-Use Proposal was submitted.

3. Safety Plan. Before applying pesticides in the permit area, the holder shall submit to the authorized officer a safety plan that includes, at a minimum, a precise statement of the treatment objectives; a description of the equipment, materials, and supplies to be used, including pesticide formulation, quantities, and application methods; a description of the lines of responsibility for project planning, project monitoring, and after-action review; a description of any necessary interagency coordination; a copy of the current Pesticide-Use Proposal for the permit; a description of the process by which treatment effectiveness will be determined; and a spill plan, communications plan, security plan, and when required by applicable local requirements, a provision for prior notification to sensitive individuals.

4. Reporting. By September 30th annually, the holder shall submit to the authorized officer a written report of each pesticide application project completed during the previous 12-month period. The report shall contain information pertaining to the pesticide application projects as requested by the authorized officer.

5. Labeling, Laws, and Regulations. Label instructions and all applicable laws and regulations shall be strictly followed in the application of pesticides and disposal of excess materials and containers. No pesticide waste, excess materials, or containers shall be disposed of in any area administered by the Forest Service.

D. ARCHAEOLOGICAL AND PALEONTOLOGICAL DISCOVERIES. The holder shall immediately notify the authorized officer of any antiquities or other objects of historic or scientific interest, including but not limited to historic or prehistoric ruins, fossils, or artifacts discovered in connection with the use and occupancy authorized under this permit. The holder shall leave these discoveries intact and in place until otherwise directed by the authorized officer.

E. NATIVE AMERICAN GRAVES PROTECTION AND REPATRIATION (NAGPRA). In accordance with 25 U.S.C. 3002 (d) and 43 CFR 10.4, if the holder inadvertently discovers human remains, funerary objects, sacred objects, or objects of cultural patrimony on NFS lands, the holder shall immediately cease work in the area of the discovery and shall leave these discoveries intact and in place. The holder shall follow the applicable NAGPRA protocols for the undertaking provided in the NAGPRA plan of action or the NAGPRA comprehensive agreement; if there are no such agreed-upon protocols, the holder shall as soon as practicable notify the authorized officer of the discovery and shall follow up with written confirmation of the discovery. The activity that resulted in the inadvertent discovery may not resume until 30 days after the authorized officer certifies receipt of the written confirmation, if resumption of the activity is otherwise lawful, or at any time if a NAGPRA plan of action has been executed by the Forest Service following tribal consultation and any preconditions have been met.

F. PROTECTION OF THREATENED AND ENDANGERED SPECIES, SENSITIVE SPECIES, AND SPECIES OF CONSERVATION CONCERN AND THEIR HABITAT

1. Threatened and Endangered Species and Their Habitat. The location of sites within the permit area needing special measures for protection of plants or animals listed as threatened or endangered under the Endangered Species Act (ESA), 16 U.S.C. 531 *et seq.*, as amended, or within designated critical habitat shall be shown on a map in an appendix to this permit and may be shown on the ground. The holder shall take any protective and mitigation measures specified by the authorized officer as necessary and appropriate to avoid or reduce effects on listed species or designated critical habitat affected by the authorized use and occupancy. Discovery by the holder or the Forest Service of other sites within the permit area containing threatened or endangered species of designated critical habitat not shown on the map in the appendix shall be promptly reported to the other party and shall be added to the map.

2. Sensitive Species and Species of Conservation Concern and Their Habitat. The location of sites within the permit area needing special measures for protection of plants or animals designated by the Regional Forester as

sensitive species or as species of conservation concern pursuant to FSM 2670 shall be shown on a map in an appendix to this permit and may be shown on the ground. The holder shall take any protective and mitigation measures specified by the authorized officer as necessary and appropriate to avoid or reduce effects on sensitive species or species of conservation concern or their habitat affected by the authorized use and occupancy. Discovery by the holder or the Forest Service of other sites within the permit area containing sensitive species or species of conservation concern or their habitat not shown on the map in the appendix shall be promptly reported to the other party and shall be added to the map.

G. CONSENT TO STORE HAZARDOUS MATERIALS. The holder shall not store any hazardous materials at the site without prior written approval from the authorized officer. This approval shall not be unreasonably withheld. If the authorized officer provides approval, this permit shall include or, in the case of approval provided after this permit is issued, shall be amended to include specific terms addressing the storage of hazardous materials, including the specific type of materials to be stored, the volume, the type of storage, and a spill or release prevention and control plan. Such terms shall be proposed by the holder and are subject to approval by the authorized officer.

<USER NOTES FOR CLAUSE IV.G.1 THROUGH IV.G.3>

<Add clauses IV.G.1 through IV.G.3 when consenting to store hazardous materials. Otherwise, omit them.>

1. If the holder receives consent to store hazardous materials, the holder shall identify to the Forest Service any hazardous material to be stored at the site. This identifying information shall be consistent with column (1) of the table of hazardous materials and special provisions given at 49 CFR 172.101 whenever the hazardous material appears in that table. For hazard communication purposes, the holder shall maintain Material Safety Data Sheets for any stored hazardous chemicals, consistent with 29 CFR 1910.1200(c) and (g). In addition, all hazardous materials stored by the holder shall be used, labeled, stored, transported, and disposed of in accordance with all applicable Federal, State, and local laws and regulations. Any hazardous material transportation and disposal manifests shall clearly identify the holder as the generator of the hazardous waste.
2. If hazardous materials are used or stored at the site, the authorized officer may require the holder to deliver and maintain a surety bond in accordance with clause III.L.
3. The holder shall not release any hazardous materials onto land or into rivers, streams, impoundments, or into natural or artificial channels leading thereto. All prudent and safe attempts must be made to contain any release of these materials. The authorized officer in charge may specify specific conditions that must be met, including conditions more stringent than Federal, State, and local regulations, to prevent releases and protect natural resources.
4. If the holder uses or stores hazardous materials at the site, upon revocation or termination of this permit the holder shall provide the Forest Service with a report certified by a professional or professionals acceptable to the Forest Service that the permit area is uncontaminated by the presence of hazardous materials and that there has not been a release or discharge of hazardous materials upon the permit area, into surface water at or near the permit area, or into groundwater below the permit area during the term of the permit. If a release or discharge has occurred, the professional or professionals shall document and certify that the release or discharge has been fully remediated and that the permit area is in compliance with all applicable federal, state, and local laws and regulations.

H. WATER WELLS AND ASSOCIATED PIPELINES

1. Other Jurisdictional Requirements. Clause III.D governs water rights and water facilities. The holder shall obtain all required state and local water permits, licenses, registrations, certificates, or rights and shall provide a copy of them to the authorized officer. For new wells, this information shall be provided prior to disturbing NFS lands for the purpose of water use or development.
2. Well Construction or Development. For new or reconstruction of existing wells, the holder shall prepare a well construction and development plan and submit it to the authorized officer for approval. The well development and construction plan must have prior written approval from the authorized officer before well construction or development is initiated. The holder shall follow applicable federal, state, and local standards for design, construction, and development of new wells or reconstruction of existing wells. If such standards do not exist, the

holder shall follow applicable standards issued by the American Society for Testing and Materials (ASTM), American Water Works Association (AWWA), or National Ground Water Association (NGWA). The construction and development plan must identify all potential sources for any proposed water injection during well construction or development. Only non-chlorinated, potable water may be injected during construction or development of wells to be used for monitoring or water withdrawal. Copies of all documentation for drilling, constructing, or developing wells, including all drilling, boring, and well construction logs, shall be provided to the authorized officer within 60 days of completion of work.

3. **Well Decommissioning.** The holder shall properly decommission and abandon all wells that are no longer needed or maintained in accordance with applicable federal, state, and local standards for water well abandonment. If such standards do not exist, the holder shall follow applicable standards issued by the ASTM, AWWA, or NGWA. At least 30 days prior to initiation of well decommissioning, the holder shall submit a well decommissioning plan to the authorized officer. The well decommissioning plan shall have written approval from the authorized officer before well decommissioning is initiated. All documentation of well decommissioning shall be provided to the authorized officer within 60 days of completion of the work.

V. LAND USE FEES AND DEBT COLLECTION

A. LAND USE FEES. The holder shall pay to the USDA, Forest Service, an annual land use fee for the term of this permit based on the market value of the use and occupancy authorized by this permit of percent of adjusted gross revenue as defined in clause V.B. The minimum annual land use fee for the authorized use and occupancy shall be . If the percentage of gross revenue in a given year is less than the minimum annual land use fee, the holder shall pay the minimum annual land use fee. The holder shall pay the land use fee in advance of the authorized use and occupancy, as provided in clause V.C. Payments due before commercial operations commence pursuant to clause V.C.1 are not refundable, except to the extent they are subject to fee offset under clause V.D. The Forest Service may adjust the minimum land use fee every five years from the due date of the first annual payment to make the annual land use fee commensurate with the market value of the authorized use and occupancy.

B. DEFINITIONS

1. **Adjusted Gross Revenue.** Gross revenue plus applicable revenue additions, minus applicable revenue exclusions.

2. **Gross Revenue.** The total amount of receipts from the sale of goods or services provided by the holder or third party under the permit.

3. **Revenue Additions.** The following are added to gross revenue:

- (a) The value of goods and services that are donated or bartered; and
- (b) The value of gratuities, which are goods, services, or privileges that are not available to the general public.

4. **Revenue Exclusions.** The following are excluded from gross revenue:

- (a) Amounts paid or payable to a state licensing authority.
- (b) Revenue from the sale of operating equipment and from capitalized or other assets used in authorized operations.
- (c) Refunds of use fees provided to the public by the holder.

C. PAYMENT SCHEDULE

1. **Initial Payment.** An initial cash payment representing the portion of the estimated annual land use fee for one month of revenue during the operating season (but not less than \$1,500, unless the total land use fee is less than

\$1,500) shall be paid in advance of use each year, or the equivalent of that initial cash payment in GT fee offset work shall be performed, beginning when the permit term commences or beginning when use commences each year thereafter. Any initial cash payment is not refundable, except to the extent that all or part of it may be offset by the cost of work performed pursuant to a GT fee offset agreement as provided in clause V.D.

<USER NOTES FOR CLAUSE V.C.2>

<Include the following clause V.C.2 where the estimated annual land use fee is less than \$10,000, and delete the remaining clause V.C.2. Revise the payment due dates if the operating season does not run from mid-May to mid-September. However, payments must be made at least quarterly. Each payment is due in advance of use.>

- ☐ 2. Subsequent Payments. The holder shall report sales, calculate fees due, and make payment in two installments, on [] , and on [] .

<Include the following clause V.C.2 where the estimated annual land use fee is more than \$10,000, and delete the remaining clause V.C.2.>

- ☐ 2. Subsequent Payments. The holder shall report sales, calculate fees due, and make payment each month.

☐ **D. GT FEE OFFSET**. Pursuant to 16 U.S.C. 580d, the Forest Service may offset all or part of the land use fee by the amount paid by the holder for maintenance, renovation, reconditioning, and improvement deemed to be the Government's responsibility, as defined below, of federally owned improvements and their associated land.

1. Definitions

(a) Maintenance. Actions taken to keep fixed assets in an acceptable condition, including preventive maintenance, normal repairs, replacement of parts and structural components, and other activities needed to preserve a fixed asset so that it continues to provide acceptable service and achieves its expected life, and work needed to comply with laws, regulations, codes, and other legal requirements as long as the original intent or purpose of the fixed asset is not changed, but not including activities aimed at expanding the capacity of an asset or otherwise upgrading it to serve needs different from or significantly greater than those originally intended, such as construction of new facilities.

(b) Improvement. Advancing a fixed asset to a better quality or state or adding a new fixed asset to the authorized improvements under the permit, including replacement, such as, substitution of a fixed asset or any of its components with one having essentially the same capacity and purpose. Improvement is always the responsibility of the Government rather than the holder.

(c) Reconditioning or Renovation. A type of maintenance, other than construction of new facilities, that rehabilitates an existing fixed asset or any of its components to restore the functionality or life of the asset.

(d) Holder Maintenance, Reconditioning, or Renovation. Maintenance, reconditioning, or renovation (MRR) that neither materially adds to the value of the property nor appreciably prolongs its life and that serves only to keep the facility in an ordinary, efficient operating condition, such as, from an accounting or tax perspective, work that may be expensed, but not capitalized, including but not limited to interior decorating, interior painting, vandalism repair, repair of broken windows, light bulb replacement, cleaning, unplugging drains, drive belt replacement, preventive maintenance, lubrication of motors, greasing, servicing, inspecting, oiling, adjusting, tightening, aligning, watering, weeding, sweeping, waxing, refinishing picnic tables, routine housekeeping, and general snow removal.

(e) Government Maintenance, Reconditioning, Renovation, or Improvement. Maintenance reconditioning, renovation, or improvement (MRRi) that arrests deterioration, improves and upgrades facilities, and appreciably prolongs the life of the property, including but not limited to installing a new roof, new floor, or new siding; rebuilding boilers; replacing pipes, pumps, and motors; repairing or maintaining the paths, lands, walks, walls, or landscaping adjacent to other federally owned structures; replacing vault toilets with flush facilities, paving interior

roads, upgrading facilities, and installing utilities; and performing exterior painting and refinishing (other than repair of unsightly visual marks caused by everyday use) and that is performed at the sole discretion of the authorized officer.

2. GT Fee Offset Agreement. Before issuance of this permit and before each operating season thereafter, the Forest Service and the holder shall annually enter into a written GT fee offset agreement that specifies the Government maintenance, reconditioning, renovation and improvement (MRRI) to be used to offset the land use fee. The agreement shall enumerate the portion of the land use fee to be offset by the cost of work performed by the holder and the schedule for completion of offset work; which projects are to be used for offset that year; standards for completion of the projects; and examples of allowable costs.

<USER NOTES FOR OPTIONAL CLAUSES V.E AND V.F>

<Include the following optional clauses V.E and V.F when the holder performs the work under a GT fee offset agreement. Delete the remaining optional clauses V.E and V.F. The holder may request an amendment to the permit per FSM 2714 that provides for the Forest Service or a Forest Service contractor to perform the work under a GT fee offset agreement. If the amendment is approved, use form FS-2700-23, and replace clauses V.E and V.F with clause A-21 from FSH 2709.11, chapter 50, section 52.1. If optional clauses V.E and V.F are not included, re-letter the remaining clauses in section V.>

E. HOLDER-PERFORMED FEE OFFSET WORK

1. Work in Lieu of Cash Payments. Notwithstanding clauses V.A and V.C, the cost of work performed by the holder pursuant to a GT fee offset agreement as provided in clause V.D.2 may be credited in lieu of cash payments against the annual land use fee, provided that the work has been accomplished in accordance with the GT fee offset agreement and has been accepted as completed by the Forest Service before the end of the holder's fiscal year. In the absence of an approved GT fee offset agreement, payment shall be made in accordance with clauses V.A and V.C.

2. Documentation of Expenses. Prior to reimbursement or credit for GT fee offset work, the holder shall submit sufficient documentation to allow the authorized officer to determine that the costs claimed are allocable to the GT fee offset agreement, actual, reasonable, and not unallowable.

3. Final Payment. The Forest Service shall reconcile annually the actual land use fee against land use fees paid and credit given by the Forest Service for GT fee offset work. The holder shall pay any additional land use fees owed for the past year's operations within 30 days of billing.

4. Overpayment. Overpayment of the land use fee will be reimbursed by the Forest Service only if paid pursuant to clause V.A. Credit for offset work pursuant to clause V.D.2 is limited to the amount of the annual land use fee; expenses will not be reimbursed if they are greater than the annual land use fee.

F. HOLDER MAINTENANCE, RECONDITIONING, AND RENOVATION (MRR) PLAN. The holder at its expense shall perform holder MRR as defined in clause V.D.1(d) of this permit under a holder MRR plan approved by the Forest Service. The holder MRR plan shall describe required holder MRR and their frequency. The work performed under the holder MRR plan shall not be subject to fee offset under clauses V.D.2 and V.E.1.

<USER NOTES FOR OPTIONAL CLAUSES V.E AND V.F>

<Select the following optional clauses V.E and V.F when the Forest Service or a Forest Service contractor performs the work under a GT fee offset agreement. Delete optional clauses V.E and V.F above. The holder may request an amendment to the permit per FSM 2714 to provide for the holder to perform the work under a GT fee offset agreement. If the amendment is approved, use form FS-2700-23, and replace clauses V.E and V.F with clause A-20 from FSH 2709.11, chapter 50, section 52.1. If optional clauses V.E and V.F are not included, re-letter the remaining clauses in section V.>

E. FOREST SERVICE-PERFORMED GT FEE OFFSET WORK

1. Work in Lieu of Cash Payments. Notwithstanding clauses V.A and V.C, the cost of work performed pursuant to a GT fee offset agreement as provided in clause V.D.2 may be credited in lieu of cash payments against the annual land use fee. The GT fee offset agreement shall specify that the Forest Service will perform the work or

contract with a third party to perform the work. In the absence of an approved GT fee offset agreement, payment shall be made in accordance with clauses V.A and V.C.

2. Payments. The holder shall deposit land use fees [annually or quarterly] into a cooperative account. All deposits shall be retained by the Forest Service until expended or, if unutilized in 5 years, shall be deposited into the U.S. Treasury.

3. Offset for Forest Service Oversight of Major Government MRRI Performed by the Holder. The Forest Service may include in the GT fee offset agreement the cost of a Forest Service employee administering and overseeing major government MRRI projects. For purposes of this clause only, a major government MRRI project is one costing \$[amount] or more.

F. HOLDER MAINTENANCE, RECONDITIONING, AND RENOVATION (MRR) PLAN. The holder at its expense shall perform holder MRR as defined in clause V.D.1(d) of this permit under a holder MRR plan approved by the Forest Service. The holder MRR plan shall describe required holder MRR and their frequency. The work performed under the holder MRR plan shall not be subject to fee offset under clause V.D.2.

G. LAND USE FEE PAYMENTS

1. Crediting of Payments. Payments shall be credited on the date received by the deposit facility, except that if a payment is received on a non-workday, the payment shall not be credited until the next workday.

2. Disputed Fees. Land use fees are due and payable by the due date. Disputed land use fees, other than land use fees recalculated pursuant to an audit, must be paid in full. Adjustments will be made if dictated by an administrative appeal decision, a court decision, or settlement terms.

3. Late Payments

(a) Interest. Pursuant to 31 U.S.C. 3717 *et seq.*, interest shall be charged on any land use fee not paid within 30 days from the date it became due. The rate of interest assessed shall be the higher of the Prompt Payment Act rate or the rate of the current value of funds to the United States Treasury (i.e., the Treasury tax and loan account rate), as prescribed and published annually or quarterly by the Secretary of the Treasury in the *Federal Register* and the Treasury Fiscal Requirements Manual Bulletins. Interest on the principal shall accrue from the date the land use fee is due.

(b) Administrative Costs. If the account becomes delinquent, administrative costs to cover processing and handling the delinquency shall be assessed.

(c) Penalties. A penalty of 6% per annum shall be assessed on the total amount that is more than 90 days delinquent and shall accrue from the same date on which interest charges begin to accrue.

(d) Termination for Nonpayment. This permit shall terminate if the holder fails to pay any land use fee, interest, or any other charges within 90 calendar days of the due date. The holder shall remain responsible for the delinquent charges.

4. Administrative Offset and Credit Reporting. Delinquent land use fees and other charges associated with this permit shall be subject to all rights and remedies afforded the United States pursuant to 31 U.S.C. 3711 *et seq.* and common law. Delinquencies are subject to any or all of the following:

(a) Administrative offset of payments due the holder from the Forest Service.

(b) If in excess of 90 days, referral to the United States Department of the Treasury for appropriate collection action as provided by 31 U.S.C. 3711(g)(1).

(c) Offset by the Secretary of the Treasury of any amount due the holder, as provided by 31 U.S.C. 3720 *et seq.*

(d) Disclosure to consumer or commercial credit reporting agencies.

H. ACCOUNTING RECORDS AND ACCESS. The holder shall follow generally accepted accounting principles or other cash basis of accounting in recording financial transactions. When requested by the Forest Service, the holder at its own expense shall have its annual accounting records audited by an independent public accountant acceptable to the Forest Service. The holder shall require any party who has responsibility for any day-to-day activities under clause II.F of this permit to comply with these same requirements. The holder shall make all of the accounting books and supporting records for the business activities authorized by this permit, as well as those of any parties authorized to operate under clause II.F of this permit, available for audit by the Forest Service or other federal agencies authorized to review Forest Service activities. The holder shall retain these records and make them available for review for five years after the end of the year they were generated, unless disposition is otherwise authorized by the Forest Service in writing.

VI. REVOCATION, SUSPENSION, AND TERMINATION

A. REVOCATION AND SUSPENSION

1. The Forest Service may suspend or revoke this permit in whole or in part:
 - (a) For noncompliance with federal, state, or local laws and regulations;
 - (b) For noncompliance with the terms of this permit;
 - (c) For failure of the holder to exercise the privileges granted by this permit; or
 - (d) At the discretion of the authorized officer, for specific and compelling reasons in the public interest.
2. The authorized officer may revoke this permit at the request of the holder. Revocation at the request of the holder must be agreed to in writing by the authorized officer. As a condition of revocation of this permit at the request of the holder, the authorized officer has discretion to impose any terms deemed appropriate as provided for in this permit.
3. Prior to revocation or suspension, other than revocation at the request of the holder under clause VI.A.2 and immediate suspension under clause VI.B, the authorized officer shall give the holder written notice of the grounds for revocation or suspension and a reasonable period, not to exceed 30 days, to cure any noncompliance.

B. IMMEDIATE SUSPENSION. The authorized officer may immediately suspend this permit in whole or in part when necessary to protect public health or safety or the environment. The suspension decision shall be in writing. The holder may request an onsite review with the authorized officer's superior of the adverse conditions prompting the suspension. The authorized officer's superior shall grant this request within 48 hours. Following the onsite review, the authorized officer's superior shall promptly affirm, modify, or cancel the suspension.

C. APPEALS AND REMEDIES. Written decisions by the authorized officer relating to administration of this permit are subject to administrative appeal pursuant to 36 CFR Part 214, as amended. Revocation or suspension of this permit shall not give rise to any claim for damages by the holder against the Forest Service.

D. TERMINATION. This permit shall terminate when by its terms a fixed or agreed upon condition, event, or time occurs without any action by the authorized officer. Examples include but are not limited to expiration of the permit by its terms on a specified date and, in the case of a permit issued to a business entity, termination upon change of control of the business entity. Termination of this permit is not subject to administrative appeal.

E. CONTINUATION OF OBLIGATIONS AND LIABILITIES BEYOND TERMINATION OR REVOCATION.

Notwithstanding the termination or revocation of this permit, its terms and conditions shall remain in effect and shall be binding on the holder and the holder's personal representative, successors, and assignees until all the holder's obligations and liabilities accruing before or as a result of termination or revocation of this permit have been satisfied.

VII. MISCELLANEOUS PROVISIONS

A. MEMBERS OF CONGRESS. No member of or delegate to Congress or resident commissioner shall benefit from this permit either directly or indirectly, except to the extent the authorized use provides a general benefit to a corporation.

B. CURRENT ADDRESSES. The holder and the Forest Service shall keep each other informed of current mailing addresses, including those necessary for payment of fees.

C. HOLDER REPRESENTATIVE. The holder or a designated representative shall be present on the premises at all times when the facilities are open to the public. The holder shall notify the authorized officer in writing as to who the representative will be.

K. SUPERIOR CLAUSES. In the event of any conflict between any of the preceding printed clauses and any subsequent clauses or provisions in the appendices attached to this permit, the preceding printed clauses shall control.

THIS PERMIT IS GRANTED SUBJECT TO ALL ITS TERMS.

BEFORE THIS PERMIT IS ISSUED TO AN ENTITY, DOCUMENTATION MUST BE PROVIDED TO THE AUTHORIZED OFFICER OF THE AUTHORITY OF THE SIGNATORY FOR THE ENTITY TO BIND IT TO THE TERMS OF THIS PERMIT.

ACCEPTED:

[NAME AND TITLE OF PERSON SIGNING ON BEHALF OF HOLDER, DATE
IF HOLDER IS AN ENTITY]
#HOLDER_NAME#

APPROVED:

#AUTHORIZED OFFICER NAME# DATE
#TITLE#

 National Forest
USDA Forest Service

<Add the following clause after the signature block in the permit when clause III.D.3 has been included in the permit. A limited power of attorney must be notarized.>

On [date], before me, a notary public in the State of _____, personally appeared [name of holder], known to me to be the person who signed the permit as the holder.

Notary Public for the State of _____
My commission expires [date] _____

U.S. DEPARTMENT OF AGRICULTURE
Forest Service

By: _____
(Authorized Officer)

Date: _____

<Attach annual operating plan, annual GT fee offset agreement, holder MRR plan, recreation site maps, facility and improvement inventory, Operation of Federally Owned Drinking Water Systems, and any other appendices.>

According to the Paperwork Reduction Act of 1995, an agency may not conduct or sponsor, and a person is not required to respond, to a collection of information unless it displays a valid OMB control number. The valid OMB control number for this information collection is 0596-0082. Response to this collection of information is mandatory. The authority to collect the information is the Organic Administration Act, 16 U.S.C. 551. The time required to complete this information collection is estimated to average 1 hour per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information.

In accordance with Federal civil rights law and U.S. Department of Agriculture (USDA) civil rights regulations and policies, the USDA, its Agencies, offices, and employees, and institutions participating in or administering USDA programs are prohibited from discriminating based on race, color, national origin, religion, sex, disability, age, marital status, family/parental status, income derived from a public assistance program, political beliefs, or reprisal or retaliation for prior civil rights activity, in any program or activity conducted or funded by USDA (not all bases apply to all programs). Remedies and complaint filing deadlines vary by program or incident.

Persons with disabilities who require alternative means of communication for program information (e.g., Braille, large print, audiotape, American Sign Language, etc.) should contact the State or local Agency that administers the program or contact USDA through the Telecommunications Relay Service at 711 (voice and TTY). Additionally, program information may be made available in languages other than English.

To file a program discrimination complaint, complete the USDA Program Discrimination Complaint Form, AD-3027, found online at [How to File a Program Discrimination Complaint](#) and at any USDA office or write a letter addressed to USDA and provide in the letter all of the information requested in the form. To request a copy of the complaint form, call (866) 632-9992. Submit your completed form or letter to USDA by: (1) mail: U.S. Department of Agriculture, Office of the Assistant Secretary for Civil Rights, 1400 Independence Avenue, SW, Mail Stop 9410, Washington, D.C. 20250-9410; (2) fax: (202) 690-7442; or (3) email: program.intake@usda.gov.

USDA is an equal opportunity provider, employer, and lender.

The Privacy Act of 1974, 5 U.S.C. 552a, and the Freedom of Information Act, 5 U.S.C. 552, govern the confidentiality to be provided for information received by the Forest Service.

Authorization ID: #AUTH_ID#
Contact ID: #HOLDER_ID#
Use Code: #USE_CODE#
Expiration Date: #EXPIRATION_DATE#

FS-2700-4h, App. G (09/2020)
OMB No. 0596-0082

**U.S. DEPARTMENT OF AGRICULTURE
FOREST SERVICE

SPECIAL USE PERMIT FOR
CAMPGROUND AND RELATED GRANGER-THYE CONCESSIONS

APPENDIX G
OPERATION OF FEDERALLY OWNED DRINKING WATER SYSTEMS

Authority: Section 7 of the Granger-Thye Act, 16 U.S.C. 580d**

I. INTRODUCTION

The requirements set forth in this Appendix pertain to holders of Forest Service special use permits that authorize the holder to operate federally owned drinking water systems. This includes special use permits authorized under Section 7 of the Granger-Thye Act, 16 U.S.C. 580d.

The requirements set forth below are derived from Forest Service Manual (FSM) 7420, which describes the Forest Service Drinking Water Program. The objective of the Forest Service Drinking Water Program is to protect human health by ensuring that Forest Service drinking water systems are properly operated, maintained, and monitored and deficiencies promptly corrected. Where this objective and applicable standards as described herein cannot be met, the Forest Service policy is to make such waters unavailable for human consumption. "Human consumption" includes the use of water for drinking, food preparation, dishwashing, oral hygiene, or bathing/showering.

When a permit holder operates federally owned water systems, both the Forest Service and the permit holder are considered suppliers of the water. Therefore, permit holders authorized to operate federally owned water systems must operate and maintain the systems to meet the objective and policy of the Forest Service Drinking Water Program. Failure to operate these drinking water systems accordingly may result in revocation of the permit.

In addition to fulfilling the requirements set forth below, permit holders operating federally owned water systems must comply with all applicable federal, State, interstate, and local requirements applicable to drinking water systems, and must follow the Operations and Maintenance (O&M) Plan developed in conjunction with the Forest Service to address the specific system(s).

Nothing in this Appendix should be interpreted as diminishing any obligation imposed by federal, State, interstate, or local authority.

II. APPLICABLE DEFINITIONS

A. Average Daily Population (ADP). For classification and inventory purposes, the ADP is the sum of the daily transient and daily resident population served or having access to the drinking water system, per month, divided by the days of the month. Where actual or sample counts are not available at recreation sites, determine ADP by multiplying Persons-At-One-Time (PAOT) by the percentage of site use where PAOT equals five people per site.

B. Certified Operator. Qualified personnel certified by the primacy agency to operate public drinking water systems.

C. Condition Survey. An onsite survey of the water source, facilities, and equipment as defined in the operations and maintenance plan for the system. Condition surveys are an integral part of the sanitary surveys. They may be combined with the sanitary surveys or serve as a supplement and addendum to the sanitary survey. Condition surveys are also performed to collect and document current condition and maintenance tasks for a water system. Condition surveys are conducted by qualified personnel and documented in a brief report.

D. Consecutive Water System. A water system that buys or otherwise receives some or all of their finished water from another public water system on a regular basis. Consecutive water systems are regulated as separate drinking water systems if they meet the definition of a public water system under the National Primary Drinking Water Regulations (NPDWR).

E. Drinking Water System. A public or a non-public water system for providing water suitable for human consumption via pipes or constructed conveyances, including handpump systems).

F. E. Coli Mcl Violation. A violation that occurs when a water system has:

1. An *E. coli*-positive routine sample followed by a total coliform-positive repeat sample; or
2. Any *E. coli*-positive repeat sample; or
3. A failure to collect all required repeat samples following an *E. coli*-positive routine sample; or
4. A failure to test for *E. coli* in a total coliform-positive repeat sample.

G. Groundwater Under The Direct Influence Of Surface Water (GWUDI). Any water beneath the surface of the ground with significant occurrence of organisms or significant and relatively rapid shifts in water characteristics which closely correlate to climatological or surface water conditions. Direct influence is determined by the primacy agency for individual sources in accordance with criteria established by the primacy agency.

H. Human Consumption. Use of water for drinking, food preparation, dishwashing, oral hygiene, or bathing/showering.

I. Level 1 Assessment. An evaluation of a public water system to identify the possible presence of sanitary defects, defects in distribution system coliform monitoring practices, and (when possible) the likely reason that the system triggered the assessment. It is conducted by the system operator or owner in accordance with primacy agency requirements.

J. Level 1 Assessment Trigger. An event that necessitates conducting a Level 1 Assessment. A Level 1 Assessment must be performed when:

1. Any public water system collecting fewer than 40 samples per month has greater than 1 routine/repeat sample per month which is total coliform-positive; or
2. Any public water system collecting at least 40 samples per month has greater than 5.0 percent of the routine/repeat samples in a month total coliform-positive; or
3. Any public water system fails to take every required repeat sample after each total-coliform routine sample. For non-public systems, the above events trigger a condition survey.

K. Level 2 Assessment. An evaluation of a public water system to identify the possible presence of sanitary defects, defects in distribution system coliform monitoring practices, and (when possible) the likely reason that the system triggered the assessment. A Level 2 Assessment provides a more detailed examination of the system (including the system's monitoring and operational practices) than does a Level 1 Assessment through the use of more comprehensive investigation and review of available information, additional internal and external resources,

and other relevant practices. It is conducted by an individual approved by the primacy agency in accordance with primacy agency requirements.

L. Level 2 Assessment Trigger. An event that necessitates conducting a Level 2 Assessment. A Level 2 Assessment must be performed when:

1. Any public water system has an *E. coli* MCL violation.
2. Any public water system triggers a second Level 1 Assessment within a rolling 12-month period. For non-public systems, the above events trigger a condition survey.

M. Maximum Contaminant Level (MCL). The maximum amount of a contaminant allowed in water provided to any user of a public water system.

N. Maximum Residual Disinfectant Level (MRDL). The level of a disinfectant added for water treatment that may not be exceeded at the consumer's tap without an unacceptable possibility of adverse health effects.

O. Non-Public Water System. A water system which provides drinking water but does not meet the definition of a public water system as defined by the SDWA. Non-public water systems are classified as one of the following:

1. Non-Public, Non-Transient (NPNT) Water System. A non-public water system serving less than 25 year-round residents or serving less than 25 of the same persons (ADP) more than 180 days per year (for example, smaller Forest Service ranger stations or housing sites).
2. Non-Public Transient (NPT) Water System. A non-public water system serving less than 25 persons (ADP) and not meeting the definition of NPNT water system (for example, smaller recreation sites, seasonal guard stations, or work centers with short-term, seasonal employees).

P. Other Water System (O). A distribution system (consisting of a water meter and distribution system) connected to a public water system (for example, connection of a Forest Service facility to a municipal water supply), that is not considered a Consecutive Water System.

Q. Primacy Agency. The agency that has been delegated primary responsibility by the U.S. Environmental Protection Agency for the administration and enforcement of primary drinking water regulations and related requirements that are applicable to public water systems within a State.

R. Public Water System. As defined under the SDWA, a public water system is a system for the provision to the public of water for human consumption through pipes or other constructed conveyances, if such system has at least 15 service connections or regularly serves at least 25 individuals. Such term includes (i) any collection, treatment, storage and distribution facilities under control of the operator of such system and used primarily in connection with such system, and (ii) any collection or pretreatment storage facilities not under such control which are used primarily in connection with such system. Public water systems are classified as one of the following:

1. Community (C) Water System. A public water system that:
 - (a) Serves at least 15 service connections used by year-round residents; or
 - (b) Regularly serves at least 25 year-round residents.
2. Non-Community Water System. A public water system that does not meet the definition of a community water system and can be one of the following:
 - (a) Non-Transient Non-Community (NTNC) Water System. A public water system that is not a community water system and that regularly serves at least 25 of the same persons over 6 months per year.

(b) **Transient Non-Community (TNC) Water System.** A public water system that is not a community water system and does not regularly serve at least 25 of the same persons over 6 months per year.

S. Qualified Person/Personnel. Person possessing appropriate training, experience, qualifications, and certifications/licenses to perform specific technical functions with respect to the design, construction, assessment, and operation; or monitoring and maintenance of drinking water systems.

T. Repeat Samples. A set of coliform samples taken when a previous sample is positive for total coliform . Repeat samples must be collected within 24 hours of being notified of a positive result.

U. Routine Sample. A coliform sample that is representative of the water throughout the distribution system, when the system is operational, and is used to determine the microbial quality of the water.

V. Sanitary Survey. An onsite review of the water source, facilities, equipment, operation and maintenance, and overall management of a drinking water system to evaluate compliance with laws and regulations and to evaluate the adequacy with respect to producing and distributing safe drinking water. Sanitary surveys must be conducted no less frequently than every three years for community water systems and every five years for non-community and non-public water systems.

W. Service Connection. Piped connection for conveyance of drinking water from the distribution system to the user. Examples of service connections include: an individual building (for example, residence, crew quarters, office, or mobile home), drinking fountains in campgrounds provided for public use, an individual campground hydrant, a handpump on a well, and a building with toilet and wash basin or shower.

X. Special Sample. A coliform sample collected for purposes other than routine compliance monitoring (for example, investigative samples or pre-opening/pre-season samples on seasonal systems). Special samples must be marked as such when sent in to the laboratory for analysis. Special samples do not count in determining assessment triggers or MCL violations, or in meeting the monthly sampling requirements.

Y. Total Coliform (TC) Sample. Group of bacteria used as an indicator of the potential fecal contamination of drinking water. Although total coliforms are usually not pathogenic themselves, their presence in drinking water indicates that fecal pathogens may also be present.

Z. Water System Operator. Any individual who has direct responsibility for or operates a drinking water system or such parts of the system as would affect the quality and/or quantity of drinking water provided to consumers.

III. REQUIREMENTS FOR OPERATING FEDERALLY OWNED DRINKING WATER SYSTEMS

A. Compliance With Applicable Standards. All federally owned public water systems must be operated in compliance with the most stringent of the following requirements:

1. The Safe Drinking Water Act, as amended (42 U.S.C. 300f *et seq.*);
2. The primacy agency;
3. FSM 7420 and applicable supplements; and
4. This permit.

Requirements of the Safe Drinking Water Act are further delineated in regulations, including but not limited to the National Primary Drinking Water Regulations (NPDWR) (42 CFR Part 141) and National Secondary Drinking Water Regulations (NSDWR) (42 CFR Part 143).

All federally owned non-public water systems must be operated in compliance with FSM 7420 and applicable supplements, and this permit. Non-public water systems must comply with the current MCLs applicable to the

respective public water system class identified in Exhibit 01. Contaminant monitoring for non-public systems may be less frequent than a public water system of respective class, if permitted by the Forest Service.

Exhibit 01

**Respective Public Water System Classes for Operation
of Forest Service Non-Public Water Systems**

Non-Public Forest Service Class	Respective Public System Class
Non-Public Transient (NPT)	Transient Non-Community (TNC)
Non-Public Non-Transient (NPNT)	Non-Transient Non-Community (NTNC)
Other (O) (municipal service connection)	Not applicable

B. Classification. Determination of drinking water system classification (C, TNC, NTNC, NPT, NPNT) shall be made by the regulatory authorities and the Forest Service.

C. Qualified Personnel. The permit holder shall provide qualified personnel to operate, maintain, assess, and monitor each water system. If required by the primacy agency or Forest Service, water system operators and sampling technicians shall be primacy agency-certified. Each water system shall have a primary and backup water system operator. The permit holder shall provide the name of the primary and backup water system operator for each separate water system within the scope of this permit in writing to the Forest Service, and notify the authorized officer within 72 hours of a change in personnel. Operation, maintenance, assessment, and monitoring tasks shall be performed by the primary or backup water system operator, or, if permitted by the primacy agency and Forest Service, by qualified personnel working under the direct supervision of the primary or backup water system operator.

D. Sanitary Surveys. Unless otherwise specified, sanitary surveys will be conducted by a primacy agency-approved agent for public water systems, and by the Forest Service for non-public water systems. The Forest Service may elect to attend sanitary surveys conducted by other agents. Where advance notice is provided by the primacy agency-approved agent, the permit holder shall coordinate the schedule with the Forest Service. The permit holder shall assist the primacy agency and/or Forest Service in the conduct of sanitary surveys by locating components at the site, operating valves and equipment, and providing a copy of the water system records if requested. Sanitary surveys may be conducted more frequently than the minimum required by regulation or policy, at the discretion of the primacy agency or the Forest Service. The permit holder shall coordinate with the Forest Service to ensure correction of identified deficiencies, and reporting of corrections to the primacy agency.

E. Level 1 and Level 2 Assessments and Condition Surveys. The permit holder shall notify the Forest Service in writing prior to conducting Level 1 and Level 2 Assessments and condition surveys. The Forest Service may elect to attend. The permit holder shall coordinate with the Forest Service to ensure correction of identified deficiencies.

1. **Level 1 and Level 2 Assessments.** Qualified personnel shall conduct Level 1 and Level 2 Assessments on public water systems in response to specific coliform test results, *E. coli* test results, or failure to sample, as per the definitions of Level 1 Assessment Trigger and Level 2 Assessment Trigger. Unless otherwise directed, the permit holder shall be responsible for ensuring the completion of all assessments. Unless otherwise directed or required by the primacy agency, the permit holder shall be responsible for conducting Level 1 Assessments, and for ensuring the completion of Level 2 Assessments by coordinating with the primacy agency and the Forest Service.

2. **Condition Surveys (Operational/Other).** Unless otherwise directed, the permit holder shall be responsible for conducting these condition surveys. Qualified personnel shall conduct condition surveys whenever:

(a) A non-public system has specific coliform test results, *E. coli* test results, or failure to sample, that would require a Level 1 or Level 2 Assessment for a public system, or

- (b) A closed seasonal system is opened for service, or
- (c) There is a significant change in conditions that may have affected the system operation and or water quality (for example, severe storm, earthquake, or flood event), or
- (d) Prior to renewal of any special use permit involving Forest Service-owned drinking water systems.

3. Condition Surveys (Maintenance). Qualified Forest Service personnel will conduct condition surveys for maintenance of Forest Service-owned drinking water systems, on an interval not to exceed five years. The permit holder shall assist the Forest Service in the conduct of maintenance condition surveys by locating components at the site, operating valves and equipment, and providing a copy of the water system records if requested.

F. Physical Protection

1. Design and Construction. The permit holder shall not make any design or construction modifications to the system without advance authorization from the Forest Service and primacy agency.
2. Operations and Maintenance (O&M). If an O&M Plan has not been provided by the Forest Service, prepare one for Forest Service approval. Review and modify the O&M Plan whenever operational or physical changes are proposed, and submit proposed revisions for Forest Service approval. At a minimum, review the O&M Plan annually and submit proposed revisions for Forest Service approval with the Annual Operating Plan. Follow the procedures established in the O&M plans. Make no unauthorized changes that would compromise the objectives stated in this Appendix. Obtain approval from the Forest Service prior to opening seasonal systems each year. For seasonal systems that are public, also demonstrate compliance with primacy agency-approved startup procedures prior to opening the system each year. Perform maintenance to ensure continued protection of the water source and water system. When a closed system at a publicly-accessible site is being super-chlorinated and/or flushed, or is being sampled prior to system opening/re-opening, deter public access to the system via signs, barricades, and/or other measures.
3. Cross Connection Control and Backflow Prevention. Maintain cross connection control and backflow prevention practices and devices in accordance with the Forest cross connection control and backflow prevention plan, primacy agency regulations, and OSHA regulations at 29 CFR 1910.141(b)(2)(ii). Properly use and maintain these devices and incorporate annual testing into the system's cross connection control program and O&M Manual. Maintain testing records in the water system file, and document test completion in the annual pre-opening condition survey.
4. Security. Maintain physical security (fences, enclosures, and locks) as necessary and practicable to deter unauthorized access. If vandalism or intentional harm to the water system and its components (wells, springs, treatment systems, storage tanks, and so forth) is suspected, notify law enforcement officers immediately and consult with the Forest Service for further guidance.

G. Treatment. Public water systems must provide treatment as required by the primacy agency or Forest Service. Non-public water systems must provide treatment as required by the Forest Service, to meet objectives stated in this Appendix. The permit holder shall not make substantial treatment modifications without advance authorization from the Forest Service (and primacy agency, if applicable). The permit holder shall notify, in writing, the Forest Service (and primacy agency, if applicable) in the event of any treatment system malfunction.

H. Monitoring and Follow-up Actions. Conduct monitoring and perform follow-up actions in accordance with this Appendix. Meet additional requirements if imposed by the primacy agency. Ensure that sample analyses are conducted at a primacy agency-certified laboratory, and that samples are collected and handled in accordance with laboratory requirements. Maintain and submit monitoring records in accordance with this Appendix. For public systems, submit results to the Forest Service and primacy agency as required by regulation. For non-public systems, submit results to the Forest Service only. The laboratory selection, and the manner in which the laboratory notifies the permit holder of violations, are subject to approval by the Forest Service. The permit holder shall ensure that the laboratory reports results immediately if a test result is positive for *E. coli* or total coliform. The permit holder shall also ensure that the laboratory directly notifies the Forest Service authorized officer of

violations. If requested by the Forest Service, the permit holder shall have the laboratory send an electronic copy of all results to the Forest Service at the same time results are sent to the permit holder. The permit holder is responsible for providing the name and address of the authorized officer to ensure this notification and associated sample results are sent by the laboratory to the Forest Service. The permit holder shall submit a drinking water monitoring plan with the annual operating plan, for approval by the Forest Service. The plan must include the contaminant list and schedule, proposed laboratory, and contacts list (permit holder, operators, and Forest Service representative to be contacted by the laboratory). The plan must also include a sample siting plan for coliform samples that addresses frequency and location, as described below. Each hand pump is considered as a separate water system. Unless otherwise directed, microbiological samples must be taken in the first ten days of the month. The permit holder shall notify and consult with the Forest Service within 24 hours after notification by the laboratory of a sample that tests positive for microbiological contamination, a trigger of a Level 1 or Level 2 assessment or condition survey, or any violation of applicable standards.

1. Microbiological (Coliform) Monitoring

Public Water System

(a) Routine Coliform Samples. Follow NPDWR or primacy agency regulations. Unless otherwise directed by the Forest Service, for seasonal systems, collect at least one sample for each full or partial calendar month the system operates, even if the primacy agency allows less frequent sampling. Prepare a sample siting plan that addresses frequency and location to ensure sampling is representative of water throughout the distribution system. The sample siting plan must include routine and repeat sample sites in the distribution system to ensure compliance with the Revised Total Coliform Rule. Additionally, for systems that use groundwater, the sample siting plan must include a repeat sample site at each groundwater source to meet requirements of the Groundwater Rule.

(b) Repeat Coliform Samples. Collect samples as required by the NPDWR or primacy agency regulations.

(c) Special Samples. Collect samples as required by the NPDWR or primacy agency regulations. Seasonal systems may not be opened for public use until after the special samples show the systems are free from coliform bacteria.

Non-Public Water System

(a) Routine Coliform Samples. Collect samples from non-public (NPT and NPNT) water systems at a minimum frequency of one sample/calendar quarter for systems that are continuously operated. For seasonal systems, collect one sample for each full or partial calendar month that the system operates. Prepare a sample siting plan that addresses frequency and location to ensure sampling is representative of water throughout the distribution system. The sample siting plan must include routine and repeat sample sites in the distribution system. Additionally, for systems that use groundwater, the sample siting plan must include a repeat sample site at each groundwater source.

(b) Repeat Coliform Samples. Within 24 hours of notification of a positive routine sample, collect one repeat sample for each positive routine sample.

(c) Special Samples. Collect one special sample before opening any seasonal water system for use. Seasonal systems may not be opened for public use until after the special samples show the systems are free from coliform bacteria.

2. Microbiological Follow-up Actions. Follow up actions are based on what triggers and/or violations have occurred.

(a) Level 1 Assessment Trigger

Public Water System

- (1) Notify the Forest Service, conduct a Level 1 Assessment, and conduct corrective actions as soon as practicable, and coordinate with the Forest Service to submit the completed assessment form to the primacy agency within 30 days after learning of the trigger. In the completed form, describe sanitary defects detected, corrective actions completed, and a proposed timetable for any corrective actions not already completed.
- (2) Unless otherwise directed by the primacy agency or Forest Service, after performing corrective actions, take daily special samples until two consecutive special samples are negative for coliform. If one special sample is TC positive, consult with the primacy agency and Forest Service on whether to implement precautionary measures such as system closure or a boil water advisory. The Forest Service may require more conservative measures than the primacy agency.
- (3) Follow primacy agency and Forest Service directions for follow-up.

Non-Public Water System

- (1) Notify the Forest Service, conduct a condition survey, and conduct corrective actions as soon as practicable, and document the survey and actions within 30 days after learning of the trigger. In the documentation, describe sanitary defects detected, corrective actions completed, and a proposed timetable for any corrective actions not already completed.
- (2) Unless otherwise directed by the Forest Service, after performing corrective actions, take daily special samples until two consecutive special samples are negative for coliform. If one special sample is TC positive, consult with the Forest Service on whether to implement precautionary measures such as system closure or a boil water advisory.
- (3) Follow Forest Service directions for follow-up.

(b) Level 2 Assessment Trigger

Public Water System (Trigger: *E. coli* MCL violation or second Level 1 Assessment trigger within a rolling 12-month period).

- (1) (For all Level 2 Assessment Triggers) Notify the Forest Service. If the trigger is caused by an *E. coli* MCL violation, also notify the primacy agency, in accordance with NPDWR or primacy agency regulations. Follow primacy agency and Forest Service direction.
- (2) (For *E. coli* MCL violation) Close the system. (The toilet supply may be left open if all points of human consumption, including showers, sinks, and publicly accessible hose bibs, can be isolated and shut off.)
- (3) (For *E. coli* MCL violation) Notify the public and water users, in coordination with the Forest Service, in accordance with NPDWR or primary agency regulations.
- (4) (For *E. coli* MCL violation) Coordinate with the Forest Service to notify the State after completion of public notice (with a copy of the public notice posted/delivered, and dates when the notice was posted and removed).
- (5) (For all Level 2 Assessment Triggers) Coordinate with the Forest Service. Ensure that a Level 2 Assessment is completed by the primacy agency or by a party approved by the primacy agency as soon as practicable, and submit the completed assessment form to the primacy agency within 30 days after learning of the trigger. The completed form must describe sanitary defects detected, corrective actions completed, and a proposed timetable for any corrective actions not already completed.
- (6) (For *E. coli* MCL violation) After performing corrective actions, take daily special samples. A closure order may be lifted only after the problem has been corrected and two consecutive daily special samples are TC negative.

Non-Public Water System (Trigger: *E. coli* MCL violation)

- (1) Notify the Forest Service of the violation and follow Forest Service direction.
- (2) Close the system. (The toilet supply may be left open if all points of human consumption, including showers, sinks, and publicly accessible hose bibs, can be isolated and shut off.)
- (3) Coordinate with the Forest Service to notify the water users about the violation within 24 hours and in accordance with the primacy agency requirements and guidance. Content of public notice for non-public systems may be customized to fit a non-public system, subject to approval by the Forest Service.
- (4) Coordinate with the Forest Service on conducting a condition survey and corrective actions as soon as practicable, and document the survey and actions within 30 days after learning of the trigger. In the documentation, describe sanitary defects detected, corrective actions completed, and a proposed timetable for any corrective actions not already completed.
- (5) After performing corrective actions, take daily special samples. A closure order may be lifted only after the problem has been corrected and two consecutive daily special samples are TC negative.

3. Disinfectant and Disinfection By-Products. All public community and non-transient non-community water systems that add a primary or residual disinfectant as part of their water treatment must be monitored in accordance with NPDWR or primacy agency requirements for disinfectant residuals to demonstrate compliance with MRDLs, and for disinfection byproducts to demonstrate compliance with MCLs. Transient non-community systems that use chlorine dioxide as a disinfectant must also be monitored for compliance with the MRDL. All public water systems that add a primary disinfectant to treat the source water (surface water, GWUDI, or groundwater) must be monitored in accordance with NPDWR or primacy agency requirements for disinfectant residuals and other parameters as necessary to demonstrate compliance with applicable pathogen inactivation requirements. All non-public non-transient water systems that add a primary or residual disinfectant as part of their water treatment must be monitored in accordance with NPDWR for disinfectant residual MRDLs and disinfection byproduct MCLs. Non-public transient systems that use chlorine dioxide as a disinfectant must also be monitored for compliance with the MRDL. All non-public water systems that add a primary disinfectant to treat the source water (surface water, GWUDI, or groundwater) must be monitored in accordance with NPDWR for disinfectant residuals and other parameters as necessary to demonstrate compliance with applicable pathogen inactivation requirements.

4. Turbidity. Perform turbidity monitoring in compliance with NPDWR and primacy agency regulations for all public systems and non-public systems using surface water sources or groundwater sources determined to be under the direct influence of surface water, or systems designated by the primacy agency. Non-public systems must monitor the same way as public water systems unless alternative monitoring is approved by the Forest Service on a case-by-case basis.

5. Primary Contaminants, Secondary Contaminants, Regulated and Unregulated Organic and Inorganic Chemicals, and Other Contaminants. For public systems, conduct monitoring of all applicable contaminants as required by the NPDWR, NSDWR, or primacy agency regulations. For non-public systems, conduct monitoring in the same manner and frequency as the respective public water system class, unless the Forest Service has granted a waiver using primacy agency waiver criteria as guidance. Nitrates are typically monitored for annually, and nitrites are typically monitored for every three years.

I. Public Notification. Notification must be performed in accordance with the requirements of NPDWR and primacy agency regulations for public and non-public systems.

J. Recordkeeping. The permit holder shall establish a permanent file for each drinking water system, and maintain records for both public and non-public systems per the NPDWR, primacy agency regulations, and this Appendix. The permit holder shall also include copies of sample siting plans, condition surveys, sanitary surveys, O&M plans, maintenance logs, records of repairs and/or modifications, and any other correspondence in the file.

The permit holder shall submit a copy of the water system file to the Forest Service upon request, and shall surrender the file to the Forest Service upon permit termination or revocation. The permit holder shall forward copies of routine and repeat coliform test results to the Forest Service by the 15th of the month in which the sample was taken. For other parameters (e.g., special coliform samples, disinfection byproducts, organic/inorganic/other chemical samples, disinfectant residuals, turbidity, etc.), unless otherwise requested, the permit holder shall forward copies of test results to the Forest Service by the 15th of the month following the sampling date. Unless otherwise requested, the permit holder shall forward copies of condition surveys, sanitary surveys, Level 1 and Level 2 Assessments, corrective action reports, correspondence, etc. to the Forest Service within one week.

K. Undeveloped Water Sources. Where there are undeveloped sources such as roadside springs, the permit holder shall keep such water sources in an undeveloped condition indicating the water source is unprotected. Undeveloped water sources shall not be identified on trail guides, brochures, maps, etc. in a way that may mislead users into believing the water is protected and safe. The permit holder shall take any additional measures to protect the public as required by Federal, State, or local law with regard to such sources.

L. Range and Wildlife Water Systems. The requirements in this Appendix do not apply to range or wildlife water systems if their design and construction features clearly indicate that they are not for human use. However, if range or wildlife water systems are an integral part of a drinking water system, such integral parts shall meet the requirements for drinking water. The Forest Service and/or primacy agency shall make the final determination of which water systems must be treated as drinking water systems.

M. Water Conservation. The permit holder shall operate, maintain, and monitor the water systems in such a way as to minimize the environmental footprint, including water, energy, and waste reduction. The permit holder shall report water meter readings to the Forest Service on a monthly basis, and maintain readings in the file. The permit holder shall promptly correct wastage or leaks that can be corrected through permit holder operations, maintenance, reconditioning, or renovation. The permit holder shall promptly inform the Forest Service of other wastage or leaks.

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